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A

TREATISE

ON

NAVAL COURTS-MARTIAL,

COMBINING

PRINCIPLES AND PRACTICE, &c.

A

TREATISE

OF THE

PRINCIPLES AND PRACTICE

OF

NAVAL COURTS-MARTIAL,

WITH

AN APPENDIX,

CONTAINING

ORIGINAL PAPERS AND DOCUMENTS

ILLUSTRATIVE OF THE TEXT,

OPINIONS OF COUNSEL UPON REMARKABLE CASES,

THE FORMS PREPARATORY TO TRIAL,

AND PROCEEDINGS OF THE COURT TO JUDGMENT

AND EXECUTION.



By JOHN M^c^ARTHUR,

Secretary to the Rt. Hon. Lord HOOD, Vice Admiral, Commander in Chief, &c.
and late Officiating Judge Advocate in North America.

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MDCCXCII.

TO

THE RIGHT HONORABLE

LORD HOOD,

ONE OF THE LORDS COMMISSIONERS OF THE ADMIRALTY,

VICE ADMIRAL OF THE BLUE, COMMANDER

IN CHIEF, &c. &c. &c.

THE FOLLOWING

TREATISE,

CONTAINING

THE PRINCIPLES AND PRACTICE OF

NAVAL COURTS MARTIAL,

IS,

WITH ALL GRATITUDE AND RESPECT,

MOST HUMBLY DEDICATED

BY HIS LORDSHIP'S MOST FAITHFUL

AND MOST DEVOTED SERVANT,

JOHN McARTHUR.

PORTSMOUTH,
25th *June*, 1792.

PREFACE.

IT has been the ſubject of regret in his Majeſty's naval ſervice, that many branches of the profeſſion have been ſo little treated upon, and explained by men whoſe official ſituations have afforded them the beſt opportunities of collecting information. And of all the yet untrodden paths, none ſurely is of greater importance than that which is the ſubject of the following ſheets. There is not an individual within the boards of a king's ſhip who muſt not feel himſelf deeply intereſted in the diſcuſſion of Courts Martial, ſince to aſcertain the meaſure of power, is to make a very conſiderable advance towards

that harmonious order and univerſal exertion reſulting from a due obedience to the will of the community, declared in the laws by which we are protected.

The many irregularities or deviations in form, into which the members of Courts Martial are unknowingly liable to fall, more particularly on foreign ſtations, from want of information, and the very great injury the ſervice has frequently ſuſtained by loſs of time in waiting for the opinions of counſel, probably on points already eſtabliſhed; are ſufficient reaſons to evince the uſefulneſs of ſuch a treatiſe, and which the Author has been led to undertake partly from duty, and partly from inclination.

The ſeveral acts of parliament and printed inſtructions intended to regulate our naval proceedings, being in many moſt eſſential points inexplicit, and in others wholly ſilent, it need not excite our wonder that ſo many doubtful caſes ſhould have occurred, and ſo many

many references been neceſſarily made to Counſel for their opinions, particularly when we conſider how unequal human wiſdom is in framing of laws to provide for, and guard againſt every meaſure and variation of circumſtances that may ariſe on all future occaſions.

The Author having aſſiduouſly collected the moſt remarkable caſes, with the reſpective opinions of Counſel, has arranged them, together with other original and in reſting papers, in a copious Appendix, ſubjoined to the work. And without arrogating to himſelf more knowledge of the ſubject than what may have been attained from a ſpirit of induſtry and unremitting application to his official concerns, he hopes his materials are ſo arranged that the reader will be enabled to draw right inferences from the authorities themſelves, rather than ſtand in need of any comments the Author may be expected to offer on the ſubject.

In

In this place he cannot reſiſt the deſire of returning his warmeſt acknowledgments to thoſe gentlemen in official ſituations, who have with ſo much civility and laudable zeal promoted his undertaking, by allowing him the peruſal of many original and highly uſeful documents.

The Author has, beſides, beſtowed conſiderable pains and labour in conſulting the higheſt legal authorities, as alſo many hiſtorical facts, illuſtrative of his work, which he has in every inſtance faithfully and accurately cited, that the Reader may have recourſe to them with facility, and from thence be enabled to judge of the principles advanced, and of the foundation upon which the ſuperſtructure has been erected. He has therefore been much leſs attentive to elegance of ſtyle and compoſition, than to eſtabliſhing the truth of his premiſes by intrinſic authorities—His aim, however, throughout, has been to treat the ſubject in a methodical manner

manner and with perſpicuity, to remove thoſe difficulties which he has himſelf experienced in practice, and to ground, if poſſible, the foundation of a ſyſtem which others, who have more leiſure, may hereafter build upon and improve.

In attempting this, if he has failed in ſome points, and others have eſcaped his obſervation, he truſts to the candour of an indulgent Reader, who may perhaps think the Author entitled to ſome allowance for the difficulty of ſelecting and methodically arranging a maſs of materials, ſo as to embrace compendiouſly and with clearneſs every object neceſſary to elucidate reſearches of this nature.

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ERRATA.

At the mark *, bottom of page 61, inſert, *See Dr. Paul's Opinion, App. No. IV.*

At the firſt reference, bottom of page 82, for No. *XV.* read *XVI.*

At the bottom of page 90, for No. *XVIII.* read *XIX.*

TREATISE

ON

NAVAL COURTS MARTIAL.

BOOK I.

OF THE FUNDAMENTAL LAWS AND ESTABLISHED THEORY OF NAVAL COURTS-MARTIAL.

CHAP. I.

Of Laws in general.

LAW (according to the definition of our learned Commentator *), in its moſt general and comprehenſive ſenſe, ſignifies a rule of action; and is applied indiſcriminately to all kinds of action, whether animate or inanimate, rational or irrational. Thus we ſay, the laws of motion, of gravitation, of optics, or mechanics, as well as the law of nature and nations. And it is that rule of action,

* Blackſtone's Com. vol. i. page 38.

which is preſcribed by ſome ſuperior, and which the inferior is bound to obey.

Thus when the Supreme Being formed the Univerſe, and created matter out of nothing, he impreſſed certain principles upon the matter, from which it can never depart, and without which it would ceaſe to be. When he put that matter into motion, he eſtabliſhed certain laws of motion, to which all moveable bodies muſt conform. And, to deſcend from the greateſt operations to the ſmalleſt, where a workman forms a clock, or other piece of mechaniſm, he eſtabliſhes at his own pleaſure certain arbitrary laws, for its direction; as that the hand ſhall deſcribe a given ſpace in a given time; to which law, as long as the work conforms, ſo long it continues in perfection, and anſwers the end of its formation.

Juſtinian* has reduced the doctrine of the law of nature to the three following general precepts; "That we ſhould live honeſtly, "ſhould hurt nobody, and ſhould render to

* Juris præcepta ſunt hæc honeſté vivere, alterum non lædere, ſuum cuique tribuere. Inſt. Book i. 1, 3.

"every

"every man his due." The law of nature being coeval with mankind, and derived from the Supreme Being, is ſuperior in obligation to any other—In every clime, and on all occaſions, it is binding. The validity and authority of all human laws derive their energy, power, and influence, from the fountain of the law of nature*.

To have an adequate idea of the law of nature, we muſt conſider man in a ſtate of nature, unconnected with other individuals, and prior to the eſtabliſhment of ſociety. The firſt law of nature in order, would be that of ſelf preſervation; the next in order, although the firſt in importance, would be the idea of a Supreme Being, to the contemplation of which, our minds are irreſiſtably led in viewing the ſurrounding works of nature, and more particularly the harmonious motions of the celeſtial bodies.

The timidity and weakneſs, peculiar to man in a rude ſtate, would impreſs him with the idea of uniting himſelf to others, and forming the firſt links of ſociety; which would be ſtrengthened by the reciprocal paſſions and affections, inſpired by the two

ſexes; and this may be termed the third law of nature*.

So ſoon as men have formed themſelves into ſocieties, their timidity and weakneſs ceaſe. Separate ſtates and nations, entirely independent of each other, ariſe by ſlow gradations. Mutual intercourſe takes place; each ſociety, or independent ſtate, will endeavour to turn circumſtances to its own advantage: jealouſies, diſputes, and even hoſtilities, will often enſue; hence the origin of the "*law of nations*†," which, as none of theſe ſtates will acknowledge a ſuperiority in the other, cannot be dictated by any; but depends entirely upon the rules of natural law, or upon mutual compacts, treaties, leagues, and agreements between theſe ſeveral communities; in the conſtruction of which compacts, we have no other rule to reſort to but the law of nature, being the

* De plus ce charme que les deux ſexes inſpirent par leur différence, augmenteront ce plaiſir, & la priere naturel qu'ils ſe font toujours l'un à l'autre ſeroit une troiſieme loi. *Mont. l'Eſprit des Loix*, lib. i. c. 2.

† Blackſtone's Com. vol. i. ſect. 2.

only

only one to which all the communities are equally ſubject; and therefore the civil law very juſtly obſerves, that "*quod naturalis* "*ratio inter omnes homines conſtituit, vocatur* "*jus gentium.*"

The law of nations, or *Droit des Gens**, is naturally founded upon this principle, that different nations, during the time of peace, ought to do each other all the ſervice they can; and, in time of war, as little harm as poſſible, without prejudice to their own real intereſts.

Prior to the epocha of the firſt Theban war†, we find only the dawnings of military art, with ſcarcely a trace of the law of nations; prior to that period Greece had only beheld bands of men, not ſoldiers, ſuddenly over-run a neighbouring country, and retire after committing a few hoſtilities,

* *Le droit des gens*, eſt naturellement fondé ſur ce principe, que le diverſe nations, doivent ſe faire dans la paix le plus de bien, & dans la guerre le moins de mal qu'il eſt poſſible ſans nuire à leurs veritables interéts. *Monſ. L'Eſprit des Loix*, lib. i. c. 3.

† Barth. Intro. to Anacharſis, vol. i. page 45.

and tranſient acts of cruelty*. In the war of Thebes, different nations firſt aſſociated in the ſame camp, and were united under one general, braving with equal courage the rigours of the ſeaſons, the tedioufneſs of a ſiege, and the perils of daily combats. In the ſally† of the Thebans, when beſieged by the Argives, Adraſtus, the Argive general, was unable to beſtow funeral honors on thoſe brave leaders who fell in battle, until Thexis was obliged to interpoſe his authority to conſtrain Crion to ſubmit to the law of nations, then beginning to be introduced‡.

In the early dawnings of commercial intercourſe among different ſtates, we find traced the leading features of an important branch of the law of nations, now denominated the law merchant, or *lex mercatoria.*

In all marine cauſes relating to freight, average, demurrage, inſurances, bottomry and others of a ſimilar nature ‖, this law is

* Pauſan. lib. ix. c. 9. p. 728.

† Barth. Intro. to Travels of Anacharſis, vol. i.

‡ The year 1329 before Chriſt.

‖ Black. Com. B. i. chap. 7. & B. iv. c. 5.

re-

regularly and conſtantly adhered to, likewiſe in all diſputes relating to prizes, to ſhipwrecks, to ranſoms, &c. There is no other rule of deciſion, but this great univerſal law; collected from hiſtory and uſage, from ſuch writers of all nations and languages, as are generally approved and allowed of.

The principal offences againſt the law of nations, animadverted on as ſuch by the municipal law of England, are of three kinds. 1ſt. Violation of Safe Conducts, or Paſſports. 2d. Infringements of the Rights of Ambaſſadors. And, 3d. Piracy.

The Athenians, on more occaſions than one, had the inſolence to avow, that the only law of nations they were acquainted with was force *. And though it was a general law in Greece, that a foreign power was not to intermeddle in the differences between a mother country and her colonies, yet this law, in the age of Pericles, was infracted by the Athenians, in ſending ſuccours to the Corcyrians, in their revolt with Corinth, and which excited a war againſt

* Thucyd. lib. iii. c. 89.

them by the Lacedæmonians, Corinthians, and other allies *.

In modern times ſimilar infractions of the law of nations have produced ſimilar effects; and the recent inſtance with our American colonies, ſupported by a combination of foreign powers, muſt tranſmit to poſterity, in proper colours, an abhorrence of the violation of thoſe rules of law, reſulting from principles of natural juſtice, and which, among ſtates, conſtitutes the *law of nations*.

Municipal, or civil law †, is that by which particular diſtricts, communities, or nations are governed, being thus defined by Juſtinian ‡; *Jus civile eſt quod quiſque ſibi conſtituit*.

It is underſtood to be a rule of civil conduct preſcribed by the *ſupreme power* in a ſtate, commanding what is right, and prohibiting what is wrong.

An ancient writer obſerves, that a nation which applies itſelf to maritime affairs, in-

* Travels of Anacharſis. Intro. v. i. p. 365.
† Black. Com. v. i. ſect. 2.
‡ Juſt. I. ii. 1.

clines

clines towards a democracy *; and it was this idea which produced in Solon a preference to the popular form of government at Athens.

The executive power of the laws of England, being lodged in the king, gives birth to all thoſe advantages of ſtrength and diſpatch ſo peculiar to monarchic governments —the wiſdom of ariſtocratic, and the public virtue or good intention of democratical government; theſe three governments are employed in compounding and uniting, as into one, the legiſlative body of this kingdom. Theſe three diſtinct powers, thus aggregated and actuated by different ſprings, and attentive to different intereſts, compoſe the Britiſh Parliament, which has the ſupreme diſpoſal of every thing; and each branch being armed with a negative power, a nice equilibrium is thereby kept up, whereby nothing can be attempted that is repugnant to the intereſts of the conſtitution.

It has been obſerved by a learned writer †,

* Ariſt. de Rep. lib. vi. c. 7.

† Barthelemi's Travels of Anacharſis, v. iv. p. 15.

to

to whoſe learned work I have already referred the reader, that nature is almoſt always in oppoſition to the laws, becauſe ſhe labours only for the happineſs of the individual, without regard to the other individuals who ſurround him; while the laws only direct their attention to the relations by which he is united to them; and becauſe ſhe infinitely diverſifies our characters and inclinations, while it is the object of the laws to bring them back to unity. The legiſlator, therefore, whoſe aim is to annihilate, or at leaſt to reconcile, theſe contrarieties, muſt conſider morals as the moſt powerful ſpring, and moſt eſſential part of the political inſtitutions. He muſt take the work of nature at the firſt moment ſhe has produced it; retouch its forms and proportions, and ſoften, without entirely effacing, its great outlines, till at length he has converted the independent man into the free, but united citizen.

What Sir William Blackſtone * applies to the law of civil ſtates, or political union,

* Commentaries, v. i. p. 52.

may

may be applicable likewiſe to military or martial law. For a ſtate is a collective body, compoſed of a multitude of individuals, united for their ſafety and convenience, and intending to act together in one man. If it therefore be to act as one man, it ought to act by one uniform will; but inaſmuch as political communities are made up of many natural perſons, each of whom has his particular will and inclination, theſe ſeveral wills cannot by any natural union be joined together, or tempered and diſpoſed into a laſting harmony, ſo as to conſtitute and produce that one uniform will of the whole. It can therefore be no otherwiſe produced, than by a political union; by the conſent of all perſons to ſubmit their own private wills to the will of one man, or of one or more aſſemblies of men to whom the ſupreme authority is intruſted: and this will of the one man, or aſſemblage of men, is in different ſtates, according to their different conſtitutions, underſtood to be *law*.

Hence, in all ſtates, general rules and orders are eſtabliſhed for the information and direction of all perſons, either in civil or military

military capacities, whether of poſitive or negative duties, in which the *boundaries* of right and wrong, and the manner of enforcing theſe rights, and redreſſing theſe wrongs, are preciſely aſcertained.

Although the military and naval branches, of different ſtates, make greater ſacrifices to their natural liberty than the other claſſes of the community; yet the laws by which they are regulated, while ſubordinate to the power of one man, are, in general, clearly defined, and framed upon the moſt wiſe and unequivocal principles, ſo as to promote and maintain the honor and glory of their ſtate.

The articles of war, and rules of diſcipline for the Britiſh ſervice, by land and ſea (more particularly the latter), are clear and explicit; commanding what is right, and prohibiting what is wrong, with the puniſhment and penalty of every tranſgreſſion annexed.

They likewiſe embrace the three eſſential component parts, neceſſary to conſtitute every law, *viz.* 1ſt. *Directory*; as enjoining the ſubject to obſerve the regulations, and to abſtain from the commiſſion of wrongs or crimes.

crimes. 2d. *Remedial*; as indicating the means of obtaining redreſs, in caſe of being wronged, injured, or oppreſſed. 3d. *Vindicatory*; implying the puniſhment or penalty to be inflicted on, or incurred by, ſuch as are guilty of tranſgreſſing the rules laid down.

Although many able writers have fully diſcuſſed the ſubject of *rewards* and *puniſhments* in criminal law *, and while they have done honor to the cauſe of humanity and benevolence, by applauding thoſe who have diſplayed a greater deſire to reward for the prevention of crimes, than to inflict a puniſhment upon the authors of them for their reformation. Yet our ableſt legiſlators, who have united the theory of juriſprudence with the practical knowledge of civil and military life, have tranſmitted to us the ſtrongeſt arguments in favor of mandatory and compulſory laws; ſince rewards in their nature can only perſuade and allure, and we find nothing is compulſory but puniſhment. And of all the parts of a law, the moſt effectual, ſays Sir William Blackſtone, is the *vindicatory*; for

* Lord Coke, Beccaria, &c.

it

it is but labour loſt to ſay, "Do this, or avoid that," unleſs we alſo declare, "This ſhall be the conſequence of your non-compliance."

CHAP.

CHAP. II.

Of the Origin of Courts-Martial.

THE ſource of martial law in England is derived from the court of chivalry, or marſhal's court; but to aſcertain the period to which the origin of the courts of chivalry may be traced, is a taſk extremely difficult, and in which ancient hiſtorians differ eſſentially. The imperfect records tranſmitted to us of the important events, emigrations, wars, ſyſtem of laws, and forms of government, peculiar to rude and illiterate ages, and to which we muſt refer for the origin of theſe courts, muſt render reſearches of this nature extremely embarraſſing, and in the end prove but unſatisfactory.

We find, however, in the ſimpleſt and rudeſt ages, natural and artificial diſtinctions to have conſtituted an important part of the mechaniſm

chaniſm of ſociety. The natural diſtinctions of young and old, parent and child, huſband and wife, as well as the artificial ones introduced among mankind, in ſeparating the bold and ſkilful warrior, uniting vigour of body to energy of mind, from thoſe whoſe feebleneſs of body and intellects render them unequal to dexterity and valour, muſt have been introduced at the early formation of ſociety.

As the boundaries of ſociety are extended, and its form rendered more complicated by the invention of arts, ſubordinate diſtinctions of rank will be naturally introduced, and different modes of military diſcipline will produce different diſtinctions among warriors.

No ſubordinate diſtinction ſtood ſo conſpicuous in the improvements made in the military art, as the dextrous management of horſes, and the training of them to the evolutions of war. In Greece, Rome, and the monarchies of Aſia, as well as among the ſavage warriors of Scythia, and Germany *,

* Tacitus de Moribus Germanorum.

peculiar

peculiar honors were beſtowed on thoſe who diſtinguiſhed themſelves in the cavalry; hence it is reaſonable to infer, that, at very remote periods, courts of *chivalry*, or *marſhall's* court*, was introduced among nations, and that diſtinguiſhed marks of honor were then conferred on the commanders of the cavalry †.

In the times of the feudal aſſociation, we find the greateſt veneration paid to the inſtitution of chivalry. The uſual appearance of a knight in the field was on horſeback, attended by an Eſquire. The chief ſtrength of armies conſiſted of cavalry. The ſkilful management of a horſe was of conſequence one of the great accompliſhments of a knight or a warrior. This way of thinking characterized ſome of the German tribes, even in the age of Tacitus ‡.

* CHIVALRY: *Chivalerie*, Fr. knighthood; from *Cheval*, a horſe. The word *Mareſhall* is derived from the Saxon, *Mare*, a horſe; and *Schall*, a governor.

† In the reign of Henry VIII. we find that Sir Tho. Knevet, the maſter of the horſe, commanded the Regent, a capital ſhip, ſent to the aſſiſtance of Sir Edward Howard, lord high admiral, then ſcouring the French coaſt.

Campbell's Ad vol i p. 281.

‡ De Mor. Germ. c. 32.

We find little mention of courts of chivalry in England, prior to William the Conqueror; who having eſtabliſhed in England a ſupreme court, under the direction of a chief juſticiar, and compoſed of the great officers of ſtate, called the *Aula Regis*, in which was blended the juriſdiction of the court of chivalry, or marſhall's court, and at which the conſtable and earl marſhall preſided in all matters of honor and arms, and determining according to the law military, and the law of nations *.

But Edward I. finding that the *Aula Regis* was obnoxious to the people, and dangerous to the government, new modelled and ſubdivided its power and authority into ſeparate courts—hence the court of chivalry was created, with a ſeparate juriſdiction, over which the conſtable and marſhall preſided. The ſteward of the houſehold preſided over another, inſtituted to regulate the king's domeſtic ſervants.—The high ſteward, with the barons of parliament, formed an auguſt tribunal, for the trial of delinquent

* Black. Com. b. iii. c. 5.

peers.

peers.—The court of chancery iſſuing all original writs, under the great ſeal, to the other courts—The Common Pleas being allowed to determine all cauſes between private ſubjects—The Exchequer managing the king's revenue; and the court of King's Bench retaining all the juriſdiction which was not cantoned out to other courts; and particularly the ſuperintendance of all the reſt, by way of appeal, and the ſole cognizance of pleas of the crown, or criminal cauſes *.

The court of chivalry † is conſidered as a military court, or court of honor, when held before the earl marſhal only; and as a criminal court, when held before the lord high conſtable of England, jointly with the earl marſhall. And then it has juriſdiction over pleas of life and member, ariſing in matters of arms and deeds of war, as well out of the realm as within it; but the criminal, as well as civil part of its authority, is fallen into entire diſuſe, there having been

* Black. Com. b. iii. c. 4.

† 4 Inſt. 123.—2 Hawk. P. vi. 9.

no permanent high conſtable of England (but only, *pro hac vice*, at coronations and the like) ſince the attainder and execution of Stafford duke of Buckingham, in the thirteenth year of Henry VIII. The authority and charge, both in war and peace, being deemed too ample for a ſubject; ſo ample, that when the chief juſtice Fineaux was aſked by King Henry VIII. how far they extended, he declined anſwering; and ſaid, the deciſion of that queſtion belonged to the law of arms, and not to the law of England *.

It would not be conſiſtent with the limits of this work to diſcuſs at large the extenſive juriſdiction of the court of chivalry, as firſt inſtituted in England; neither would it be ſatisfactory to the reader to detail the various ſtatutes by which its power and authority was, by gentle gradations, curtailed, abridged, and, in a manner, annulled.

From the time of the court of chivalry being abridged of its criminal juriſdiction,

* Duck. *de Authoritate Jur. Civ.*—Bl. Com. b. iv. c. 19. ſect. 4.

until

until after the reſtoration of Charles II. no regular court, for the adminiſtration of martial law in the navy, appears to have been eſtabliſhed. By the Statute 13 Car. II. c. 9. expreſs rules, articles, and orders were firſt enacted by authority of parliament, for the better keeping up a regular diſcipline in his majeſty's navy; and by the 22 George II. c. 23. and 19 George III. c. 17. they have been altered, amended, and new modelled *.

In theſe articles almoſt every poſſible offence is ſet down, and the puniſhment annexed, in which reſpect the ſeamen have much the advantage over their brethren in the land ſervice, whoſe articles of war are not enacted by parliament, but framed from time to time at the pleaſure of the crown; which, with regard to military offences, hath a ſole and almoſt abſolute legiſlative power. For by the Mutiny Act annually paſſed, for puniſhing mutiny and deſertion, and for the better payment of the army, and their quar-

* Vide Abſtract of Articles of War; Appendix, No. I. and Sections of Court-Martial Statutes, No. II.

ters, " his majeſty may form articles of " war, and conſtitute courts martial, with " power to try any crime by ſuch articles, " and inflict penalties by ſentence or judg- " ment of the ſame *." This, Sir William Blackſtone obſerves †, is a vaſt and important truſt! an unlimited power to create crimes, and annex to them any puniſhments, not extending to life or limb! Theſe are indeed forbidden to be inflicted, except for crimes declared to be ſo puniſhable by the Mutiny Act.

By the Statute 18 Henry VI. c. 19. deſertion from the king's armies, by ſea or land, is made felony; and, by Statute 5 Eliz. cap. 5. extends to mariners, and the offence is liable to be tried by the juſtices of every ſhire or county. The ſame ſtatute puniſhes other inferior offences with fines, impriſonment, and other penalties.

Theſe ſtatutes, although in a manner ſuperſeded by thoſe enacting courts martial, are ſtill ſtanding laws of the land, never

* Mutiny Act, art. 57.

† Black. Com. b. i. c. 13.

having

having been abrogated or repealed by any ſubſequent act of parliament. And between the periods of paſſing theſe acts, and that of Charles II.'s regulating naval courts martial, we find, in hiſtory, frequent inſtances of the extraordinary prerogative of the crown, proclaiming martial law in the kingdom; more particularly in the reigns of Queen Mary, Queen Elizabeth, and Charles the Firſt. This prerogative, from uſage, is juſtifiable at all times, upon particular emergencies of the ſtate, when reſtrained within proper limits, and not made with a view of being ſubſervient to the exerciſe of arbitrary power.

CHAP. III.

Of the fundamental Laws by which Naval Courts Martial are held.

MARTIAL law in the navy, as has been obſerved, was firſt reduced to certain fixed rules and articles by the authority of parliament, ſoon after the Reſtoration *, but ſince new modelled and altered by Statute 22 Geo. II. c. 23. to remedy ſome defects which were of fatal conſequence in conducting the preceding war, entitled, "*An act* "*for amending, explaining, and reducing in-*"*to one act of parliament the laws relating* "*to the government of his majeſty's ſhips,* "*veſſels and forces by ſea,*" and by the late ſtatute 19 Geo. III. c. 17, this act is farther

* 13 Car. II. St. 1. c. 9. } See Abſtracts of theſe Acts, App. No. I. and No. II. with the amendment, 19 Geo. III. c. 17. ſ. 3.
† 22 Geo. II. c. 23. }

ex-

explained and amended. Theſe acts contain not only the 36 articles of war, in which almoſt every poſſible offence is explicitly ſet down, and the puniſhment thereof annexed, or left to the diſcretion of a court martial, but alſo, ſundry clauſes of expreſs rules and orders for aſſembling and holding courts for the trial of any of the offences ſpecified therein. By 31 Geo. II. cap. 10. ſect. 33. a competent number of printed copies of the articles of war, together with an abſtract of all the clauſes of the ſaid ſtatute, intituled, "An act for the encouragement of ſeamen employed in the royal navy, and for eſtabliſhing a regular method for the punctual, frequent, and certain payment of their wages, and for enabling them more eaſily and readily to remit the ſame for the ſupport of their wives and families, and for preventing frauds and abuſes attending ſuch payments," are directed to be delivered to the captain or commander of every ſhip or veſſel, who is to cauſe them to be hung up and affixed to the moſt public places of the ſhip, and to have them conſtantly kept up and renewed, ſo that they may be at all times, acceſſible to the inferior

inferior officers and ſeamen on board, and likewiſe to obſerve, that ſuch abſtract be audibly and diſtinctly read over, once in every month, in the preſence of the officers and ſeamen, immediately after the articles of war are read; hence it is, that no officer or ſeaman is allowed to plead ignorance of the penalties and puniſhments, to which he is liable, from neglect or diſobedience, nor can he be unacquainted with the encouragements and benefits, to which ſeamen are entitled, by a due and faithful performance of their duty.

It may not be improper, in this place, to take a curſory view of the different offences ſpecified in the articles of war, together with the puniſhments annexed to each; and, at the ſame time, to examine the analogy they bear to the criminal laws of the land, denominated *the doctrine of pleas of the crown*, in order that members of courts martial, being thus furniſhed with the principles and grounds of deciſion in the courts of law, may the better be enabled to judge of the comparative puniſhment, proper to be inflicted for offences committed, particularly

ticularly when the matter is left diſcretionary to the court; and, in the proſecution of this taſk, we will endeavour to point out all ambiguous conſtructions that may be put upon any of the articles.

The offences comprehended and ſpecified in the naval articles of war, may, for the ſake of perſpicuity, be claſſed or diſtributed under the following general h-ads; 1ſt, Thoſe that are immediately againſt God and religion; 2dly, Such as affect the executive power of the ſtate, or criminally neglect the eſtabliſhed articles and rules of diſcipline in his majeſty's ſervice; 3dly, Such as vio'ate or tranſgreſs the rights and duties which are owing to individuals or fellow ſubjects; and 4thly, Offences in themſelves ſtrictly military, and ſuch as are peculiarly the object of martial law.

1ſt, Againſt God and religion, are claſſed thoſe relative offences contained in the 1ſt and 2d articles, viz. neglecting public worſhip and being guilty of profane oaths, curſing, execrations, drunkenneſs, uncleanneſs, or other ſcandalous actions; the puniſhment

niſhment of which is left to the diſcretion of the court martial.

Although the higher offence of *blaſphemy* is not particularized in theſe articles, yet it is unqueſtionably implied, by the words profane oaths, curſings, and execrations. This offence, according to Mr. Hawkins, is puniſhable at common law by fine and impriſonment, or other infamous corporal puniſhment*: and by the Statute of 19 Geo. II. c. 21. which repeals all former articles made againſt profane and common ſwearing, every labourer, *ſailor* or ſoldier, profanely ſwearing or curſing, ſhall forfeit one ſhilling; every other perſon, under the degree of gentleman, two ſhillings; and every gentleman, or perſon of ſuperior rank, five ſhillings to the poor of the pariſh, and on ſecond conviction double, and for every ſubſequent offence treble, the ſum firſt forfeited; with all charges of conviction; and, in default of payment, ſhall be ſent to the houſe of correction for ten days, and to be convicted before a juſtice of the peace†.

* Hawk. Pleas, c. 7. † Black. Com. B. iv. c. 4. p. 60.

By

By Statute 4 Ja. I. cap. 5. drunkenneſs is puniſhable at common law, by forfeiture of five ſhillings, or the ſitting ſix hours in the ſtocks *. Uncleanneſs, and other ſcandalous actions againſt religion and morality, are cognizable by the temporal courts, and puniſhed with fine and impriſonment †.

The ſecond diviſion of crimes conſiſts of ſuch as affect the executive power of the king, and his government: and this diviſion may be ſubdivided into the offences ſpecified in the 3d, 4th, 5th, 15th, 16th, 19th, 20th, 22d, 24th, 25th, 27th, and 31ſt articles of war, *viz.* holding intelligence with an enemy or rebel—concealing letters or meſſage from, or relieving an enemy or rebel—deſerting to an enemy—running away with ſhips, ſtores, or yielding the ſame to an enemy—deſertion from the ſervice, or entertaining deſerters—waſte or embezzlement of ſtores—mutinous aſſemblies—ſeditious or mutinous words—

* Black Com. b. iv. p. 64.
† Ibid. b. iv. p. 65.

con-

concealing any traiterous or mutinous deſigns, &c.—ſtriking, quarrelling, or diſobeying the orders of a ſuperior officer—ſleeping upon the watch, neglecting duty, or forſaken a ſtation allotted, and knowingly ſigning falſe muſter-books.

By the laws of England *, if a man be adherent to the *king's enemies*, giving to them aid and comfort in the realm, or elſewhere, he is declared guilty of high treaſon.—This muſt be proved by ſome overt act; as by giving them intelligence, by ſending them proviſions, or ſelling them arms, &c. †

Our articles of war make no diſtinction between an enemy and a rebel; but the common law does; and the crime of giving intelligence, or relieving a rebel, is only conſidered in the ſame light with that of an enemy, when given to our own fellow-ſubjects in actual rebellion at home ‡. But to relieve a *rebel*, fled out of the kingdom, is no treaſon; for the ſtatute is taken ſtrictly, and a rebel is not an enemy; an enemy being

* Black. Com. b. iv. c. 6. † 3 Inſt. 10.
‡ Foſter, 219.

always

always the ſubject of ſome foreign prince, and one who owes no allegiance to the crown of England *.

By the ſtatute law, *deſerting to an enemy* is made felony, without benefit of clergy, and even extends to any ſubject of Great Britain enliſting himſelf in any foreign ſervice †. Embezzling or deſtroying the king's warlike ſtores, to the value of twenty ſhillings, is likewiſe made felony, without benefit of clergy, by Statute 22 Car. II. c. 5.—And by Statute 12 Geo. III. c. 24. burning or deſtroying any of his majeſty's ſhips of war, or any of the king's arſenals, magazines, &c. or military or naval ſtores, or ammunition, or aiding, abetting, or aſſiſting in ſuch offence, is declared to be felony, without benefit of clergy.

Deſertion from the king's armies in time of war, whether by land or ſea, in England, or parts beyond the ſea, is, by the ſtanding laws of the land, particularly by Statute 18 Hen. VI. c. 19. made felony; and by

* 1 Hawk. P. C. 38. † 29 Geo. II. c. 17.

Statute

Statute 5 Eliz. c. 5. ſ. 27. it is extended to mariners and gunners ſerving in the navy.

The offences relating to mutinous aſſemblies, ſedition, &c. are puniſhed by the articles of war with death; or otherwiſe, as a court martial ſhall think fit. And upon a competent conſideration of the ſubject it will appear, that to annex the *ultimum ſuplicium* to offences, which have in themſelves a tendency to ſubvert the laws and diſcipline of the king's ſervice, may be deemed a meaſure highly expedient, and not attended with that ſeverity ſo frequently attributed to it.

The reaſonableneſs of this doctrine will ſtrike us the more forcibly, when we conſider that, by the laws of England, offences of a nature ſomewhat analogous are frequently puniſhed with death. For by ſeveral ſtatutes*, the puniſhment of *riotous aſſembling* of *twelve* perſons or more, and not diſperſing by pro-

* 3 and 4 Ed. VI. cap. 5. firſt made it high treaſon. 1 Mar. St. 2. c. 12. made felony, but within the benefit of clergy. 1 Geo. I. cap. 5. makes it felony without the benefit of clergy, and indemnifies the peace officers, and their aſſiſtants, if they kill any of the rioters in endeavouring to ſuppreſs ſuch unlawful aſſembly.

clamation,

clamation, may be capital, according to the circumſtances that attend ſuch *unlawful aſſembly*.

Upon more juſtifiable grounds, the firſt branch of the twenty-ſecond article of war may be deemed ſevere. For if any perſon ſtrike his ſuperior officer, or draw, or *offer to draw, or lift up any weapon againſt him*, being in the execution of his office, he ſhall ſuffer *death*.

When we conſider the infirmities inſeparable from human nature, and which abound even in the moſt upright hearts—the unguarded moments of paſſion, which at times no prudence or circumſpection can govern, and the numberleſs unforeſeen cauſes which may ſuddenly ariſe amidſt the fluctuating humours and caprices of mankind, it is devoutly to be wiſhed, that, on a reviſion of this article, a diſcretionary power may be veſted in a court martial to inflict *death*, or ſuch other puniſhment as the crime, from the palliating circumſtances attending it, ſhall merit.

Under our third diſtribution of the general head of offences, are thoſe that violate and

tranſgreſs the rights and duties which men owe to their fellow-ſubjects, and which cannot be committed without a manifeſt violation of the laws of nature, of the moral as well as political rules of right, under which may be claſſed murder, ſodomy, and robbery, &c *.

The criminal laws of England, as well as our martial laws, annex to theſe crimes capital puniſhments; but to the crime of homicide, there is in the former a diſcrimination of the degrees of guilt, which divide it into *manſlaughter* and *murder*; the difference between them principally conſiſts in this, that manſlaughter (when voluntary) ariſes from the ſudden heat of the paſſions—murder, from the wickedneſs of the heart †.

Manſlaughter is therefore thus defined ‡, the unlawful killing of another without malice, either expreſs or implied; which may be either voluntarily upon a ſudden heat, or involuntarily, but in the commiſſion of ſome unlawful act. Theſe were cal-

* Articles of War, 27, 28, 29. App. No. I.
† Black. Com. b. iv. c. 14.
‡ 1 Hale, P. C. 466.

led

led in the gothic conſtitution, "*Homicidia* "*vulgaria quæ aut caſu, aut etiam ſponte* "*committuntur, ſed in ſubitaneo quodam ira-* "*cundiæ calore et impetu**." Hence there can be no acceſſaries before the fact, becauſe it muſt be committed without premeditation.

If, upon a ſudden quarrel, two perſons fight, and one of them kills the other, this is voluntary manſlaughter; and ſo it is if they, upon any occaſion, go out and fight in a field—for this is one continued act of paſſion †. So alſo, if a man reſents the provocation of being pulled by the noſe, and immediately kills the aggreſſor, it is not *murder*, for there is no previous malice in it; but it is *manſlaughter* ‡. But in this, and in every other caſe of homicide, if there be ſufficient time for paſſion to ſubſide, and reaſon to interpoſe, it amounts to *murder* §.

Involuntary manſlaughter differs from homicide, excuſable by miſadventure in this,

* Stiernh. *de jure Goth.* lib. iii. c. 4.
† 1 Hawk. P. C. 82.
‡ Kelyng, 135.
§ Foſter, 296.

that

that miſadventure always happens in conſequence of a lawful act, but this ſpecies of manſlaughter in conſequence of an unlawful one *.

Thus, when a mariner, being employed in rigging or unrigging a ſhip or other duty aloft, and without orders, or giving warning, throws down any blocks, or other ſtores upon deck, and thereby kills an officer or ſeaman, ſuch unwarrantable action would be conſtrued either murder, or involuntary manſlaughter †, according to the circumſtances which would come out before the court martial; for this offence of involuntary manſlaughter being, with many others, not ſpecified in the articles of war, would be puniſhed agreeably to the principle before laid

* Black. Com. b. iv. c. 24.

† Our ſtatute law has ſeverely animadverted on this ſpecies of criminal negligence, whereby the death of a man is occaſioned. For, by Stat. 10 Geo. II. c. 31. if any waterman between Graveſend and Windſor, receives into his boat or barge, a greater number of perſons than the act allows, and any paſſenger ſhall then be drowned, ſuch waterman is guilty (not of manſlaughter), but of felony, and ſhall be tranſported as a felon.

down,

down, in ſuch comparative manner as is pointed out by common law.

With regard to the *puniſhment* of this degree of homicide, the crime of manſlaughter, occaſioned by an act where no more was intended than a mere civil treſpaſs, amounts to felony, but within the benefit of clergy; and the offender ſhall be burnt in the hand, and forfeit all his goods and chattels *.

Indeed, *groſs negligence* is in the law ſaid to be almoſt equal to malicious deſign, *lata culpa prope dolum eſt.* And when any unhappy conſequences enſue from ſuch neglect, the thoughtleſs and careleſs conduct of the perſon who has been guilty of it, is conſidered in an atrocious light, and liable to the ſevereſt puniſhment. By the laws of many countries, involuntary manſlaughter, occaſioned by unwarrantable neglect, is liable to the laſt puniſhment; and though (as an elegant moral writer obſerves †) this is no doubt exceſſively ſevere, yet it is not altogether inconſiſtent with our natural ſentiments.

* Black. Com. b. iv. c. 14.

† Smith's Theory of Moral Sentiments, vol. i. p. 253.

Another ſpecies of manſlaughter, the offence of *mortally ſtabbing* another, though done upon ſome ſudden provocation, is puniſhed, by our laws, as murder. For, by Stat. 1 James I. c. 8. when one thruſts or ſtabs another not then having a weapon drawn, or who hath not then firſt ſtricken the party ſtabbing, ſo that he dies thereof in *ſix months* after, the offender ſhall not have the benefit of clergy, though he did it not of malice aforethought.

The puniſhment annexed to the crime of deliberate and wilful murder, is univerſally, and throughout the world, *death*.

In different countries it is inflicted in various forms, and with different degrees of torture. The wheel, the axe, and the knife, are employed as dire inſtruments of expiation.

But the benignity of our laws admits only of the privation of life. By Statute 25 George II. c. 37. the judge before whom any perſon is found guilty of wilful murder, ſhall pronounce ſentence immediately after conviction, and direct him to be executed the next day but one (unleſs the ſame ſhall

ſhall be Sunday, and then the Monday folfowing), the body to be delivered to the ſurgeons to be diſſected and anatomiſed, and the judge may direct his body to be afterwards hung in chains, but in nowiſe to be buried without diſſection *.

The beſt mode of inveſtigating the nature of the crime of murder, when it falls to be tried before a court martial, will be, by conſidering its ſeveral definitions and diſcriminations of guilt, as laid down by our firſt lawyers, and which ſhall be treated of in its proper place †.

The infamous crime ſo diſgraceful to human nature, recited in the 29th article of war, is puniſhed by our criminal laws in the ſame manner as other felonies, by hanging the tranſgreſſor. But Blackſtone juſtly obſerves, it is an offence of ſo dark a nature, ſo eaſily charged, and the negative ſo difficult to be proved, that the accuſation ſhould

* Foſt. 107.

† By Stat. 2 Geo. II. c. 21. murder is not cognizable by a court martial, when any perſon dies in England, in conſequence of blows or poiſon received at ſea or abroad, or *vice verſa*, dies at ſea or abroad, in conſequence of blows or poiſon received in England.

be clearly made out; for if falſe, it deſerves a puniſhment inferior only to that of the crime itſelf.

In the few inſtances of accuſation of this nature, brought before naval courts martial, that have not been clearly and poſitively proved, the proſecutors have been ſtigmatized in the ſentences paſſed, by the court's declaring the charges malicious, vexatious, oppreſſive, and ill-founded—a trivial compenſation for the accuſation of a crime of ſo black a nature! ſo eaſily charged by ill-diſpoſed perſons, and which the delicacy of our Engliſh laws treats, in its very indictments, as a crime not decent, or fit to be named. "*Peccatum illud horribile, inter Chriſtianos non nominandum.*"

The crime of *robbery*, by the 30th article of war, is made puniſhable with death, or otherwiſe, as a court martial, upon conſideration of circumſtances, ſhall find meet. In this article there is no mention of theft, though the law of England makes a nice diſtinction between robbery and theft, by defining the former *, the felonious and

* Black. Com. b. iv. c. 14.

forcibly

forcibly taking from the perſon of another, of goods or money to any value, by *violence, or putting him in fear* *;—and this is the criterion that diſtinguiſhes robbery from other larcinies;—the latter, the felonious taking and carrying the goods of another, either from his perſon or houſe, and diſtinguiſhed into two ſorts—ſimple and compound larciny. Simple larciny is the taking and carrying away goods, and is called *petit*, if under the value of a ſhilling, and *grand*, if above that ſum. Compound larciny is aggravated, by taking the goods or money from one's houſe or perſon. The puniſhment, however, annexed to this laſt ſpecies of theft by various ſtatutes, is not ſo ſevere, as that annexed to robbery, which is always made capital.

The offences ſtrictly military, and as ſuch peculiar to martial law, falls under our 4th and laſt diſtribution of general heads. They are recited in the 10th, 11th, 12th, 13th,

* 1 Hawk. P. C. 95.

14th,

14th, and 17th articles of war*; and, in comparing the puniſhments annexed to them with thoſe of other nations, we ſhall even find a greater degree of lenity pervade our own martial laws, than thoſe of the ancients or moderns. The 12th and 13th articles, as they formerly ſtood, by reſtraining the power of a court martial to the poſitive inflicting of the puniſhment of death, in the caſes therein mentioned, of cowardice, negligence, or diſaffection in time of action, &c. were deemed extremely ſevere, and attended with peculiar hardſhips and inconveniencies†. It was therefore, by Statute 19 George III. c. 17. §. 3. explained and amend-

* Vide articles of war, Appendix, No. I.

† The unfortunate Admiral Byng fell under ſentence of death for a breach of part of the 12th article, though he was acquitted of cowardice or diſaffection, the moſt odious and heavieſt branches of it, and the court could not reſiſt expreſſing, in the body of the ſentence, the hardſhip of the caſe, in the following words: "As that article (alluding to the 12th) poſitively preſcribes death, without any alternative left to the diſcretion of the court, under any variation of circumſtances, the court do therefore unanimouſly adjudge the ſaid Admiral John Byng to be ſhot to death." See ſentence, Appendix, No. XXXIV.

ed,

ed, whereby it is now lawful for a court martial to pronounce ſentence of death, or *to inflict ſuch other puniſhment as the nature and degree of the offence therein recited ſhall be found to deſerve* *.

* Vide ſections of acts of parliament relative to courts martial, Appendix, No. II. §. 15.

CHAP.

CHAP. IV.

Of Courts of Enquiry, and Courts Martial, as at preſent eſtabliſhed in the Navy.

THOUGH no articles of war, or acts of parliament, authorize courts of enquiries, either in the army or navy, yet, from various precedents and cuſtoms long eſtabliſhed, they have become an eſſential branch of military and naval juriſdiction.

When we conſider the king as the ſupreme magiſtrate of the kingdom, and veſted with the executive power of the law, and as generaliſſimo, or firſt in military command, and having the ſole power of raiſing fleets and armies *, he appears, *ex officio*, to poſſeſs an undubitable authority to appoint courts of enquiry, where it may be neceſſary to examine into the conduct of in-

* Black. Com. b. iii.

dividuals,

dividuals, and aſcertain what juſtifiable grounds there may be for bringing tranſgreſſors to trial, by the formality of a court martial. And it cannot eſcape the reader, how cloſe an analogy this court bears to the inſtitution of our grand jury; and ſince it is eſtabliſhed for the ſame purpoſe as this much applauded part of our conſtitution, it ſeems entitled to our warmeſt commendation.

It is uſual for the king to appoint courts of enquiry, for examining the conduct of officers of rank in the army, as was done in the caſe of the failure of the Rochfort expedition, in 1756, and the report of the enquiry was the grounds on which Sir John Mordaunt was tried by a court martial. This may be regarded as a royal mark of lenity rather than as a ſeverity, more particulary when we conſider the prerogative of the crown to diſmiſs officers from the ſervice, without giving them the chance of any form of trial.

The lords commiſſioners for executing the office of Lord High Admiral, have, upon ſimilar principles, the power of appointing courts of enquiry in the navy, as being immediately

immediately derived from the crown; but neither the king nor the admiralty have power to inflict any corporal puniſhment for offences, unleſs by ſentence of a court martial. We have, however, many inſtances of the exerciſe of the crown's prerogative in diſmiſſing officers of rank from the ſervice, even after having undergone the tedious forms of trial by a court martial, and acquitted of the charges exhibited againſt them *.

In all doubtful caſes, courts of enquiry are uſeful,

* Admiral Earl of Torrington, in the reign of King William III. was tried at a court martial, in purſuance of a commiſſion from the lords of the admiralty, upon the following heavy charge, founded upon the report of commiſſioners previouſly appointed to enquire into his conduct, viz. *his having, in the engagement with the French off Beachy-head, through treachery or cowardice, miſbehaved in his office, drawn diſhonour on the Engliſh nation, and ſacrificed our good allies the Dutch*; and notwithſtanding the court unanimouſly acquitted his lordſhip wholly of any imputation whatever from his conduct on that occaſion, his commiſſion was ſuſpended, and he never was afterwards employed. As the Earl of Torrington was a peer of the realm, there were ſome difficulties to be got over in conſtituting a court for his trial, and which called forth the attention of the legiſlative bodies at that period. Vide particulars *Appendix*, No. III.

In

uſeful, and the original intent of them appears to have ariſen from a lenient wiſh not to give unneceſſary trouble, either to the perſon whoſe conduct is the ſubject of enquiry, or to the aſſemblage of members neceſſary to compoſe a naval court martial, and which aſſemblage might ſometimes cauſe delays highly injurious and detrimental to the ſervice.

A court of enquiry, by examining the evidences produced on both ſides in a ſummary manner, *viva voce*, is diveſted of all that formality and procraſtination incident to a court martial, and withal attended with leſs inconvenience to the ſervice, by having fewer members *.

Indeed

In July, 1702, Sir John Munden, rear admiral of the red, was tried at a court martial, in purſuance of a commiſſion from Prince George, then lord high admiral, upon ſeveral charges exhibited againſt him, of miſcarrage and neglect, in intercepting a ſquadron of French ſhips bound to the Weſt-Indies; and notwithſtanding the court acquitted him, and gave their opinion that he had complied with his inſtructions, and behaved himſelf with great zeal and diligence in the ſervice, Queen Anne diſmiſſed him.

* Three members are generally deemed ſufficient at courts

Indeed it is a ſubject of regret, that courts martial are frequently aſſembled for trivial offences, and the charges ſometimes unſupported by proof, and being thereby rendered too familiar to the minds of officers and ſeamen, loſe that ſolemnity and efficacy intended by the legiſlature. In this light courts of enquiry muſt be deemed uſeful, even by thoſe who animadvert on their legality, as few or none ever eſcape puniſhment that are brought to trial at a court martial, in conſequence of charges grounded on the previous report or opinion of a court of enquiry.

No oath is adminiſtered to the members or witneſſes at a court of enquiry as at a court martial; and many people have queſtioned even the legality of any witneſs being obliged to give teſtimony, or the perſon, whoſe conduct is the ſubject of enquiry, being bound to plead before a court of en-

courts of enquiry, but where the matter is important, it is uſual in the navy to have five members. In the army they have ſeldom more than three. On the failure of the Rochfort expedition, the king appointed the Duke of Marlborough, Lord Sackville, and Major General Waldegrave to make the enquiry.

quiry,

quiry, and for this obvious reaſon, that it might be more favourable to reſerve his evidence, and the palliating circumſtances of the accuſation, until a legal court was conſtituted. Hence the report or opinion of a court of enquiry upon circumſtances thus ſuppoſed, ſuperficially inveſtigated, has been often complained of by the perſon ſubſequently brought to trial, as having a tendency to bring forward a charge againſt himſelf, or make unfavourable impreſſions on the minds of his judges. It is admitted, that there may be ſtrong reaſons of complaint againſt the report or opinion of a court of enquiry, upon which the ſubſequent trial by court martial is founded, ſhould the perſons appointed to make the enquiry ſtate the cauſes of ill conduct, or enter into a detail of circumſtances that are apparently againſt the perſon whoſe conduct is the ſubject of enquiry. But when the report or opinion ſimply indicates, that there appears *ſufficient cauſe or grounds to render a court martial neceſſary*, and when it is conſidered, that the members compoſing the court of enquiry are not entitled to ſit as judges of the court

martial, upon the ſame principle as the members of the grand jury are not allowed to be empannelled into the ſubſequent petty jury on the ſame cauſe*, it ſurely then cannot operate againſt the individual tried thereat; for though an opinion formed from the ſtriking circumſtances of the matter before the court of enquiry, may be ſubmitted to the judgment of thoſe who delegate the power for aſſembling a court martial, there can be no direct implication of guilt, until the individual has had a fair opportunity of exculpating himſelf, by the croſs-examination of the proſecutor's evidence upon oath, when it comes to be inveſtigated at a court martial, as well as thoſe witneſſes he may have to produce in ſupport of his defence.

It muſt be acknowledged, that courts of enquiry are uſeful in adjuſting diſputes ariſing between officers, and reconciling all differences and animoſities that may occur in ſervice, amidſt the various tempers and caprices of men. Theſe often are of ſuch a nature, that nothing criminal can perhaps be

* Black. Com. b. iv.

imputed

imputed to either party, if brought before a court martial; and courts of enquiry, in ſuch caſes, prevent much unneceſſary trouble, and do not materially retard or obſtruct the ſervice.

Notwithſtanding what we have advanced reſpecting the extreme utility of courts of enquiry, and the invariable practice hitherto adopted, of returning a report or an opinion to the ſuperior power, by whoſe authority they are held, yet we may preſume to hazard an opinion, that if the members of a court of enquiry were ordered only to communicate the examination of the witneſſes, without giving any opinion on the matter in queſtion, the ſupreme power could then judge of the propriety of ordering a court martial, and it would be more congenial with the ſpirit of our conſtitution, and in ſome meaſure do away the animadverſions hitherto made upon courts of this nature, being deemed arbitrary, of ambiguous authority, and having no foundation in law.

Of Courts Martial.

ALTHOUGH the legality of martial law, as exerciſed by the army, has been queſtioned by ſome of our ableſt lawyers*, yet the authority by which our naval courts martial are held, is as permanent and indubitable as any other courts of judicature in the kingdom, as being eſtabliſhed by parliament and derived from the crown. The king has the prerogative of pardoning and remitting puniſhment; but he can no more alter the ſentence of a court martial, than he can a judgment pronounced in other courts of judicature.

* Sir Edward Coke obſerves, that if a lieutenant, or other that hath commiſſion of martial law, doth, in time of peace, hang, or otherwiſe execute a man by colour of martial law, this is murder, for it is againſt *Magna Charta*, 3 Inſt. 52; and Sir Matthew Hale declares martial law to be in reality no law, but ſomething indulged rather than allowed as a law; that the neceſſity of order and diſcipline is the only thing which can give it countenance, and therefore it ought not to be permitted in time of peace, when the king's courts are open for all perſons to receive juſtice according to the laws of the land. *Hale's Hiſt. of the Com. Law*, c. 2. And if a court martial put a man to death in time of peace, the officers are guilty of murder. *Hale's Pleas of the Crown*, p. 46.

That

That the royal prerogative may be exerciſed on all occaſions, in diſmiſſing officers from the ſervice without putting them to the form of a trial, is unqueſtionable; and we have already ſhewn that officers of rank in the navy have been diſmiſſed, even after having been tried by a court martial, and acquitted of the charges exhibited againſt them *.

Among the many reaſons that have been at different times urged againſt trials by courts martial in our naval ſervice; there is none, upon a ſlight conſideration, appears more cogent and conſtitutional than that of the inferior officers and ſeamen not having the privilege of being tried by their peers or equals; for, by the act of parliament †, no court martial to be held or appointed, ſhall conſiſt of more than thirteen or leſs than five perſons, to be compoſed of ſuch flag officers, captains, or commanders, then and there preſent, as are next in ſeniority to the officer who preſides at the court martial.

* The Caſe of Admiral Earl of Torrington and Rear Admiral Sir John Munden. See Notes, p. 46 and 47.

† Stat. 22 Geo. II. cap. 33. See Abſtract of Clauſes, Appendix, No. II. ſect. 12.

But, upon a cloſer review of the ſubject, it will appear impracticable here to introduce this right, ſo ſtrongly contended for, without at once altering the whole fabric of the inſtitution; for if the inferior officer be admitted on the trial of an inferior officer, why not a ſeaman on the trial of his brother ſeamen? And it is obvious to every perſon, acquainted with the practical parts of a naval life, that this meaſure would prevent the end of its formation, and by a confederacy between the parties, the power of puniſhment would be annihilated, and ſubordination, the very ſoul of diſcipline, be deſtroyed.

We muſt recollect too, that a jury ſo formed, would be in direct oppoſition to the principle of impannelling juries in our courts of law, where impartiality and diſunion of intereſt are the leading features.

In the preſent mode of forming courts martial, a powerful objection is raiſed as to the admittance of ſeamen, ſince their education and ſubordinate ſituations would be incompatible with the dignity and ſolemnity of a court, where the characters of judge and jurors are neceſſarily blended.

It

It has been urged likewiſe, that officers below the rank of captains in the navy have not the ſame privileges as their brother officers in the army, who ſometimes ſit as members of a general court martial, provided a ſufficient number of field officers and captains cannot be conveniently aſſembled*; and that a captain in the army, and four, or even two ſubalterns, may conſtitute a regimental court martial†. But whether any innovations, by adopting any ſpeculative meliorations of this nature in the navy, would be more efficacious than the preſent mode *eſtabliſhed*, is problematical. To inſtitute an inferior, or, what may be termed a diviſional court martial, ſubject to appeal in the navy, analogous to the regimental courts in the army, we apprehend, would not be adequate to the ends propoſed; when it is conſidered, that according to the ancient practice of the ſea, and as eſtabliſhed by the 4th article of the General Printed Inſtructions, under the head *Rules of diſcipline and good government to be obſerved on board his majeſty's ſhips of war*, a

*Adye's Treatiſe on Courts Martial, p. 88.

†Ibid. p. 89.

captain or commander of any of his majeſty's ſhips or veſſels, has the power of inflicting puniſhment * upon a ſeaman in a ſummary manner for any faults or offences committed contrary to the rules of diſcipline and obedience eſtabliſhed in the navy: this power the

* By the 4th article of the Inſtructions, under the head of Rules and Diſcipline, &c. a captain is not to puniſh a ſeaman beyond 12 laſhes upon his bare back, with a cat-of-nine-tails; but if the fault ſhall deſerve a greater puniſhment, he is to apply for a court martial. And though captains frequently puniſh by inflicting two or three dozen of laſhes at a time, when the offence is attended with aggravating circumſtances, or where it is of ſuch a nature as to fall under different articles; and upon this latter conſtruction, an unhappy ſeaman may be puniſhed with three dozen for getting drunk, which offence falls under the 2d article, and in that ſtate may diſobey his officer, and quarrel or fight with ſome perſon in the fleet, which brings him under the 22d and 23d articles; yet, by adhering to the literal import of the printed Inſtructions, no more than one dozen of laſhes can be legally inflicted by a captain for the fault. It is juſtifiable *only* from ancient practice and the uſage of the navy, and may even be deemed lenity in a commander to puniſh, occaſionally, offenders with two or three dozen laſhes, rather than bring them to a court martial.

framers

framers of our naval articles and orders wiſely conſidered preferable to eſtabliſhing inferior courts martial for trying trivial offences, as calculated leſs to obſtruct his majeſty's ſervice at ſea, and as carrying more promptly into execution the rules and articles laid down for its regulation.

By the 36th article of war it is declared, "That all other crimes, not capital, committed by any perſon or perſons in the fleet which are not mentioned in this act, or for which no puniſhment is hereby directed to be inflicted, ſhall be puniſhed according to the laws in ſuch caſe uſed at ſea."

In this article we ſee the defects of human wiſdom diſcreetly ſupplied and anticipated by a general or ſweeping clauſe, applying itſelf to the puniſhment of theſe offences which were not foreſeen by the legiſlature at the time of legiſlation, and which could not therefore be ſpecifically provided againſt; and in order that juſtice may not be retarded in its courſe, nor offences paſs with impunity, the old ſtanding cuſtoms and uſage of the ſervice are directed to be reſorted to, in

in like manner as the unwritten law is made auxiliary to the ſtatute*.

All courts martial are to be held and offences tried in the forenoon, and in the moſt public part of the ſhip, where all who will may be preſent, and the captains of all his majeſty's ſhips in company which take poſt, have a right to aſſiſt thereat†.

All complaints at ſea, or in foreign parts, upon which the ſummoning a court martial is to be grounded, ſhall be made in writing to the commader in chief (unleſs where the ſaid

* The caſe of Leonard and Shields, very recently adjudged in the court of Common Pleas, has given peculiar energy to the above cited article. This action was brought for an act of violence upon the perſon of the plaintiff (a midſhipman), in conſequence of his diſobedience to an order of the defendant (his commanding officer), and which order was, in itſelf, of the nature of puniſhment, but founded upon the uſage of the ſervice. The learned judge obſerved, that the cuſtom of the ſervice juſtified the order and rendered the ſame legal, therefore the diſobeying ſuch legal order, juſtified the meaſures taken to enforce it or put it in execution. The jury therefore, without heſitation, returned a verdict for the defendant.

† Printed Inſt. under the head of Courts Martial, Art. 4.

commander

commander in chief ſhall ſee cauſe of himſelf to call the ſame), in which are to be ſet forth, the particular facts, with the place, time, and in what manner they were committed; and if any captain who is entitled by his rank to ſit in the court be perſonally concerned in the matter to be tried, he ſhall not be admitted to ſit at the trial *. Here we diſcover again the wiſdom and precautions of the common law cloſely adhered to; it being an unalterable rule of law, that no man can ſit as judge in his own cauſe.

The commander in chief is to order the judge advocate to ſend, timely before the trial, an atteſted copy of the charge or accuſation to the party accuſed, in order to his being better prepared for his defence, in conformity to the indulgence allowed at common law, where a copy of the indictment is given the priſoner; the judge advocate is to examine the witneſſes upon oath, and take down their depoſitions in writing †; he is to

* Printed Inſtructions under the head of Courts Martial, Art. 4.

† Ibid. 5.

take

take minutes of the proceedings, in order that the members may recur to them occaſionally, and to adviſe the court of the proper forms when there ſhall be occaſion, and to deliver his opinion in any doubts or difficulties in the methods that may ariſe in the courſe of trial *.—The proceedings of no court martial is to be delayed by the abſence of any of its members, when a ſufficient number doth remain to compoſe ſuch court, which is required to ſit from day to day (Sunday always excepted), until the ſentence be given.—And no member ſhall abſent himſelf from the ſaid court, during the whole courſe of the trial, upon pain of being caſhiered from his majeſty's ſervice; except in caſe of ſickneſs, or other extraordinary and indiſpenſible occaſion, to be judged of by the court †.

The members being ſworn, purſuant to the preſcribed form in the act ‡, to admi-

* Printed Inſtructions, under the head of Courts Martial. Art. 6.

† 19 Geo. III. cap. 37. ſect. 1 and 2. Appendix, No. II.

‡ See Abſtract of the Clauſes of 22 Geo. II. ſect. 15. —Ibid.

niſter

niſter juſtice according to the articles and orders eſtabliſhed, without partiality, favour, or affection; and if any caſe ſhall ariſe, which is not particularly mentioned in the ſaid articles and orders, they are ſworn to adminiſter juſtice according to their conſciences, and the beſt of their underſtanding, and the cuſtom of the navy in the like caſes. In order that the minds of the younger members may not be influenced by the opinion of their ſeniors, the ſame form is obſerved as at the trial of a Peer, before the houſe of lords, and likewiſe in determinations of the privy council: for the youngeſt member is to vote firſt, proceeding up in order to the preſident, who votes laſt, and the determination of the court is ſettled according to the majority of voices. But ſhould there be an equal number of votes on each ſide, and the ſeveral members of the court, upon re-conſidering the point at iſſue, adhere to the firſt opinion, the queſtion remains undecided *.

By

* In the court of Areopagus at Athens, as likewiſe among the Romans, we find that the perſon accuſed of

By the act 22 George II. no member of any court martial, after the trial commenced, could go on ſhore, or leave the ſhip, in which the court ſhould firſt aſſemble, until ſentence was given; but it having been found that this reſtraint and confinement of the members had been attended with great inconvenience and prejudice to their healths, and which was ſo ſeverely felt by the members who ſat on Admiral Keppel's long trial, that they were induced to repreſent the hardſhips of the caſe to the lords of the admiralty *, who took the proper meaſures

of any crime was acquitted, when the ſuffrages of his judges were on each ſide equal.—See *Stanyan's Gr. Hiſt.* vol. ii. p. 56. and *Kennet's Antiq. of Rome*, p. 130.—And in the jury of the ancient Goths, there was required only the conſent of the major part; and in caſe of an equality, the accuſed was held acquitted. *Black. Com.* b. iii. c. 23. p. 376.

In the army, determinations of courts martial are likewiſe ſettled by a majority of voices, except in caſes of death, where nine out of thirteen, or two thirds, if there be more than thirteen preſent, muſt concur in opinion.—*Adye's Treatiſe on Courts Martial*, page 45; and *Mutiny Act*, Art. 7.

* Vide Letter to the ſecretary of the admiralty. Appendix, No. V.

to

to remedy the inconvenience. And ſoon after, the clauſe of the act alluded to, was repealed, and made void*; by which all the members are now at liberty to retire upon every adjournment.

By the third article of the printed Inſtructions, under the head of Rank and Command, the firſt captain to the admiral of the fleet ſhall be eſteemed as a rear admiral, and take place at all councils of war, and courts martial, next to the junior rear admiral.

In conſequence of a memorial from the lords commiſſioners of the admiralty†, his late majeſty gave an order in council, eſtabliſhing a firſt captain to flag officers, having the command of a fleet, or ſquadron of twenty ſhips of the line, with the pay and rank of a rear admiral, and all other privileges and profits belonging to the ſaid poſt, in the ſame manner as is allowed to the firſt captain of the admiral of the fleet‡.

* 19 Geo. III. cap. 17. ſect. 1, 2. See Abſtract of Clauſes; Appendix, No. II.

† Third of February, 1747.

‡ Vide Letter from the ſecretary of the admiralty, and order in council. Appendix, No. VI.

But

But as the twelfth ſection of the act, 22 Geo. II. cap. 33. enacts, That no court martial ſhall conſiſt of more than thirteen, or leſs than five perſons, to be compoſed of ſuch flag officers and captains, then and there preſent, as are next in ſeniority to the officer who preſides at the court martial —It has at different periods occaſioned doubts in the minds of the flag officers and captains, aſſembled at courts martial, whether the firſt captain to a flag officer, commanding twenty ſail of the line, was veſted with a right to take place at courts martial next to the junior rear admiral, in preference to captains, ſenior to him on the liſt.—From the peruſal of the caſes of Capt. Kempenfelt, Sir Roger Curtis, and Sir Hyde Parker, with the reſpective opinions of the crown lawyers thereon *. We truſt this point will appear in a light ſo clear and unequivocal, as to put it beyond the poſſibility of doubt in future †.

The

* See the caſes and opinions alluded to, Appendix, No. VI. and No. VII. ſect. 1, 2, 3, 4, 5, and 6.

† It will appear, that the firſt captain to a commander in chief, when by his ſeniority he comes within the number of members directed by the twelfth ſection of the act,

The juriſdiction of courts martial extends to the trial of all offences ſpecified in the articles of war, which may be committed upon the main ſea, or in great rivers only, beneath the bridges of the ſaid rivers nigh to the ſea, or in the haven, river, or creek within the juriſdiction of the admiralty, and which ſhall be committed by perſons then in actual ſervice and full pay in the fleet, or ſhips of war of his majeſty *. Likewiſe to the trial of all ſpies, and all perſons whatſoever who ſhall come and be found in the nature of ſpies, as ſpecified in the fifth article of war, as well as to the trial of every perſon who ſhall be guilty of mutiny, deſertion, or diſobedience to any lawful command, in any part of his majeſty's dominions on ſhore, when in actual ſervice, relative to the fleet, and for crimes committed on ſhore by

act, to compoſe a court martial, has a right to take place next to the junior rear admiral.——Capt. Kempenfelt and Sir Hyde Parker were within the number; but the caſe was otherwiſe with Sir Roger Curtis, though captain to an admiral of the fleet, as by his ſeniority on the liſt he did not come within the thirteen members directed to compoſe the court martial on the late trial of Lieutenant Bligh.

* 22 Geo. II. cap. 33. ſect. 4. Appendix, No. II.

ſuch perſons in any places out of his majeſty's dominions, as are more fully ſpecified in the thirty-fourth and thirty-fifth articles of war *.

Murders are cognizable by courts martial only in caſes where the ſtroke or poiſon is given on board ſhip, and the perſon dies in conſequence thereof on board. But in order to prevent any failure of juſtice, and to take away all doubts touching the trial of murder, it is enacted, by Statute 2 Geo. II. cap. 22. "If any perſon be ſtricken, or poiſoned at ſea, or abroad, and die in England, or if ſtricken or poiſoned in England and die at ſea, or abroad, the murderer and acceſſaries are to be given up to the civil power, and may be indicted and tried in that county where the ſtroke or poiſon occaſioning the death happen †."

Courts martial can likewiſe take cognizance of crimes committed by warrant officers, or men belonging to ſhips in ordinary,

* Vide Articles of War. Appendix, No. I.

† Vide Caſes and Opinion relative to Murder. Appendix, No. VIII. ſect. 1, 2, 3, 4, 5.

of

of which there have been ſeveral precedents *.

But courts martial cannot take cognizance of offences committed by maſters, mates, or ſeamen belonging to navy tranſports, as they are perſons not ſubject to naval diſcipline. They are intitled to be diſcharged, in time of peace or war, on their own application.—The articles of war, and abſtract of the act of parliament, are never ſtuck up or read on board of navy tranſports. And though the officers and men receive their wages quarterly at the yards, in the ſame manner as the officers and men of his majeſty's ſhips in ordinary; yet there is a broad line to be drawn between them.

The very recent caſe of the mate and four ſeamen, belonging to the Plymouth navy tranſport, with the different letters and opinions thereon, having thrown ſome new lights on the ſubject, we refer the reader to the intereſting documents, annexed to the ſubſe-

* Vide Caſe and Letter from Mr. Corbett, late ſecretary of the admiralty. Appendix, No. IX. ſect. 1, 2.

quent part of this work, for an ample detail of the circumſtances *.

No perſon can be tried for any offence, unleſs the complaint is made in writing, and that a court martial is ordered within three years after the offence ſhall be committed, or within one year after the return of the the ſhip to which the offender belongs, into any of the ports of Great Britain or Ireland, or within one year after the return of ſuch offender.

All commiſſions or general powers for holding courts martial, are to be underſtood to be in force no longer than during the expedition †.

When the commanding or ſenior officer in foreign parts, is, from the cauſes ſpe-

* Vide Letters and Opinions. Appendix, No. X. ſect. 1, 2, 3, 4, 5, 6, 7, and 8.

† Sir Walter Raleigh, when appointed governor of Guiana, had a power rarely entruſted to our admirals now, *viz.* that of exerciſing *martial law*, in ſuch manner as the king's lieutenant general by ſea or land, or any of the lieutenants of the counties of England, had. —*Campbell's Admirals*, vol. i. p. 817.—*Hackluyt*, vol. iii. p. 733.

cified

cified in the 9th and 14th ſections * of the act of 22 Geo. II. obliged to preſide at a court martial, the form of the order which he iſſues for aſſembling ſuch court, differs from that coming from the admiralty, or from a commander in chief, directed to the ſecond or third in command †.

By the ſaid fourteenth ſection of the act, a court martial cannot be held at any place, where there are not leſs than three officers of the degree and denomination of a poſt captain, to make up the number of five captains and commanders to compoſe a court martial.

And Judge Bathurſt is clearly of opinion ‡, that a court martial may be regularly appointed at any place where there are three poſt captains preſent, and one of theſe at the time commanding a ſloop only.—The ſixth article of the printed Inſtructions, under the head of Rank and Command, directs "commanders of fire-ſhips, ſloops, yachts, bomb

* See Sections of Acts of Parliament relative to Courts Martial. Appendix, No. II.

† See Form of Order. Appendix, No. XXIV. ſect. 2.

‡ See Caſe and Opinion. Appendix, No. XI.

veſſels, hoſpital ſhips, ſtore ſhips, and other veſſels, though they may have commanded ſhips of poſt before, ſhall be commanded by junior captains in ſhips of poſt, while they keep company together, either in port or at ſea, but without prejudice to their ſeniority afterwards."

But though this article deprives them of their ſeniority for the time they command any of the fore-mentioned ſhips and veſſels, it does not expreſsly deprive them of the *rank* and *degree* of *poſt captain*, even for that time. It is therefore, by the conſtruction of the article, obvious, that theſe commanders are to be conſidered as the junior poſt captains, and, as ſuch, may take place at a court martial.

It is unneceſſary, in this place, to make farther comments on the crimes cognizable by a court martial, or upon the articles of war, and different ſections of the act of parliament eſtabliſhing courts martial, with which every naval officer is preſumed to be well acquainted. But as it is a matter ſo eſſentially important to our ſervice, as well as to the individual members who may ſit at courts

courts martial, to have a competent knowledge of the legal forms of proceeding againſt offenders, we ſhall endeavour, in the ſubſequent chapters of this work, as well as in the appendix of forms and opinions at the end, to follow the order and courſe of the proceedings themſelves, as the moſt clear and perſpicuous mode of treating the ſubject. And where the act of parliament regulating the proceedings of courts martial is ambiguous, or does not apply, it may not be improper to throw occaſional glances at the proceedings of other courts of judicature in the kingdom, under ſimilar circumſtances, as a rule of conduct to be obſerved at courts martial. This may be deemed an important part of our taſk, ſince we have inſtances on record, of councils of war having been even cenſured by parliament *, for

 deviations

* In 1699, Commodore Norris was cenſured in the following terms, by the houſe of lords, for joining land officers in the council of war, who negatived fighting the French ſquadron off Newfoundland, commanded by M. Pointis. In this council there were thirteen ſea officers and eleven land officers: the commodore and ſeven

deviations in their forms, and for errors in judgment; and the more ſo, when we conſider the many informalities members of courts martial are unknowingly liable to fall into on foreign ſtations, where they may not have the opportunity of being aſſiſted with a judge advocate ſufficiently verſed in the legal forms of proceedings; and this is a conſideration of the greateſt moment, as, in caſe of illegality in the proceedings of a court martial, or apparent partiality in its judgment, or any flagrant abuſe of its authority, the court is not only liable to the ſevere animadverſions of the houſe of commons, but the members of ſuch

ſeven of the captains voted for attacking; but all the land officers, and five ſea officers, voted negatively.

" *Die Lunæ, 17th April,* 1699.

1. " It is reſolved by the lords ſpiritual and temporal in parliament aſſembled, that the ſquadron commanded by Capt. Norris, at St. John's, in Newfoundland, not going out to fight Pointis, upon the ſeveral intelligence given, was a very high miſcarriage, to the great diſ-ſervice of the king and kingdom.

2. " It is reſolved, that the joining the land officers in the council of war, on the 24th July, 1697, was one occaſion of the miſcarriage in not fighting Pointis."—*See Campbell's Admirals,* vol. ii. p. 475.

courts

courts martial, either collectively or individually, are amenable to the laws of their country *. Indeed, ſo provident have the laws of England been framed in favour of the liberty of the ſubject, as well as for the prevention of any arbitrary exertion of power by thoſe to whom the adminiſtration of juſtice is committed, that we have inſtances in hiſtory, of chief juſtices and judges having

* Captain Norris, of the Eſſex, was accuſed by his officers of bad conduct, in the engagement off Toulon, and was brought to a court martial, at Mahon in 1745; but the court, having tranſmitted the proceedings without coming to any determination, Lieut. Jekyl, the proſecutor, and other lieutenants of the ſhip, remonſtrated againſt the treatment they had received from the court martial; and the papers being laid before the houſe of commons, the houſe animadverted on the proceedings, and cenſured them as *partial*, *arbitrary*, and *illegal*.—For farther particulars of this caſe, ſee Appendix, No. XII.

Among the frequent caſes which might be produced, to prove the military power ſubject to the cognizance of the civil, and puniſhable for illegal proceedings, we have a remarkable inſtance in the caſe of Lieutenant Frye, of the marines. The particulars of this extraordinary affair, as obſerved upon by Mr. De Lolme, in his book on the Conſtitution, and in the periodical publications of 1746, we have faithfully collected. Vide Appendix, No. XIII.

been

been impeached by the houſe of commons, and having incurred exemplary puniſhments by the ſentence of parliament, the higheſt of all tribunals, for having ventured to infringe the laws*. Hence it is indubitable, that neither the authority, influence, nor perſonal dignity of the infractors of laws, can ſcreen them from the animadverſions of parliament, whoſe power is ſo tranſcendent, that at times,

† In the reign of Edward the Firſt, Sir Ralph de Hengham, chief juſtice of the King's Bench, was convicted of having committed exactions in office, and fined 7000 marks. Sir Thomas Wayland, chief juſtice of the Common Pleas, had his whole eſtate forfeited, and Sir Adam de Stratton, chief baron of the Exchequer, was fined 34,000 marks.

Under Richard the Second, Sir Robert Treſelian, chief juſtice of the King's Bench, and ſome other judges, were convicted of being inſtrumental, in their judicial capacities, of carrying on deſigns that were ſubverſive of public liberty, and were ſentenced to be hanged. *See Parl. Hiſt. of England*, vol. i.—*De Lolme on the Conſtitution of England*, p. 364.

In the reign of Charles the Second, Sir William Scroggs, lord chief juſtice of the Common Pleas, was impeached by the commons, for partialities ſhewn by him in the adminiſtration of juſtice, and he was removed from his employment. *De Lolme on the Conſtitution*, p. 366.

even

even ſovereignty itſelf has not eſcaped its cenſure *.

* Charles the Second, on the paſſing of the Coventry Act. Vide *Burnet's Hiſt.* vol. i.

One of the laws made by the Emperor Theodoſius II. contains a maxim highly worthy of a monarch. *The ſovereign majeſty*, ſays he, *does itſelf honor, by acknowledging its ſubjection to the law. The power of the laws is the foundation of ours, and there is more honor in obeying them, than in commanding alone without them.* "This," ſays Mr. le Beau, "is the ſublimeſt leſſon that a ſovereign ever gave "to his equals." *Milot's Ancient Hiſt.* vol. ii. p. 451.

CHAP.

CHAP. V.

Of the Duties of a Judge Advocate, or his Deputy, as authorized by Act of Parliament, and general printed Inſtructions, confirmed by the opinions of Counſel at different periods.

THE duties of a judge advocate are defined in ſo general a manner in the act of parliament, and printed Inſtructions, that on different occaſions it has been deemed expedient to have the opinions of counſel. The judge advocate may be ſaid to be the *primum mobile* of a court martial, as not only impelling it to action, but on whom, in a great meaſure, depends that harmony of motion ſo neceſſary to conſtitute a regular court. As being impowered by the printed Inſtructions *, to adviſe the court of the proper

* Vide Inſt. under the head of Court Martial, Art. 6.

forms

forms when there ſhall be occaſion, and to deliver his opinion in any doubts or difficulties in the methods that may ariſe in the courſe of the trial; the legiſlator no doubt intended, that he or his deputy ſhould be a perſon not only ſufficiently verſed in the legal forms of proceedings, but, from what has already appeared in theſe ſheets, he ſhould likewiſe poſſeſs a competent knowledge of the forms of the other courts of judicature in the kingdom; more particularly the forms of trials in criminal caſes, by which courts martial ought to be in a great meaſure regulated on thoſe points where the act of parliament, and printed Inſtructions are ſilent.

The act of parliament directs, that in the abſence of the judge advocate, or his deputy, a court martial ſhall have power and authority to appoint any perſon to execute the office of judge advocate *. And though it is uſual and neceſſary for the preſident, ſome days previous to the trial, to appoint by warrant a perſon to officiate as judge advocate, in order that he may timely ſend to the party accuſed an atteſted copy of

* Act 22 Geo. II. c. 33. §. 20. App. No. II.

the

the charge, collect the evidence in ſupport thereof, ſummon the witneſſes, and all perſons concerned, &c. yet the warrant ought to expreſs the appointment to be by the court, according to the conſtruction of the ſtatute*; and a majority of the members, when the court is aſſembled, ſhould concur in the appointment. Judge Bathurſt is, however, of opinion, that it might not be improper to have this further explained by a new act †.

By the printed Inſtructions ‡, the judge advocate is to examine the witneſſes upon oath, take down their depoſitions in writing, and ſhew the ſame to the commander in chief, who is to order him to ſend timely before the trial an atteſted copy of the charge or accuſation, to the party accuſed.

On important trials, it is cuſtomary for the judge advocate to take preparatory affidavits from the witneſſes in ſupport of the charge againſt a perſon to be tried at a court martial, which affidavits he is to communi-

* Vide Form of Judge Advocate's Warrant, App. No. XXV.

† Vide Caſe, and Judge Bathurſt's Opinion to Query z: App. No. XIV.

‡ Inſt. under the head of Courts Martial, Art. 5.

cate

cate to the commander in chief, and to the preſident of the court martial, but not to the ſeveral other members who may be ſummoned, until they are properly laid, in a judicial manner, before the court martial *.

Neither is it proper that copies of the affidavits in ſupport of a charge againſt a perſon to be tried at a court martial, ſhould be delivered or ſhewn to the perſon accuſed previous to his trial †.

Though a judge advocate may be conſidered in the light of a proſecutor for the crown, it does not from thence follow, that he is to deny every reaſonable aſſiſtance to the priſoner in his defence, either in point of law or juſtice. It is his duty, that the proof both on the part of the crown and the priſoner, ſhould be properly laid before the court. And where any doubtful point might ariſe, he ſhould incline on the part of the priſoner ‡; and nothing ſhould induce him

* Opinion of the Advocate General, &c. Query 3. Appendix, No. XV.

† Vide Opinion of Advocate General, and Solicitor of Admiralty, to Query 7. App. No. XV.

‡ Vide Judge Bathurſt's Opinion, App. No. XIV. Query 1.

to

to omit any circumſtances, in the minutes of proceedings, that might have a tendency to palliate the charges exhibited againſt the party accuſed.

In the deliberations and debates of a court martial, the judge advocate muſt offer his ſentiments and opinion, if required; or if he obſerved any error in point of law, or doubts ariſe, he ought to offer his judgment on the point, for the information of the court; and he ought to communicate every matter or thing that may conduce to a legal deciſion of the points in queſtion *.

As it is his duty to take minutes of all the proceedings of a court martial, which are read to the members, and approved by them, and are atteſted by the judge advocate, and tranſmitted to the admiralty as authentic records; the court cannot, in point of juſtice, deny him ſufficient time for taking them down with deliberation and exactneſs †.

It is likewiſe the duty of a judge advocate

* Vide Opinion of Advocate General, &c. to Query 1. Appendix, No. XV.

† Ibid. to Query 2. Appendix, No. XV.

to

to adminiſter the oath preſcribed to the members *, as well as to the witneſſes produced at any trial by court martial †.

In this place it may not be improper to obſerve, that the members of a court martial are but once ſworn at the firſt aſſembling, though they may continue to ſit for ſeveral days on the trial of different offenders ‡.

Prior to the Statute 22 Geo. II. it was cuſtomary for the judge advocate to adminiſter to the members an oath of the ſame tenor as the preliminary one uſed at this day in the army, viz. "*Well and truly to try and determine the "matter before them, between the king and the "priſoner to be tried.*" The tenor of this oath occaſioned doubts in the minds of ſome of the members of the court martial, aſſembled for the trials of Capt. Burriſh and other

* St. 22 Geo. II. cap. 33. ſect. 16. Appendix, No. II.

† Ibid. ſect. 26.

‡ The ſame takes place at general courts martial in the army; and, in courts of law, the judges have the oaths adminiſtered to them but once, which is when they firſt receive their appointment; but the jurors are ſworn on every different trial.

officers, Whether the court could legally defer paſſing ſentence upon Capt. Burriſh, till they had gone through the whole evidence relating to all the other captains, accuſed of ſimilar offences, in relation to the engagement off Toulon; but from the opinion of the crown lawyers, it appears to have been then agreeable to practice * (and ought to be invariably purſued) for the court to determine on the ſentence to be given upon trials for capital offences, before they proceed to any other trial for offences of the like nature. And the court cannot, by law, admit the evidence given at any enſuing or preceding trial, to have any weight in forming their judgment, and giving ſentence, upon the trial of the perſon then before them †.

Challenges,

* Vide Opinion. Appendix, No. XV. ſect. 2.

† When a court martial is aſſembled for the trial of officers, on ſpecific articles of charges, on a general accuſation, it is uſual to give ſeparate ſentences, as was done in the trials of the officers accuſed of not having done their duty in the engagement off Toulon.—See particulars relating to the articles of Charges and Sentences, in Appendix, No. XVII.

But

Challenges, or objections by the party accuſed to the members of a court martial, is very unuſual in the navy, and we have ſcarcely an inſtance of it on record ſince the amendment of the act regulating courts martial. Prior to that period, and when a greater number of captains ſat at courts martial, than as at preſent eſtabliſhed, we have ſeveral inſtances of objections being made to particular members. Admiral Matthews, on his trial, objected to Captains Legge, Rentone, and Hamilton being admitted to ſit as judges or members of the court, and ſtated, *inſtanter*, the reaſons upon which his challenge was founded; and though the members of the court had in effect over-ruled them, by proceeding to read the charge, yet, diffident of their acting with propriety, they wrote to the admiralty, and requeſted their

But when any general charge of mutiny is exhibited againſt officers or ſeamen, it is the practice to try them ſeparately—enter the judgment of the court upon the minutes, and make one ſentence ſerve for all; ſpecifying the reſpective puniſhments to be inflicted, and the reſpective acquitals.—Vide Sentence, App. No. XXXIV. ſect. 3.

lordſhips' determination upon the validity of the objections. And it appears from the ſecretary of the admiralty's letter, that the admiral's objections were ill-founded *. And though neither the articles of war, nor the ſtatutes, make the leaſt mention of any privilege of this kind being allowed a priſoner at courts martial, yet it ought not from thence to be inferred, that he is to be totally reſtricted in aſſigning juſt cauſe why a particular member ſhould not ſit upon his trial; at the ſame time it is obvious, that it would be highly detrimental to the ſervice to allow challenges to be made to members of a court martial, the ſame as is done to jurors in common law †. By the laws of England, in the time of Bracton and Fleta, a judge might be refuſed for good cauſe; but now the law is otherwiſe, and it is held that judges and juſtices cannot be challenged ‡; for

* See Letter from Mr. Corbett on the ſubject. Appendix, No. XVIII.

† Jurors may be challenged by either party, before they ſhall be ſworn, and are diſtinguiſhed into various forms of challenges. Black. Com. vol. iii. p. 361.

‡ Coke upon Littl. 294.

the

the law will not ſuppoſe a poſſibility of bias or favour in a judge, who is already ſworn to adminiſter impartial juſtice. And ſhould the fact at any time prove fragrantly otherwiſe, the delicacy of the law will not anticipate it; yet it is not to be doubted, that ſuch miſbehaviour would draw down a heavy cenſure from thoſe to whom the judge is accountable for his conduct *.

But upon the principles that members of a court martial are both judges of the law and the fact, and as ſuch to be conſidered in the double and compound capacity of judges and jurors, and amenable to the laws of their country for any flagrant partiality or illegality in their proceedings; they ought to be extremely delicate and cautious of rejecting any challenges, or objections made by a priſoner, previous to the court's being ſworn, without firſt admitting him to ſhew cauſe; as upon a conſideration of the reaſons aſſigned for ſuch challenge not being ſufficiently valid, a majority of opinion may

* Black. Com. vol. iii. p. 361.

always over-rule it, and afterwards proceed on the trial.

There are many cauſes for which a juror in a court of law may be challenged; but there are very few of a valid nature, upon which any member of a court martial might be challenged by a priſoner.—A moſt obvious cauſe of challenge, and which it would be the duty of a judge advocate to anticipate, may be made againſt any officer ſitting at a court martial, that had previouſly ſat at a court of enquiry, and had given his opinion on the matter at iſſue.—The validity of this objection is founded upon the ſame principles of reaſon, as the exceptions againſt a grand juror, who has found an indictment, and therefore cannot ſit, as one of the petty jury, upon a trial of the ſame cauſe *.

Though, in courts of law, it is admitted a good challange on the part of the priſoner, that the juror hath a claim to the forfeiture which ſhall be cauſed by the party's conviction †; yet it is doubtful, and we appre-

* Coke upon Littleton, 157.

† State Trials, vol. i. fol. 502.

hend

hend a ſimilar objection would not be admitted as a juſt cauſe againſt any member of a court martial, who might be the next for rank or promotion, by the probability of the party accuſed forfeiting his commiſſion, or being diſmiſſed from his ſhip.

Though the words of the twelfth ſection of the ſtatute* are, "That no court martial "ſhall conſiſt of more than *thirteen*, or leſs "than *five* perſons, to be compoſed of ſuch "flag-officers, captains or commanders, then "and there preſent, *as are next in ſeniority* to "the officer who preſides."—It cannot admit of the conſtruction, that the *next in ſeniority* to the preſident, who happens to be preſent, ſhould attend in order, notwithſtanding any impediment whatever. This would be found detrimental to his majeſty's ſervice, by rendering it extremely difficult to make a court; but alſo contrary to the general tenor of the act, which appears to be calculated to expedite juſtice, as much as poſſible, by permitting five captains to conſtitute a court, and by allowing even com-

* 22 Geo. II. cap. 33. ſect. 12. Appendix, No. II.

manders to aſſiſt, when a ſufficient number of poſt-captains are not to be found *.

And as there is an expreſs power veſted in the court, by the fifteenth ſection of the ſtatute †, to diſpenſe with the preſence of any member, provided a juſt and ſufficient cauſe be aſſigned before a trial is begun, the court may proceed to buſineſs if the remaining number of qualified officers be ſufficient to conſtitute a court martial; and that the judge advocate has entered in the minutes, that the abſent and ſenior officers have certified the preſident, by letter or otherwiſe, of their inability to attend through ill health. And even after trial is begun, the court may diſpenſe with the preſence of any member, and ſuffer him to go on ſhore (in caſe of illneſs), and continue the proceedings of the trial, at the ſeveral adjournments, while the qualified number remain to conſtitute a court ‡. But the addition of new members will not be proper, unleſs ſuch

* 22 Geo. II. cap. 33. ſect. 14. Appendix, No. II.
† Ibid. ſect. 15. with amendment. App. No. II.
‡ See Dr. Harris's Opinion, Appendix, No. XIX.

perſons

perſons ſhould hear, or be well informed of the evidence given before their attendance *.

Notwithſtanding the above reaſonable conſtruction of the ſtatute, and the power veſted in the preſident and members of a court martial, to diſpenſe with members on *juſt and ſufficient cauſe*, we find that the members of a court martial on Capt. Bromedge would not diſpenſe with the attendance of Rear Admiral Edwards and Capt. Balfour, two of its members, even upon a repreſentation of the urgency of the king's ſervice †, and when eleven members would have ſtill remained to carry on the proceedings, and paſs ſentence.

The lords of the admiralty approved of the application to diſpenſe with the above two members; but the court were of opinion they had no power to determine upon it. But if the ſufficiency of the cauſe be admitted, with all deference to the opinion of

* See the Advocate and Solicitor General's Opinions. Appendix, No. XV.

† See Admiral Sir Thomas Pye's Letter, ſtating the caſe to the admiralty. Appendix, No. XX.

the

the reſpectable members compoſing the court, it is conceived, that from the literal import of the ſection of the ſtatute already quoted *, they were legally impowered to diſpenſe with the two members, and to continue holding the court every day, by adjournments, until ſentence was finally paſſed. And the literal conſtruction has been given this ſection by the learned counſel, whoſe opinion is inſerted in the ſubſequent part of this work †.

The preſident is the proper perſon to put all the interrogatories to the witneſſes; but, with his conſent and approbation, it is uſual for the judge advocate to put all interrogatories propoſed by him, or the other members of the court, to the witneſſes; and ſhould the preſident think proper to decline allowing the judge advocate to put a queſtion propoſed by any of the junior members, it is the practice for the court to be cleared, and it is to be determined by a majority of votes, whether the queſtion pro-

* Stat. 22 Geo. II. cap. 33. ſect. 15. with amendment. Vide Appendix, No. II.

† Vide Opinion. Appendix, No. XVIII.

poſed

poſed ſhould be ſtated or not*. As the judge advocate is conſidered as a proſecutor in behalf of the crown, and by his having, previous to the trial, collected the evidence, he is ſuppoſed by law to be able to judge what queſtions are proper to be put to witneſſes, and therefore has a right to aſk them all proper and fit queſtions †.

Though the members of a court martial may not be unanimous in their determinations upon the matters before them, yet as the ſentence drawn up receive its force and validity from the judgment of the majority, all the members preſent ought to ſign ſuch ſentence ‡, and which is always counterſigned by the judge advocate.

* Vide Opinion of the King's Advocate General, &c. to Quer. 5, Appendix, No. XV.

† Vide Opinion of the Crown Lawyers. Appendix, No. XXII.

‡ See Advocate and Solicitor General's Opinion to Quer. 5, Appendix, No. XV.

BOOK II.

OF THE PRACTICAL PROCEEDINGS IN BRINGING OFFENDERS TO TRIAL, AT THE ASSEMBLING OF THE COURT, JUDGMENT, AND EXECUTION.

CHAP. I.

Of the Arreſt of Offenders, and the Forms of Procedure by a Commanding Officer and Judge Advocate, preparatory to Trial.

IN the preceding part of this work, we have ſketched the outlines of the theory, united to practice, of regular courts martial, as eſtabliſhed by acts of parliament, directed by the printed inſtructions, and corroborated at different periods by the opinions of counſel; it now only remains to enter into a detail of the forms and proceedings, and in treating of them in this and the ſubſequent chapters, it ſhall be our endeavour to adhere to

to as much brevity as the ſubject will admit, without loſing ſight of order and perſpicuity.

Previous to any complaint or accuſation by the commanding officer of the ſhip, it is ſuppoſed that the offender is under arreſt, or in cuſtody. The particular facts charged, and in what manner committed, with the time and place, are directed to be ſpecified in all complaints for bringing offenders to trial by court martial *, upon ſimilar principles, as is directed by courts of law in all indictments. The *time* may be very material, where there is any limitation in point of time aſſigned for the proſecution of offenders †, as is the caſe in courts martial, by Statute 22 Geo. II. cap. 33. ſect. 23. which enacts, That no perſon, not flying from juſtice, ſhall be tried or puniſhed by any court martial for any offence, unleſs the complaint of ſuch offence be made in

* P. Inſt. under the head of Courts Martial. Art. 4.

† By Statute 7 W. III. cap. 3. the time for proſecution of offenders at courts of law, is limited to three years, except in the caſe of murder, when the time of the death muſt be laid within a year and a day after the mortal ſtroke was given. *Black. Com.* vol. iv. p. 306.

writing,

writing, or unleſs a court martial, to try ſuch offender, ſhall be ordered within three years after the offence ſhall be committed, or within one year after the return of the ſhip into any of the ports of Great Britain or Ireland.

The *place* is neceſſary to be named, in order to aſcertain that the crime was committed within the juriſdiction of the court.

The offence itſelf ought to be ſet forth with clearneſs and certainty; and the ſame rule ſhould be obſerved in complaints or accuſations againſt offenders, as is practiſed in courts of law, in indictments *, where, in ſome crimes, particular words of art muſt be uſed, which are ſo appropriated by the law to expreſs the preciſe idea which it entertains of the offence, that no other words, however ſynonimous they may ſeem, are capable of doing. Thus, in caſes of mutiny, the facts muſt be ſaid to be done "in a *mutinous* or *ſeditious* manner." If an accuſation of murder, it is neceſſary to ſay, that the party accuſed "*murdered*," not killed.

* Black. Com. vol. iv. p. 306.

If

If with an intent to murder, it is neceſſary to ſay, "did in a *wilful* and *malicious* manner," &c. And in all other offences it is a rule to adhere to the words appropriated to them, in the act of parliament, or different articles of war, under which they fall *.

In Great Britain or Ireland, any complaint or accuſation is to be tranſmitted by the commander in chief, or ſenior officer, to the lords commiſſioners of the admiralty, who thereupon iſſue an order or commiſſion † for aſſembling a court martial to try the party accuſed; and the order may be directed to the firſt, ſecond, or third in command, as may be found moſt expedient, and for the good of his majeſty's ſervice ‡; and ſuch flag-officer or captain ſo directed, ſhall preſide at ſuch court martial. In time of actual ſervice, the lords of the admiralty have even found it expedient to tranſmit blank orders to the commander in chief at any of the ports,

* Vide Letters of Complaint and Accuſation. Appendix, No. XXIII.

† Vide Order for aſſembling Courts Martial, No. XXIV. ſect. 1.

‡ St. 22 Geo. II. cap. 33. ſect. 11. App. No. II.

empow-

empowering him to *fill up the blanks* in the order, with the date and addreſs of the officer who ſhould happen to be ſecond in command; or if the exigency of the ſervice required it, he might fill it up in the name of the third in command, inſtead of the ſecond; and having ſo done, he was inſtructed to acquaint the admiralty thereof, that the books of the office might be made to correſpond with the orders ſo filled up *.

But if in foreign parts, and the commander in chief, or ſenior officer, ſhould be under the neceſſity of preſiding, the order for aſſemblimg a court martial differs a little in the form from that iſſued by the admiralty at home, or by a commander in chief, to the ſecond or third in command on foreign ſervice †.

In the abſence of the judge advocate, or his deputy, it is uſual for the officer, who is directed to aſſemble the court martial, in

* Laſt war, Admiral Sir Thomas Pye, commanding at Portſmouth, had directions to the above purport.

† Vide Order for aſſembling Courts Martial. Appendix, No. XXIV. ſect. 2.

this ſtage of the procedure, to nominate ſome perſon to officiate as judge advocate on the occaſion *; and in which appointment, according to the conſtruction of the ſtatute already mentioned, a majority of the members, when the court is aſſembled, ſhould concur †.

The preſident likewiſe appoints a perſon to officiate as provoſt-marſhal on the occaſion, who is to take the party accuſed into cuſtody, to produce him at the time of trial, and to keep him until he ſhall be delivered by due courſe of law ‡.

The commander in chief iſſues memorandums of notice or ſummonſes, to the reſpective flag-officers, and captains of the ſhips of the ſquadron, then and there preſent, announcing a court martial to be held on board of a particular ſhip, on a ſtated day ‖; at

* Vide Judge Advocate's Warrant. Appendix, No. XXV.

† Vide Judge Bathurſt's Opinion to Quer. 2. Appendix, No. XIV.

‡ Vide Provoſt-Marſhal's Warrant. Appendix, No. XXVI.

‖ Vide Memorandums and Summonſes. Ap. No. XXVII.

the

the ſame time he directs the preſident to aſſemble the court at the place and time accordingly, and to give notice to the reſpective flag-officers and captains, that they may attend in like manner*. He iſſues likewiſe a memorandum to the captain of the ſhip, on board of which the court is to be aſſembled, that he may make the eſtabliſhed ſignal for a court martial, at the given hour of the day appointed †.

The judge advocate, or the perſon appointed to officiate upon that occaſion, is to give the perſon accuſed timely notice of his intended trial, and an atteſted copy of the charge or accuſation exhibited againſt him, that he may prepare for his defence; and he

* Vide Memorandum from commander in chief to preſident. Appendix, No. XXVIII. ſect. 1.

† Vide Memorandum to captain of the ſhip, where the the court is to be aſſembled. Appendix, No. XXVIII. ſect. 2.

Naval courts martial generally aſſemble at eight or nine in the morning, and an excellent mode has been lately adopted of making the ſignal an hour previous to the aſſembling of the court, that no delay may be incurred.—See Captain of the Fleet's Memorandum. Appendix, No. XXVII. ſect. 3.

ſhould likewiſe ſummons the ſeveral witneſſes (being perſons ſubject to the juriſdiction of the admiralty), who may be called upon to give evidence, either in ſupport of the charge, or in defence of the party accuſed *.

Thus far matters are in a regular train preparatory to trial; but ſhould it ſo happen that the preſident may be taken ill in the intervening time, and that it is neceſſary, upon that account, to poſtpone the trial until a future day, the judge advocate muſt announce the circumſtance of the preſident's indiſpoſition to the proſecutor and party accuſed, that directions may be given to the evidence on both ſides, to attend the court on the new day appointed, inſtead of that in the former ſummons †.

* Vide Judge Advocate's Letters and Summonſes to Priſoner, Proſecutor, and Witneſſes. Appendix, No. XXIX. ſect. 1, 2, 3, 4, and 5.

† Vide Judge Advocate's Letter upon the occaſion. Appendix, No. XXX.

CHAP.

CHAP. II.

Of the legal Forms of Procedure in aſſembling a Court Martial, and examining the Evidence produced thereat.

IT is neceſſary to premiſe, that when all the officers, who are to conſtitute the court, are aſſembled, at the time and place appointed; and if any member has abſented himſelf through ill health, the ſame is to be minutely certified to the court; and the ſurgeon of the ſhip, which ſuch member commands, muſt attend, that he may atteſt upon oath, if required, the truth of his inability to attend through ill health. Should he decline ſo doing, and the other teſtimonials deemed inadmiſſable, the members then aſſembled may immediately break up, as not being authorized to form a court, and diſpenſe with the non-attendance of a member not legally excuſed. The reaſons are to be

ſtated in a letter to the admiralty, ſigned by all the members, aſſembled for the purpoſe of conſtituting a court, agreeably to notice and ſignal *.

On the other hand, when the teſtimonials of a member's inability to attend are admitted, the court may be formed, and the judge advocate takes the fact down in the minutes, immediately after the names of the members preſent in the form preſcribed †.

The members being ſeated to right and left of the preſident, according to ſeniority, and the judge advocate facing him at the bottom of the table, the preſident is to cauſe the party accuſed to be brought into court, attended by the provoſt-marſhal; and all the witneſſes, as well in ſupport of the charge, as in the priſoner's defence, and every other

* A caſe of this nature happened at Portſmouth, in January 1780, on the non-attendance of Capt. Hamilton, whoſe ſurgeon refuſed to atteſt, upon oath, that his attending the court martial would have endangered his health.—See Letter to the Admiralty. Appendix, No. XXI.

† Vide Minutes of Proceedings. Appendix, No. XXXI.

perſon

perſon who ſhall chooſe, being admitted. The judge advocate ſtanding up, reads the order for aſſembling the court *, and likewiſe the order or warrant of his own appointment †; he then adminiſters to the reſpective members the oath preſcribed by act of parliament ‡, and afterwards the preſident of the court adminiſters to the judge advocate the cuſtomary oath of ſecrecy, preſcribed by the ſtatute ‖.

The judge advocate reads the letter of accuſation or charge againſt the priſoner; and all the witneſſes are then ordered to withdraw, except the firſt that the proſecutor means to produce in ſupport of the charge, who remains in court, and to whom the judge advocate adminiſters the uſual oath §. As the oath adminiſtered to the witneſſes

* Vide Order for aſſembling the Court. Appendix, No. XXIV.

† Vide Judge Advocate's Warrant. App. No. XXV.

‡ Stat. 22 Geo. II. cap. 33. ſect. 16. Appendix, No. II.

‖ Ibid.

§ *Oath uſually adminiſtered.*—" The evidence you ſhall give before the court, reſpecting the charge againſt the

witneſſes is not only that which he depoſes ſhall be true, but that he ſhall alſo depoſe the *whole* truth; he is not to conceal any part of what he knows, whether interrogated par-

priſoner, ſhall be the truth, the *whole* truth, and nothing but the truth; So help you God." But as the ſtatute, regulating courts martial, does not preſcribe any particular form of an oath to be adminiſtered to witneſſes, there are occaſions when it may be neceſſary to alter the uſual form, and give it more ſolemnity; particularly among the lower claſs of ſeamen, many of whom have an idea of mental reſervation, in evading the efficacy of an oath, by kiſſing their *thumb*, inſtead of the *Holy Evangeliſts*, with other abſurd and trifling evaſions. The following oath, combining the eſſential forms of the courts of judicature in England, as well as thoſe in Scotland, it is imagined would have the proper ſolemn effect, and make the deſired impreſſion on the minds of ſeamen.

The judge advocate to make the witneſs repeat after him, audibly and diſtinctly, the words, " I ſwear, by " God, and as I ſhall anſwer to Almighty God, on the " great day of judgment, that the evidence I ſhall give " before the court ſhall be the truth, the whole truth, " and nothing but the truth; So help me God." This form was found expedient to be adopted at a court martial held in North America on twenty ſeamen, belonging to the Narciſſus, for *mutiny* and *ſedition*, where an accomplice was admitted as *king's evidence*, and where there were ſuſpicions againſt the other witneſſes being concerned

particularly to that point or not. The preſident of the court martial uſually deſires him to relate what he knows reſpecting the charge againſt the priſoner; and afterwards the members, with the approbation of the preſident, put ſuch interrogatories as they may think proper and neceſſary for inveſtigating the truth *.

In this place it may not be improper to obſerve, that though it is a ſettled rule at common law, that no counſel ſhall be allowed a priſoner upon his trial, upon the general iſſue, in any capital crime, unleſs ſome point of law ſhall ariſe proper to be debated †. A rule which (however it may be palliated under cover of that noble declaration of the law, when rightly underſtood, that the judge

cerned in the mutinous aſſemblies, to the ſecrecy of which they had been all previouſly ſworn by the ringleader. The witneſſes gave their evidence without prevarication or fraud, whereby the charge was clearly proved againſt ſix ſeamen, who were accordingly executed.—See Sentence. Appendix, No. XXXIV. ſect. 3.

* Vide Forms of Minutes of Proceedings. Appendix, No. XXXI. ſect. 1, and 2.

† 2 Hawk. P. C. 400.

ſhall

ſhall be counſel for the priſoner; that is, ſhall ſee that the proceedings againſt him are legal and ſtrictly regular*) ſeems to be not at all of a piece with the reſt of the humane treatment of priſoners by the Engliſh law. For upon what face of reaſon can that aſſiſtance be denied to ſave the life of a man, which yet is allowed him in proſecutions for every petty treſpaſs† ? And the judges themſelves are ſo ſenſible of this defect, that they never ſcruple to allow a priſoner counſel to inſtruct him what queſtions to aſk, or even to aſk queſtions for him with reſpect to matters of fact: for as to matters of law, ariſing on the trial, they are entitled to the aſſiſtance of counſel‡.

It is likewiſe the practice at courts martial to indulge the priſoner with counſel, or at leaſt *amici curiæ* (or friends of the court), who may ſit or ſtand near him, and inſtruct

* Sir Ed. Coke (3 Inſt. 137.) gives another additional reaſon for this refuſal, "becauſe the evidence to convict a priſoner ſhould be ſo manifeſt as it could not be contradicted."

† Black. Com. vol. iv. p. 355.

‡ Ibid. p. 356.

him

him what queſtions to aſk the witneſſes, with reſpect to matters of fact before the court; and may even commit to paper the neceſſary interrogatories as they ariſe, which the priſoner may give on ſeparate ſlips to the judge advocate, who reads them to the court, and, if approved of, inſerts them literally in the minutes, with the witneſſes anſwers to them.

The doctrine of evidence, as admitted by law in all criminal caſes, is adhered to nearly in the ſame manner upon trials at court martial.

Firſt; *Two* lawful witneſſes are required to convict a priſoner in all caſes of high treaſon, petit treaſon, and miſpriſon of treaſon, unleſs he ſhall willingly, and without violence confeſs the ſame*. And by a ſubſequent ſtatute, it is enforced with this addition, that the *confeſſion* of the priſoner, which ſhall countervail the neceſſity of ſuch proof, muſt be in *open court*†; but in almoſt

* Stat. 1 Edw. VI. cap. 12. and 5 and 6 Edw. VI. cap. 11.

† Stat. 7 Will. III. cap. 3.

every

every other accuſation in a court of law, one *poſitive* witneſs is ſufficient *.

Baron Monteſquieu lays it down for a rule, that thoſe laws which condemn a man to death, in any caſe on the depoſition of a ſingle witneſs, are fatal to liberty †. And he adds this reaſon, that the witneſs who affirms, and the accuſed who denies, make an equal balance; it is therefore neceſſary to call in a third perſon to incline the ſcale. But Sir William Blackſtone obſerves ‡, "this ſeems to be carrying matters too far; for there are ſome crimes, in which the very privacy of their nature excludes the poſſibility of having more than one witneſs; muſt theſe therefore eſcape unpuniſhed?

* Black. Com. vol. iv. p. 357.

† "Les loix qui font perir un homme ſur la dépoſition d'un ſeul témoin, ſont fatales à la liberté. La raiſon en exige deux parce qu'un témoin qui affirme, & un accuſé qui nie, font un partage, et il faut un tiers pour le vuider.

"Les Grecs & les Romains exigeoient une voix de plus pour condamner. Nos loix Françoiſes en demandent deux."—*Monteſq. De l'Eſprit des Loix*, liv. xii. c. 3.

‡ Black. Com. vol. iv. p. 358.

Neither

Neither indeed is the bare denial of the perſon accuſed equivalent to the poſitive oath of a diſintereſted witneſs. In caſes of indictments for perjury, this doctrine is better founded, and there our law adopts it: for one witneſs is not allowed to convict a man for perjury; becauſe then there is only one oath againſt another *. In caſes of treaſon alſo, there is the oath of allegiance of the accuſed, to counterpoiſe the information of a ſingle witneſs, and that perhaps may be one reaſon why the law requires a double teſtimony to convict him: though the principal reaſon, undoubtedly, is to ſecure the ſubject from being ſacrificed to fictitious conſpiracies, which have been the engines of profligate and crafty politicians in all ages.

It ſeems, however, to be the practice at courts martial, as well in the navy as army, to produce two or more witneſſes when they can be procured; but when two or more cannot be had, one poſitive evidence to facts is often deemed competent to convict the

* 10 Mod. 194.

party

party accuſed. But as Lord Chief Juſtice Hale obſerves, this muſt be very warily admitted*, and the objections that might ariſe to the credit of a ſingle evidence, under the circumſtances of the caſe before a court, ought to be duly conſidered; for the benignity of the law is ſuch, that it is held better that ten guilty perſons ſhould eſcape unpuniſhed, than that one innocent perſon ſhould ſuffer.

But when the privacy of the offence is of ſuch a nature, as to exclude the poſſibility of having more than one evidence, it is the practice at courts martial to admit it, as being competent in law to convict the party accuſed. Moreover, we have a recent inſtance (where no other witneſs could be found) of admitting the evidence of a proſecutor: for the diſtinction between the objection of the *competency*, and the objections to the *credibility* of a witneſs, has been long eſtabliſhed; and in criminal proſecutions, it is not a legal objection to the competency of a witneſs, or the admiſſibility of his evi-

* Hale's Pleas of the Crown, p. 290.

dence,

dence that he is the *proſecutor*, whatever objections to his credit may ariſe under the circumſtances of the caſe.

The inſtance alluded to happened at the court martial * for trying Lieut. Thackary, of his majeſty's ſloop Thorn, on ſeveral charges exhibited againſt him by Captain William Taylor; and amongſt others, for going into the captain's cabin, when *alone* at tea, and calling him *ſcoundrel* and *liar*. The privacy of this offence excluded all other poſitive evidence but that of the proſecutor, and when the court aſſembled, Capt. Thompſon, the preſident, had his doubts of the propriety of the court's admitting Captain Taylor to give his evidence; the court was therefore adjourned, until they had the opinion of counſel on the caſe ſtated †.

The court afterwards re-aſſembled, the proſecutor's evidence was admitted, and Lieutenant Thackary was diſmiſſed from his majeſty's ſervice.

Evidence in criminal caſes is of two

* January 7, 1789.

† Vide Caſe and Opinion, Appendix, No. XXXII. §. 1 and 2.

kinds,

kinds *, either that which is given in proof, or that which the jury may receive by their own private knowledge. The former, or *proofs* (to which in common acceptation the name of evidence is uſually confined), are either written or *parole*, that is by word of mouth. Written proofs, or evidence, are, 1ſt, Records; and, 2d, Antient deeds of thirty years ſtanding, which prove themſelves; but 3d, Modern deeds and, 4th, other writings muſt be atteſted and verified by *parole* evidence of witneſſes. And the one general rule that runs through all the doctrine of trials is this, that the beſt evidence the nature of the caſe will admit of, ſhall always be required, if poſſible to be had; but if not poſſible, then the beſt evidence that can be had ſhall be allowed. For if it be found, that there is any better evidence exiſting than is produced, the very not producing it is a preſumption that it would have detected ſome falſehood that at preſent is concealed. Thus, in order to prove letters or writings exhibited at a court martial, no-

* Black. Com. vol. iii. p. 367.

thing

thing ſhall be admitted but the very letters or writings themſelves, if in being; but if they be poſitively proved to be burnt or deſtroyed (not relying on any looſe negative, as that they cannot be found), then an atteſted copy may be produced, or *parole* evidence given of their contents *. No evidence of a diſcourſe with another will be admitted, but the man himſelf muſt be produced, and *hearſay* evidence to any particular facts is never received. For, in order to give the full force and weight to the teſtimony of a witneſs, he muſt relate to the court the very fact which was done by the party accuſed, or the identical words that were ſpoken by him relative to the point at iſſue.

Where the memory of a witneſs fails him with reſpect to time, or particular dates, he may be allowed to recur to notes, or he may be ſet right by the court; but he is not to be allowed to read any papers of evidence previouſly prepared.

The mere ſimilitude of hand-writing in

* The ſame doctrine holds at law with regard to leaſes for years. Black. Comm. vol. iii. p. 368.

two papers ſhewn to a jury without other concurrent teſtimony, is no evidence that both were written by the ſame perſon *; yet undoubtedly the teſtimony of witneſſes well acquainted with the party's hand, that they believe the paper in queſtion to have been written by him, is evidence to be left to a jury †.

POSITIVE proof is always required, where, from the nature of the caſe it appears it might poſſibly be had ‡. But next to *poſitive* proof, *circumſtantial* evidence, or the doctrine of *preſumptions* may take place; for when the fact itſelf cannot be demonſtratively evinced, that which comes neareſt to the proof of the fact is the proof of ſuch circumſtances, which either *neceſſarily* or *uſually* attend ſuch facts; and theſe are called preſumptions, which are only to be relied upon till the contrary be actually proved. *Stabitur præſumptioni donec probetur in contrarium* §. *Violent* preſumption is many

* State Trials, vol. viii. p. 472. 2 Hawk. P. C. 431.
† State Trials, vol. iv. p. 453. Ibid. vol. vi. p. 69.
‡ Black. Comm. vol. iii. p. 371.
§ Coke upon Litt. p. 373.

times

times equal to full proof*, where thoſe circumſtances appear which neceſſarily attend, and are incident to the fact.

A recent moral writer †, with juſt reaſon, (though not in ſtrict conformity to law,) obſerves on this ſubject, "That a concurrence of well authenticated circumſtances, compoſes a ſtronger ground of aſſurance than *poſitive teſtimony*, unconfirmed by circumſtances, uſually affords. Circumſtances cannot lie. The concluſion, alſo, which reſults from them, though deduced by only probable inference, is commonly more to be relied upon, than the veracity of an unſupported ſolitary witneſs. The danger of being deceived is leſs, the actual inſtances of deception are fewer in the one caſe than the other. *Poſitive* proof in criminal mātters may be founded in the miſtake or perjury of a ſingle witneſs. Such miſtakes, and ſuch perjuries, are not without many examples. Whereas, to impoſe upon a court of juſtice, a chain of *circumſtantial* evidence, in ſupport

* Coke upon Litt. p. 6.

† Paley's Moral and Political Philoſophy, b. vi. c. 9.

of a fabricated accuſation, requires ſuch a number of falſe witneſſes as ſeldom meet together; an union alſo of ſkill and wickedneſs, which is ſtill more rare; and after all, this ſpecies of proof lies much more open to diſcuſſion, and is more likely, if falſe, to be contradicted, or to betray itſelf by ſome unforeſeen inconſiſtency, than that direct proof, which, being confined within the knowledge of a ſingle perſon, which appealing to, or ſtanding connected with no external or collateral circumſtances, is incapable, by its very ſimplicity, of being confronted with oppoſite probabilities."

Probable preſumption, ariſing from ſuch circumſtances as *uſually* attend the fact, hath alſo its due weight. *Light* or raſh preſumptions have no weight or validity at all.

All *preſumptive* evidence in criminal matters ſhould be admitted cautiouſly *. And Sir Mathew Hale in particular †, lays down two rules moſt prudent and neceſſary to be obſerved. 1. Never to convict a man for ſtealing the goods of a perſon unknown,

* Black. Com. vol. iv. p: 358.
† 2 Hale, P. C. 200.

merely

merely becauſe he will give no account how he came by them, unleſs an actual felony be proved of ſuch goods. And, 2. Never to convict any perſon of murder or manſlaughter, till at leaſt the body be found dead; on account of two inſtances he mentions, where perſons were executed for the murder of others, who were then alive, but miſſing.

In criminal caſes, the open examination of witneſſes *viva voce*, in the preſence of all mankind, is much more conducive to the clearing up of truth *, than the private and ſecret examination taken down in writing, in all courts that have borrowed their practice from the civil law; for a witneſs may frequently depoſe that in private, which he will be aſhamed to teſtify in a public and ſolemn tribunal. The court will be able to keep the evidence from wandering from the point in iſſue, and will have an opportunity of obſerving the quality, age, education, underſtanding, behaviour and inclination of the witneſs, all which neceſſary leading features cannot be collected from the depoſitions of witneſſes when brought forward in writing, and read to the court in the abſence of thoſe

* Hale's Hiſt. of Common Law, 254, 5, 6.

who made them; and yet as much may be frequently collected from the manner in which the evidence is delivered, as from the matter of it. Theſe are a few of the advantages attending this the Engliſh method of giving teſtimony, *ore tenus* *. Which was alſo indeed familiar among the ancient Romans, as may be collected from Quintillian, who lays down very good inſtructions for examining and croſs-examining witneſſes, *viva voce* †.

As a practice now univerſally prevails in courts of law, that if a juror knows any thing of the matter in iſſue, he may be ſworn as a witneſs, and give his evidence publicly in court ‡, but not in private before his brother jurors; and it has been admitted, that it is no exception even againſt a perſon's giving evidence for or againſt the priſoner, that he is one of the judges on his trial; but in ſuch caſe it is not uſual for the judge, having given evidence, to reſume his ſeat on that trial §.

* Black: Com. vol. iii. p. 374.
† *Inſtitut. Orat.* lib. v. c. 7.
‡ Black. Com. vol. iii. p. 375.
§ Kelyng's Reports, p. 12.

Circumſtances

Circumſtances might ariſe in the courſe of a trial to render the teſtimony of a member of a court martial a moſt eſſential evidence for or againſt a priſoner; and as the inveſtigation of truth is the principal object in view, it does not ſeem incompatible with the principles of law or equity, for ſuch a member (who ſits in the united capacity of judge and juror) to be ſworn in open court, and after having given his teſtimony to the matter of fact at iſſue, might, at courts martial, upon the ſame principles as a juror, reſume his ſeat as a member of the court.

No counſel, or other perſon intruſted with the ſecrets of the cauſe by the party himſelf, ſhall be compelled, or perhaps allowed to give evidence of ſuch converſation or matters of privacy as have come to his knowledge by virtue of ſuch truſt and confidence *; but any counſel, attorney, or other perſon, may be examined, as to mere matters of fact which might have come to his knowledge, without being intruſted in the cauſe †. Conſequently, the judge advocate, or the perſon officiating for him at courts

* Law of *Niſi prius*, 267. Black. Com. vol. iii. p. 370.

† Black. Com. vol. iii. p. 370.

martial, may be examined as a witneſs for either party as to matters of fact, and after having the uſual oath adminiſtered to him by the preſident, and giving his teſtimony, he may reſume the functions of his office on the trial.

The proſecutor, or party accuſed, may make exceptions to the competency of a witneſs, which are publicly ſtated, and taken down in the minutes, and the court may either admit their legality, or reject them immediately, without clearing the court.

All witneſſes, of whatever religion or country, who have the uſe of their reaſon, are to be received and examined, except ſuch as are *infamous*, or ſuch as are *intereſted* in the event of the cauſe. All others are *competent* witneſſes, though the jurors, from other circumſtances, will judge of their *credibility**. *Infamous* perſons are ſuch as may be challenged, *propter delictum*. As for conviction of treaſon, felony, perjury, piracy, forgery, or conſpiracy, or if for ſome infamous offence, a witneſs hath received judgment of the pillory, or the like, or hath been branded, whipt, or ſtigmatized, or if he

* Black. Com. vol. iii. p. 369.

be

be outlawed or excommunicated*, are all exceptions admitted by law to the competency of a witneſs. The only method of ſupporting an objection to ſuch witneſſes as are infamous, is to prove it immediately in court; for no queſtions can be put to a witneſs to criminate himſelf, or that may in any way tend to prove his own infamy†.

Intereſted witneſſes may be examined upon a *voir dire*, if ſuſpected to be ſecretly concerned in the event, that is, an oath *veritatem dicere*, to anſwer all queſtions as the court ſhall demand relative to their intereſt in the point at iſſue; or their intereſt may be proved in court.

It is not a valid exception againſt a witneſs that he is an accomplice in the crime charged againſt the priſoner, for by virtue of ſeveral

* The ſame challenges *propter delictum*, are made to jurors as to witneſſes. Black. Com. vol. iii. p. 363, and 370. But as the puniſhment of whipping has not that degree of infamy annexed to it when adjudged by courts martial or military diſcipline, as when adjudged by courts of law, it therefore at courts martial cannot affect the competency of a witneſs in the ſame manner as at courts of law.

† State Trials, vol. iii. f. 256, 680. Black. Com. vol. iii. p. 370.

ſtatutes,

ſtatutes *, ſome one of the accomplices in all crimes excepting murder and treaſon, may be admitted to become a witneſs (or, as it is generally termed, *king's evidence*) againſt the party or parties accuſed; and this from the neceſſity of the caſe, and upon an implied confidence, which the judges of courts of law have uſually countenanced and adopted; that if ſuch accomplice makes a full and complete diſcovery of that, and of all other crimes or offences, to which he is examined by the judges, and afterwards gives his evidence without prevarication or fraud, he ſhall not himſelf be proſecuted for that, or any other previous offence of the ſame degree †. Were not this to be the caſe, the greateſt offenders would frequently eſcape unpuniſhed, for want of ſufficient evidence.

A good exception to the competency of a witneſs is, his defect of intellects, or being *non compos mentis*. But as a lunatic, or *non compos mentis*, is defined one who hath had underſtanding, but by diſeaſe, grief, or other

* Stat. 4 and 5 William and Mary, c. 8.——6 and 7 William and Mary, c. 17. Stat. 10 and 11 William III. c. 23. 5 Anne, c. 31. And 29 George II. c. 30.

† Black. Com. vol. iv. p. 331.

accident,

accident, hath loſt the uſe of his reaſon*, and is ſuppoſed to enjoy his ſenſes at times; he may, in theſe lucid intervals, be admitted as a witneſs, but it is a difficulty not eaſily got over, to aſcertain with preciſion what is the *minimum quod ſic* diſables the party †.

In many caſes, exceptions may be made to the credibility of a witneſs, but whoſe competency is admiſſible; that is, who may be admitted to be heard, and yet after being heard, may prove not to be credible, or ſuch as the members of a court martial are bound to believe, and of which they can always judge by ſome concurrent teſtimony of time, place, and circumſtances, in order to make out the fact, and eſtabliſh the credibility.

With reſpect to the number of witneſſes to be examined, on the part of a proſecutor at a court martial, they are not limited by law; but it would be to no good purpoſe to call too many to eſtabliſh the ſame facts, which could only tend unneceſſarily to pro-

* *Idiota a caſu et infirmitate, (Mem. Scacch.* 20 Edw. I. in Maynard's Year Book of Edw. II. 20.)

† Hales, P. C. 278.

tract

tract the trials, and perhaps ultimately to elude the juſtice of them *.

The court having gone through the examination of all the witneſſes in ſupport of the charge, and allowed the priſoner to croſs-queſtion them ſeverally, he is then put on his defence, which, if already prepared, he is allowed to read to the court, or he may dictate it to the judge advocate, in order to inſert it in the minutes. But ſhould the trial be of importance, and a variety of circumſtances brought forward, with which the priſoner was unprepared, he may, upon ſoliciting the court, be indulged with an adjournment until the ſubſequent day, for the purpoſe of the better preparing himſelf for his defence, and the examination of his witneſſes in ſupport of what he may have occaſion to affirm.

The priſoner having made his defence, the witneſſes in ſupport thereof are to be ſeparately called into court, ſworn, and examined, the priſoner firſt of all aſking them ſuch queſtions as he may deem proper; then the members of the court, or judge advocate;

* See Opinion of the Attorney and Solicitor Generals, Appendix, No. XXXIII.

and

and the profecutor is generally allowed to croſs-examine the witneſſes upon the points brought forward by the priſoner, but by no means is to introduce new or extraneous matter; and after that, the priſoner again may put any additional interrogatories to his witneſſes; and the priſoner having cloſed his evidence, and having nothing further to offer in his defence, the court is cleared, that the members may proceed to deliberate upon the judgment to be pronounced *.

Before we conclude this chapter, it may not be improper to obſerve, that ſince the Revolution, in 1688, our criminal laws have undergone ſome wiſe and humane regulations, by allowing the party accuſed every poſſible means of defence, in examining publicly upon oath ſuch witneſſes as he may produce, tending either in exculpation or palliation of the charges exhibited againſt him.

It was an ancient and commonly received practice †, derived from the civil law, and which is ſtill adopted in the kingdom of France ‡, as well as in moſt of the other ſtates

* Vide Minutes of Proceedings, No. XXXI. §. 1 and 2.

† State Trials, vol. i. Black. Com. vol. iv. p. 359.

‡ The practice in criminal caſes to this day in the kingdom

ſtates of Europe, that counſel not being allowed to any priſoner accuſed of a capital crime, ſo neither ſhould he be ſuffered to exculpate himſelf by the teſtimony of any witneſſes *. From the reign of Queen Elizabeth, a practice was gradually introduced

kingdom of France (unleſs altered by the laws lately made ſince the Revolution), is not to admit the priſoner to exculpate himſelf by the teſtimony of any witneſſes. The examination of the witneſſes produced againſt him is ſecret. The priſoner is not even admitted to ſee them till their evidence is cloſed, and then only that they may identify his perſon. And ſome French writers maintain, that this, with the addition of two other laws in the adminiſtration of criminal juſtice, viz. *perjury* being made capital, and that of the *queſtion*, or *torture* being allowed to extort confeſſion from the criminal, are equivalent to the laws of England as now practiſed for the inveſtigation of facts, or the bare diſcovery of truth. Laying aſide, however, the diſcuſſion of this point, it can never be admitted that theſe laws are more conformable to reaſon and humanity, when compared with thoſe of England under ſimilar circumſtances. Baron Monteſquieu, on taking a curſory but comparative view of them, leaves us to draw our own concluſions in the following words: "*Ainſi pour juger leſquelles de ces loix ſont les "plus conformes à la raiſon, il ne faut pas comparer chacune "de ces loix à chacune; il faut les prendre toutes enſemble, et "les comparer toutes enſemble.*" Monteſq. de L'Eſprit des Loix, tom. ii. liv. 29. c. 11.

* Black. Com. vol. iv. p. 359.

of

of examining witneſſes for the priſoner, but *not upon oath.* Sir Edward Coke * proteſts very ſtrongly againſt this tyrannical practice, declaring, that he never read, in any act of parliament, book, caſe, or record, that in criminal caſes the party accuſed ſhould not have witneſſes ſworn for him †. And the houſe of commons were ſo ſenſible of this abſurdity, that in the bill for aboliſhing hoſtilities between England and Scotland ‡, when felonies committed by Engliſhmen in Scotland were ordered to be tried in one of the three northern counties, they inſiſted on a clauſe, and carried it, againſt the efforts of both the crown and the houſe of lords, and againſt the practice of the courts in England, and the expreſs law of Scotland §, "That in all ſuch trials for the better diſ-"covery of the truth, and the better in-"formation of the conſciences of the jury "and juſtices, there ſhall be allowed to the "party arraigned, the benefit of ſuch cre-"dible witneſſes to be examined upon oath,

* 3 Inſt. 79.

† 2 Hales, P. C. 283. and his Summary, 264.

‡ Stat. 4 Jac. I. c. 1.

§ Com. Journ. 4, 5, 12, 13, 15, 29, 30, Jan. 1607.

"as

" as can be produced for his clearing and " juſtification."

By the Statute 7 Will. III. cap. 3. the ſame meaſure of juſtice was eſtabliſhed throughout all the realm, in caſes of treaſon within the act. And by a ſubſequent ſtatute *, in the reign of Queen Anne, it was declared that, in all caſes of treaſon and felony, all witneſſes *for* the priſoner ſhould be examined upon oath, in like manner as the witneſſes *againſt* him.

In caſe any perſon called upon, and ſubject to the juriſdiction of a court martial, ſhall refuſe to give his evidence, or prevaricate in the courſe of his examination, the court is authorized to puniſh ſuch perſon by three months impriſonment; or ſhould any perſon behave with contempt, he may be impriſoned for one month †.

* 1 Ann. ſtat. 2. c. 9.

† Stat. 22 Geo. II. cap. 33. ſect. 17. Appendix, No. II.

The puniſhment inflicted by a court martial on ſeamen for prevarication, is inſerted in the minutes, and uſually ſubjoined to the ſentence in the following terms: —" And it appearing to the court that ——— and " ———, two ſeamen, belonging to his majeſty's ſhip " ———, who were produced as witneſſes, and ſworn " and examined on the ſaid trial, did, in the courſe of " their

But all perſons, who ſhall commit any wilful perjury, in any evidence or examination at a court martial, or who ſhall corruptly procure or ſuborne any perſon to commit ſuch wilful perjury, may be proſecuted in his majeſty's court of *King's Bench*, by information or indictment, ſetting forth only the offence charged upon ſuch perſon, without mentioning the commiſſion for holding the court martial, or the particular matter tried, or to be tried before ſuch court *.

The crime of wilful and corrupt *perjury* is ſo odious, and the penalties and puniſhment annexed to the conviction thereof are ſo ſevere, that members of a court martial, from lenity, frequently find it neceſſary, when they perceive a witneſs ſhowing an inclination to prevaricate, to remind him of the nature and obligation of the ſacred oath he has taken —to admoniſh him of the precipice upon

" their ſeveral examinations prevaricate in their evi-
" dence. The court doth order them ſeverally, the ſaid
" A. and B. to be impriſoned in the Marſhalſea, for the
" term of three months."

* Stat. 22 Geo. II. cap. 33. ſect. 17. Appendix, No. II.

whoſe brink he totters—and the penalties to be inflicted, and the perpetual infamy incurred in the event of committing wilful and corrupt perjury.

This crime is defined by Sir Edward Coke *, to be committed when a *lawful* oath is adminiſtered, in ſome *judicial* proceeding, to a perſon who ſwears *wilfully*, *abſolutely*, and *falſely* in a matter *material* to the iſſue or point in queſtion: for if it only be in ſome trifling collateral circumſtance, to which no regard is paid, it is no more penal than in voluntary extra judicial oaths, which the law takes no notice of, as being eſteemed unneceſſary, *& non coram judice*, and therefore will not puniſh the breach of them †.

The puniſhment of perjury and ſubornation at common law has been various. It was anciently death; afterwards baniſhment, and cutting out the tongue; then forfeiture of goods; and now it is fine and impriſonment, and never more to be capable of bearing teſtimony ‡. But the Statute 5 Eliz.

* 3 Inſt. 164.

† Black. Com. vol. iv. p. 137.

‡ 3 Inſt. 163.

cap.

cap. 9. (if the offender be proſecuted thereon) inflicts the penalty of perpetual infamy, and a fine of £40 on the ſuborner; and in default of payment, impriſonment for ſix months, and to ſtand with both ears nailed to the pillory. By the ſame ſtatute, perjury itſelf is puniſhed with ſix months impriſonment, perpetual infamy, and a fine of £20, or to have both ears nailed to the pillory. But the proſecution is uſually carried on for the offence at common law; eſpecially as to the penalties before inflicted, the Stat. 2 Geo. II. cap. 25. ſuperadds a power for the court to order the offender to be ſent to the houſe of correction, for a term not exceeding ſeven years; or to be tranſported for the ſame period; and makes it felony, without benefit of clergy, to return or eſcape within the time *.

It has ſometimes been wiſhed that perjury, at leaſt upon capital accuſations, whereby another's life has been, or might have been deſtroyed, was alſo rendered capital, upon a principle of retaliation, as it was prior to the

* Black. Com. vol. iv. p. 138.

revolution in all caſes by the laws of France. Baron Monteſquieu* aſſigns juſtifiable reaſons for the French laws, as admitting witneſſes to be heard only on the ſide of the proſecution, and the uſe of the rack to extort a confeſſion from the accuſed. In ſuch a conſtitution, therefore, it was neceſſary to throw the dread of capital puniſhment into the other ſcale, in order to keep in awe the witneſſes for the proſecution, on whom alone the priſoner's fate depended. But by the ancient laws of France, when witneſſes were admitted on both ſides, perjury was puniſhed with fine and impriſonment only†. This is unqueſtionably a puniſhment more congenial with our mode of trial, where the fact is openly diſcuſſed between witneſſes on *both* ſides, and the evidence for the crown may be contradicted and diſproved, by thoſe produced in defence of the party accuſed. Where, indeed, the death of an innocent per-

* Monteſq. L'Eſprit des Loix, liv. xxix. c. 11.

† Par l'ancienne juriſprudence Françoiſe les témoins étoient ouïs des deux parts, et la peine contre les faux témoins en juſtice étoit pecuniaire.—*Les Etabliſſments de St. Louis*, liv. i, c. 7.

ſon

ſon has actually been the conſequence of ſuch wilful perjury, it falls within the guilt of deliberate murder, and deſerves an equal puniſhment, which our ancient law, in fact, inflicted *. It ſeems, indeed, conſonant to natural reaſon, and has therefore been adopted as a maxim by ſeveral theoretical writers †, that the puniſhment due to the crime, of which one falſely accuſes another, ſhould be inflicted on the perjured informer.

By Statute 37 Ed. III. cap. 18. we accordingly find it enacted, that ſuch as preferred any ſuggeſtions to the king's great council, ſhould put in ſureties of *taliation*; that is, to incur the ſame pain the other ſhould have had, in caſe the ſuggeſtions were found untrue. But after one year's trial of this law, it was rejected, and impriſonment adopted in its ſtead ‡.

* Britton, c. 5.—Black. Com. vol. iv. p. 139.

† Beccaria, c. 15.

‡ Stat. 38 Ed. III. cap. 9.—Black. Com. b. iv. p. 14.

CHAP. III.

Of judging of the Guilt of Crimes, and paſſing Sentence.

AFTER the examination of all the witneſſes, produced in ſupport of the charge, as well as thoſe in favour of the party accuſed, the court being cleared, the members are now to proceed with deliberation to the moſt arduous and painful part of their functions, *viz.* finding the priſoner guilty, or *not guilty*, of the crime with which he ſtands accuſed; or, in other words, finding the charge exhibited againſt him *proved*, or *not proved*; and if found guilty, pronouncing that judgment on him which the articles of war, or laws of the land, have annexed to the crime or offence.

For this purpoſe it is neceſſary, whilſt the court is cloſed, for the members to conſider maturely

maturely, not only the facts alledged on both ſides, to weigh the credibility of witneſſes, the competency of whoſe evidence had been admitted, and the force and efficacy of their teſtimonies; but alſo to conſider the ſeveral degrees of guilt, connected with the facts, either as principals or acceſſories, under the various circumſtances exhibited to them in the courſe of inveſtigation.

It would be arrogance to preſume any member of a court martial was unacquainted with the extent and powers of inflicting puniſhments, comformable to the articles of war, and rules of diſcipline in the navy; yet ſome perplexity may at times ariſe in making the nice diſcriminations of guilt requiſite, more particularly in thoſe caſes where the articles of war have left the puniſhments diſcretionary to the court: and therefore, in this ſtage of the trial, a competent knowledge of the criminal branch of juriſprudence of the ſtate (or what is denominated the doctrine *of pleas of the crown*), which teaches the nature, extent, and degrees of every crime, and the ſpecific puniſhments annexed, is eſſentially important to every individual mem-

ber who ſits to pronounce judgment on any of his majeſty's ſubjects. For, as Sir Michael Foſter obſerves *, "no rank or elevation in life, no uprightneſs of heart, no prudence or circumſpection of conduct ſhould tempt a man to conclude, that he may not, at ſome time or other, be deeply intereſted in theſe reſearches.

"The infirmities of the beſt among us, the vices and ungovernable paſſions of others, the inſtability of all human affairs, and the numberleſs unforeſeen events, which the compaſs of a day may bring forth, will teach us (upon a moment's reflection), that to know with preciſion what the laws of our country have forbidden, and the deplorable conſequences to which a wilful diſobedience may expoſe us, is a matter of univerſal concern."

All the ſeveral pleas and excuſes which protect the tranſgreſſor of a forbidden law, from the puniſhment which is otherwiſe annexed thereto, may be reduced to this ſingle conſideration—the want or defect of *will*.

* Sir Mich. Foſter's Preface to Reports.

An

An involuntary act, as it has no claim to merit, ſo neither can it be an induction of any guilt: the concurrence of the will, when it has its choice, either to do or avoid the fact in queſtion, being the only thing that renders human actions either praiſe-worthy or culpable. Indeed, to make a complete crime cognizable by human laws, there muſt be both a *will*, and an *act*: ſo that to conſtitute a crime againſt human laws, there muſt be, firſt, a vicious will; and, ſecondly, an unlawful act, conſequent upon ſuch vicious will.

There is a general rule in law, that no perſon ſhall be excuſed from puniſhment for diſobedience of the laws of his country, excepting ſuch as are expreſsly defined, and exempted by the law themſelves, and ſuch as labour under a defect of the underſtanding; for infants, under the age of diſcretion, cannot be puniſhed by any criminal proſecution whatever. The law, in ſome caſes, exempt an infant under the age of twenty-one, as to common miſdemeanors, ſo as to eſcape fine and impriſonment, and the like; but for notorious breaches of the peace, a riot,

riot, battery, or the like, an infant, above the age of fourteen, is equally liable to ſuffer, as a perſon of the full age of twenty-one.

With regard to capital crimes, the law is ſtill more minute and circumſpect, diſtinguiſhing, with greater nicety, the uſual degrees of age and diſcretion. The capacity of doing ill, or contracting guilt, the law does not ſo much meaſure by years and days, as by the ſtrength of the delinquent's underſtanding and judgment. Thus: a boy of ten, and another of nine years old, who had murdered their companion, have been ſentenced to death, and he of ten years actually hanged; becauſe it appeared upon their trials that the one hid himſelf, and the other hid the body he had killed, which hiding manifeſted a conſciouſneſs of guilt, and a diſcretion to diſcern between good and evil *.

Thus alſo, in very modern times, a boy of ten years old was convicted, on his own confeſſion, of murdering his bed-fellow, there appearing in his whole behaviour plain ſymp-

* 1 Hale's Pleas of the Crown, c. 26, 27.

toms

toms of a miſchievous diſcretion; and as the ſparing this boy, merely on account of his tender years, might be of dangerous conſequence to the public, by propagating a notion that children might commit ſuch atrocious crimes with impunity; it was unanimouſly agreed, by all the judges, that he was a proper object of capital puniſhment *. But in all ſuch caſes, the evidence of that malice, which is to ſupply age, ought to be ſtrong and clear, beyond all doubt and contradiction †.

Ideots and lunatics, who are not chargeable for their own acts, for crimes committed when the underſtanding is deranged or vitiated, are likewiſe exempted from puniſhment ‡. Our law is extremely delicate in this reſpect; for if a man, in a ſound memory, commits a capital offence, and before arraignment or trial he becomes mad, he ought not to be tried, becauſe he is not able to plead to it with that advice and caution that he ought.

* Foſter, 72. † Black. Com. vol. iv. p. 24.
‡ 3 Inſt. 6.

If

If even after a priſoner has been tried for a capital crime, and he becomes *non compos mentis* before judgment, judgment ſhall not be pronounced; and if after judgment he becomes of non-ſane memory, he ſhall not be executed: from hence the humanity of our Engliſh laws are obvious. For, as Sir Edward Coke obſerves *, "the execution of "an offender is for example, *ut poena ad* "*paucos, metus ad omnes perveniat:* but ſo it "is not when a madman is executed; but "ſhould be a miſerable ſpectacle both againſt "law, and of extreme inhumanity and cru- "elty, and can be no example to others."

But crimes committed through artificial or voluntary madneſs, occaſioned by *drunkenneſs* or intoxication, our law looks upon rather as an aggravation, than any palliation of criminal behaviour †.

Acording to the Preſident Monteſquieu ‡, drunkenneſs depends much upon the temperature of the latitude in which we live. It prevails in proportion to the cold and humi-

* 3 Inſtitutes, 6. † Black. Com. vol. iv. p. 25.
‡ Monteſq. De l'Eſprit des Loix, liv. xiv. c. 10.

dity

dity of the climate: he adds, that in going from the equator, towards either pole, we ſhall find drunkenneſs prevail in proportion to the increaſe of latitude. In warm or tropical climates it ought to be more ſeverely puniſhed, where it makes men more miſchievous and mad, than in northern climates, where it is founded upon conſtitutional neceſſity, and renders men ſtupid, but not furious.

Our laws, in conſidering the crimes originating through drunkenneſs, partake more of the ſeverity of a law enacted in Greece, by Pittacus, than of the lenity of the Roman law. By the former, he who committed a crime when drunk, ſhould receive a double puniſhment, one for the crime itſelf, and the other for the ebriety, which prompted him to commit it *; but by the Roman law, great allowances were made for this vice, though the climate was nearly the ſame, "*per vinum delapſis capitalis poena remitti-*" *tur* †."

* Monteſq. De l'Eſprit des Loix, liv. xiv. cap. 10. and Puffendorf's Law of Nature, b. viii. c. 3.

† Black. Com. vol. iv. p. 26.

Another

Another deficiency of will is, where a man commits an unlawful act, by *misfortune* or *chance*, and not by design. Of this, when it affects the life of another, we had occasion to speak in a preceding chapter of this work *; and here it is only necessary to add, that if any accidental mischief happens to follow from the performance of a *lawful* act, the party stands excused from all guilt; but if a man be doing any thing *unlawful*, and a consequence ensues, which he did not foresee or intend, as the death of a man, or the like, his want of foresight shall be no excuse; for being guilty of one offence, in doing antecedently what is in itself unlawful, he is criminally guilty of whatever consequences may follow the first misbehaviour †.

Ignorance or mistakes, in point of law, which every person of discretion not only may, but is bound and presumed to know, is, in criminal cases, no sort of defence. Neither can it be admitted at a court mar-

* Book I. chapter ii. page 36, 37.

† 1 Hale's Pleas of the Crown, 39.

tial

tial as a palliation of the priſoner's offence, that he has pleaded ignorance of the articles of war, and rules of diſcipline to be obſerved in the navy, as they are compreſſed in ſo ſmall a compaſs, and not only read over to the ſhip's company every month, but are uſually hung up in ſome public part of the ſhip, that none may pretend ignorance of them.

In diſcriminating the degrees of guilt of a crime with which a priſoner ſtands charged, it frequently happens at courts martial that, on ſumming up the evidence on both ſides, he may appear not guilty of the identical crime laid to his charge, but guilty of an offence of leſs magnitude, though of the ſame ſpecies or nature, and as ſuch nearly connected with it. In this caſe it is cuſtomary for the court to acquit him of the greater, and find him guilty of the offence of leaſt magnitude, and inflict a correſponding puniſhment.

An inſtance in point recently happened, where a ſeaman was tried for deſertion, where the act or deed charged was clearly proved; but on conſidering the mitigating circumſtances

ſtances that appeared to attend the caſe, from which his real intentions were judged, the court acquitted him of *deſertion*, but found him guilty of *abſenting* himſelf without leave, and ſentenced him to be puniſhed with one dozen of laſhes on board of the ſhip to which he belonged. This is founded upon ſimilar principles as the verdict of a jury, upon an indictment of murder, where they acquit the priſoner of *murder*, but find him guilty of *manſlaughter*.

Though there may appear ſtrong ſuſpicions of a priſoner's guilt of ſome other crime or offence, not ſet forth in the charge, yet in acquitting him of the one he is tried for, the court cannot legally find him guilty of any other *diſtinct* offence. Neither can a priſoner be found guilty for what may be termed an *ex poſt facto* offence or miſdemeanor; that is, an offence committed after he had been confined, or even indulged as a priſoner at large *; but in all ſuch caſes he may

* In the ſentence of a court martial on Mr. Crawford, a midſhipman, belonging to the Emerald, for contempt to his captain, and diſobedience of orders, &c. the court,

may be ordered into confinement, and brought to a new trial, for the diſtinct crime or offence appearing againſt him.

The refined diſtinctions made by our law between acceſſories and principals, with a view chiefly to give the parties accuſed better opportunities of defending themſelves, we deem unneceſſary to be diſcuſſed in this work. Suffice it to obſerve, that the general rule of the ancient law (derived from the Gothic conſtitutions) is, that acceſſories ſhall ſuffer the ſame puniſhment as their principals *, if one be liable to death, the other is alſo liable †; and the puniſhment is ſtill continued the ſame with regard to principals,

court, inadvertently, found him guilty only of *having been diſorderly when a priſoner at large*, and reprimanded him accordingly.—See Sentence, App. No. XXXIV. ſect. 6.

Mr. Crawford brought an action againſt his captain —the learned judge made ſome animadverſions on the ſentence, and awarded heavy damages.

* By the law of Athens delinquents, and their abettors, were to receive the ſame puniſhment. *Potter's Antiquities*, b. i. c. 26.

† 3 Inſtitutes, 188.

and ſuch acceſſories as offend before the fact is committed *.

A humane theoretical writer † obſerves upon this ſubject, that perhaps if a diſtinction were conſtantly to be made between the puniſhment of principals and acceſſories even *before* the fact, the latter to be treated with a little leſs ſeverity than the former, it might prevent the perpetration of many crimes, by increaſing the difficulty of finding a perſon to execute the deed itſelf, as his danger would be greater than that of his accomplices, by reaſon of the difference of his puniſhment.

Having premiſed theſe few curſory remarks on diſcriminating the different degrees of guilt attending crimes, and the members being cloſed, as we have already mentioned, to deliberate upon the evidence produced for and againſt the priſoner, and to take into mature conſideration the palliating circumſtances, either offered in his defence, or that might have ariſen in the inveſtigation of facts. When they are fully prepared, the judge advocate ſtates the queſtion reſpecting the pri-

* Black. Com. vol. iv. p. 40.

† Beccaria, c. 37.

ſoner's

ſoner's guilt, and which at naval courts martial is put to each member ſeparately, beginning with the junior, and ending with the preſident, and is uſually couched in the following words: "Are you of opinion that the charge againſt the priſoner is *proved* or *not proved?*" Or thus, "Is he guilty or not guilty of the crime laid to his charge?" Should the majority of members be of opinion that the charge is proved, theſe members conſequently are to aſſign the puniſhment to be inflicted upon the priſoner; and it is to be obſerved, that in order to give force and validity to the judgment of the majority, the ſentence of a court martial is to be ſigned by all the members preſent, though they may differ in opinion *.

There are many crimes in the articles of war, that have expreſsly annexed to them the

* Vide Opinion of Attorney General, &c. to Query 5. App. No. XV. At general courts martial in the army, it is neceſſary, in judgment of death, that nine members out of thirteen, or two-thirds of thoſe preſent concur therein if more than thirteen members conſtitute the court. *Mutiny Act*, Art. 7.

puniſhment of death* without any alternative. The 12th article, as it formerly ſtood, poſitively preſcribed death; and, as we have in a former part of the work obſerved, the unfortunate Admiral Byng fell under a breach of part of it, the hardſhip of this caſe the court could not reſiſt expreſſing in ſtrong terms in the body of the ſentence; and though he was acquitted of the moſt odious parts of the charges, viz. cowardice and diſaffection, and recommended, in the concluſion of the ſentence, to mercy, accompanied with a letter from the court to the lords of the admiralty, complaining of the ſeverity of the 12th article of war, which admitted of no mitigation, and praying their lordſhips, in the moſt earneſt manner, to recommend the admiral to his majeſty's mercy †; yet he ſuffered, purſuant to ſentence, the completion of human puniſhment.

* Article 3.—the laſt branch of Art. 10.—Art. 13, 15.—the firſt branch of Art. 19.—the firſt branch of Art. 22.—and Articles 25, 28, 29, all inflict the puniſhment of *death* without any alternative.

† Vide Sentence, and Letter to the Admiralty. Appendix, No. XXXIV. §. 1 and 2.

The

The 12th article of war, as it now ſtands by the amendment, 19 Geo. III. c. 17. and ſome other articles in the caſes ſpecified, leave it diſcretionary to the court to inflict the puniſhment of death, or *ſuch other puniſhment as the nature and degree of the offence ſhall be found to deſerve* *. Other articles omit the word *death*, and leave the puniſhment to be inflicted to the diſcretion of a court martial †; and as thoſe articles are for the puniſhment of offences not of ſo flagrant a nature, it is obvious that the wiſdom of the legiſlature meant to exclude the power of a court martial to inflict a capital puniſhment, for any of the ſpecific offences left diſcretionary.

There are ſome articles which do not leave a diſcretionary power to the court martial, but expreſſly reſtrict the puniſhment to caſhiering the offender, or diſmiſſing him from his majeſty's ſervice ‡.

* Vide Articles 4, 5, 6, 10, 11, 12, 14, 16, 17, 19, 20, 22, 26, 27, 30, 34, 35. Appendix, No. I.

† Articles 1, 2, 7, 8, 9, 18, 21, 23, 24, 32, 33, 36. Appendix, No. I.

‡ Vide Art. 18, 31, 33.

No perſon convicted of any offence can be impriſoned for a longer term than two years, by the ſentence of any court martial *. Prior to the period of paſſing the act 22 Geo. II. it was uſual for courts martial to adjudge perſons convicted of offences, to be impriſoned for ten or fifteen years †, and ſometimes even for life, as was the caſe with the maſter of the Northumberland, who was ſentenced to be impriſoned in the Marſhalſea for life, for having, in action, ordered the colours to be ſtruck without orders ‡.

If the charge proved againſt a priſoner ſhould fall under any of thoſe articles of war, in which the puniſhment of death is expreſsly annexed, without any alternative

* Vide Abſtract of Sections of Act of Parliament 22 Geo. II. c. 33. Appendix, No. II.

† The Caſe of Lieut. Frye, of the Marines, and others. Appendix, No. XIII.

‡ In May 1744, the Northumberland engaged two ſhips, one of 68, and the other of 60 guns; and when Captain Watſon was mortally wounded, the maſter gave orders to ſtrike before any of the lieutenants could get on the quarter deck to aſſume the command. All the officers were acquitted except the maſter. *Beatſon's Naval and Military Memoirs*, vol. i. p. 214.

or

or deviation, under circumſtances however alleviating, no further queſtions or deliberations of the court are neceſſary to impede pronouncing the awful judgment incurred *.

In order to give greater energy to a ſentence of death, it might be proper, at all times, to expreſs in the body of it, the article of war applicable to the crime or offence proved againſt the priſoner; and in ſuch caſe it would be neceſſary to attend to the ſtrict letter of the article.

From the refined conſtructions of law liable to be put upon the penal ſtatutes in favor of life, we have a very recent inſtance of a perſon's eſcaping puniſhment, though, perhaps, deſervedly adjudged by ſentence of a court martial to ſuffer death. This was the caſe of Peter Finley, late boatſwain of the Ferret, who had been ordered, purſuant to

* The ſentences of army court martials are not final, like thoſe of the navy, neither are they pronounced *inſtanter* in open court; for the members are ſworn not to divulge the ſentence of the court, until it ſhall be approved of by his Majeſty, or by ſome perſon authorized by him. *Mutiny Act*, Article 5. p. 14.

the ſentence of a court martial, to ſerve as a ſeaman on board the Iphigenia; but on his returning on board the Ferret for his cloaths, he ſtabbed the maſter's mate with a long knife or dirk. For this offence he was brought to trial, and adjudged, by ſentence of a court martial, to ſuffer death.

The lords commiſſioners of the admiralty having their doubts whether the perſon ſtabbed by the priſoner was *his* ſuperior officer, and within the ſpirit, true intent and meaning of the 22d article of war, notwithſtanding they belonged to different ſhips at the time the offence was committed, deemed it expedient to lay the caſe before counſel *; and in conſequence of the opinion thereon, and the legality of the ſentence being queſtioned, his majeſty was pleaſed to pardon the offender.

Had the members of the court been aware of the nice diſtinction made by the learned counſel in this caſe, the offence clearly proved againſt Peter Finley would not have eſcaped with impunity, as it might have

* Vide Caſe and Opinion, No. XXXVI. § 1 and 2.

been

been brought under the 23d or 36th article, which by leaving a diſcretionary power to the court, would have at leaſt ſubjected the offender to the ſevereſt corporal puniſhment.

When the majority of the members have given an opinion that the charge has been found proved, and that it falls under any of the articles in which the caſes are left diſcretionary to the court, to inflict the puniſhment of death, *or ſuch other puniſhment as the nature and degree of the offence ſhall be found to deſerve*, it is uſual to ſtate a ſecond queſtion to the members of the court, whether or not the puniſhment to be inflicted is to be capital? If this is determined in the negative, another queſtion muſt neceſſarily ariſe, reſpecting the nature and extent of the puniſhment to be inflicted, whether corporal, caſhiering, mulcting of pay, impriſonment, &c.; or it may be ſtated in general terms, what puniſhment other than death ſhall be inflicted on the priſoner? This being determined, the judge advocate draws up the ſentence *, the court is opened, and all parties

* Vide Forms of different Sentences. Appendix, No.

ties are admitted, and judgment pronounced accordingly *.

No. XXXIV. §. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14.

* In drawing up ſentences of death on home ſervice, it is better not to name any particular ſhip on board which the priſoner is to ſuffer, but rather to be left general, on board any of his majeſty's ſhips the lords commiſſioners of the admiralty, or the commander in chief for the time being, ſhall think fit to direct; as, in the exigencies of ſervice, great inconveniencies have ariſen in naming particular ſhips that have ſailed previous to the arrival of the warrant for execution. See Mr. Corbett's Letter on the ſubject, Appendix, No. XXXV.

CHAP.

CHAP. IV.

Of the remitting of Puniſhments, Pardon, and Execution.

HAVING, in the preceding chapter, arrived at the laſt ſtage of the proceedings of naval courts martial, which we have endeavoured to trace by progreſſive ſteps, in as brief a manner as the arrangement of documents and materials would admit, it might, ſtrictly ſpeaking, have ſeemed highly proper in that place, to have concluded theſe enquiries. But as it may not be deemed extraneous matter, we cannot yet diſmiſs the ſubject, without offering a few obſervations on the ſteps uſually taken, and the proceedings that occur in on eſhape or other, in the awful interval between pronouncing of judgment and execution, the end of human puniſhment.

Law

Law (ſays an able writer*) cannot be framed on principles of compaſſion to guilt; yet juſtice, by the conſtitution of England, is bound to be adminiſtered in mercy. This is promiſed by the king, in his coronation oath; and it is that act of government which is the moſt perſonal, and the moſt entirely his own.

When we reflect, however, that mercy to the *guilty* is cruelty to the *innocent*, and oppoſe to the emotions of compaſſion which we naturally feel for a particular perſon, a more extended compaſſion which we ought to feel for mankind, our minds become reconciled to the neceſſity of making frequent examples by inflicting the puniſhment incurred by law.

The extending of mercy, where his majeſty thinks it is deſerved, and thus ſoftening or mitigating the rigour of the law in ſuch criminal caſes as have been recommended to royal clemency, and that merits an exemption from puniſhment, is unqueſtionably one

* Law of Forfeitures, p. 99.

of

of the moſt amiable prerogatives of ſovereignty.

Sir William Blackſtone, on the ſubject of pardons, emphatically obſerves, "That in monarchies, the king acts in a ſuperior ſphere to the magiſtrates of democracies, and though he regulates the whole government as the firſt mover, yet he does not appear in any of the invidious parts of it. Whenever the nation ſees him perſonally engaged, it is only in works of legiſlature, magnificence or compaſſion." To him, therefore, the people look up as to the fountain of honor, bounty and grace.

And theſe repeated acts of goodneſs, coming immediately from his own hand, endear the ſovereign to his ſubjects, and contribute more than any thing to root in their hearts that genial affection and perſonal loyalty, which are the ſure and moſt ſolid eſtabliſhment of a prince.

A reprieve, in a ſtrict legal ſenſe, is only a temporary ſuſpenſion of the execution; and there may be many cauſes to render it expedient. The cauſe of a regular reprieve may

may originate from the offender's being *non compos* between the judgment and the award of execution *; for regularly, as has been in a former part of this work already obſerved †, though a man may be *compos* when he commits a capital crime, yet if he becomes *non compos* after, he ſhall not be convicted; if, after having been found guilty, or convicted, he ſhall not receive judgment; and if after pronouncing judgment, he ſhall not be ordered for execution: for, "*furioſus ſolo furore punitur*;" and the clemency of the law knows not but he might have offered ſome reaſon, if in his ſenſes, to have ſtayed or altered the ſubſequent proceedings.

A *pardon* is permanent, and the king may extend his mercy upon conditional terms, and which conſtitutes the validity of ſuch pardon.—*Reprieve* and *pardon*, in the general acceptation, are now conſidered as ſynonymous terms, though in a legal ſenſe they differ in the manner we have juſt mentioned.

* 1 Hale's Pleas of the Crown, 370.

† Book II. ch. iii.

All

All pardons muſt be under the great ſeal, and when extended to a criminal tried by a naval court martial, are ſent to the lords commiſſioners of the admiralty, who immediately tranſmit as ſecret their order of reprieve or pardon to the commander in chief, or ſenior officer at the place for the time being, where the execution would take place, ſigned by the lords, under the admiralty ſeal, ſignifying his majeſty's royal mercy, and directing the commander in chief to keep the whole of the order *extremely ſecret*, until the offender is, on the day appointed for execution, brought upon deck, and every thing prepared for his execution, agreeably to the cuſtom of the navy; and then only to make known to him his majeſty's pleaſure, and to releaſe him from his confinement *.

Corporal puniſhments are frequently remitted by the admiralty at home, or commanders in chief on foreign ſtations, when the offender has been recommended to mercy, and

* Vide Admiralty form of Reprieve and Pardon, Appendix, No. XXXVII.

that

that the circumſtances attending his guilt merit compaſſion *.

In carrying the ſentences of courts martial for corporal puniſhment into execution, the admiral, or commanding officer of the ſhips and veſſels for the time being is to iſſue orders to the captain of the flag, or other particular ſhip, to make the ſignal for the boats of the ſquadron to aſſemble, manned and armed, on the day appointed, to attend the puniſhment, and likewiſe orders to the other captains to ſend a lieutenant with a boat, manned and armed, from their reſpective ſhips, to attend and aſſiſt thereat †.

An order is at the ſame time iſſued, to the captain or commander of the ſhip to which the priſoner belongs (accompanied with a copy of the ſentence), directing him to cauſe the puniſhment to be inflicted alongſide of the different ſhips, in the manner,

† Vide Order to remit Puniſhment, Appendix, No. XXXVIII.

‡ Vide Form of Orders to Captain of Flag-ſhip and Commander of the other Ships. Appendix, No. XXXIX. §. 1 and 2.

and

and in ſuch proportions as therein ſpecified *. It is uſual to include in this order, directions to the captain to cauſe the ſurgeon of his ſhip to attend in the boat with the lieutenant, as well as one of his mates in the long-boat with the priſoner, for the purpoſe of judging of the priſoner's ability to bear all his puniſhment, which the ſurgeon may put a ſtop to when he conceives the priſoner is not able to bear any more with ſafety. This laſt is ſometimes made out as a diſtinct and ſeparate order †, though we deem it more agreeably to form to have it compriſed in one.

The provoſt marſhal is ordered to attend the puniſhment, and to read publicly the ſentence of the court martial alongſide each ſhip reſpectively ‡.

When the king is pleaſed to approve of a ſentence of death, the warrant for execution

* Vide Order, Appendix, No. XL. §. 1 and 2.

† Vide Form, App. No. XL. §. 2.

‡ Vide Orders to Provoſt Marſhal. App. No. XLI. ſect. 1.

is tranſmitted by the admiralty to the officer commanding the ſhips and veſſels at the place for the time being, who iſſues the neceſſary orders agreeably to the forms of the ſervice *. And in purſuance thereof preparations are made. The fatal morning is arrived—the ſignal of death is already diſplayed—the aſſemblage of boats, manned and armed, ſurround the ſhip appointed for the execution. The crews of the reſpective ſhips are arranged on deck, and after hearing the articles of war read, await with ſilent dread and expectation the awful moment. At length a gun is fired (the ſignal to rouze attention), and at the ſame inſtant the unhappy victim, who has violated the laws of his country, is run up by the neck to the yard arm, to ſuffer the completion of all human puniſhment. A dreadful ſpectacle of warning to deter others from committing the like crimes in future.—Thus the feelings of

* Vide Forms of Order to Provoſt Marſhal, No. XLI. §. 2. Warrant of Death, and Orders for carrying it into execution. App. No. XLII. §. 1, 2, 3, and No. XLIII. §. 1 and 2.

mankind,

mankind awakened at the ſufferings of a guilty object, the natural indignation that his crimes may have excited in our boſoms at other moments now becomes extinguiſhed; and with the generous and humane, pity takes place upon his ſuffering the puniſhment adjudged by the laws of his country as a fit retribution due to his crimes.

APPENDIX.

OF PAPERS AND DOCUMENTS

REFERRED TO IN THE TEXT.

APPENDIX.

No. I. Articles of War.

ARTICLES contained in an act of parliament, 22 Geo. II. c. 33. intitled An act for amending, explaining, and reducing into one act of parliament, the laws relating to the government of his Majeſty's ſhips, veſſels, and forces by ſea.

Likewiſe ſome clauſes of the act 19 Geo. III. explaining and amending articles of the act paſſed in the twenty-ſecond year of his late Majeſty, King George II.

The following articles and orders were eſtabliſhed from the 25th of December 1749; *and are directed to be obſerved and put in execution, as well in time of peace as in time of war.*

I. ALL commanders, captains, and officers, in or belonging to any of his Majeſty's ſhips or veſſels of war ſhall cauſe the public worſhip of Almighty God, according to the Liturgy of the Church of England eſtabliſhed by law, to be ſolemnly, orderly, and reverently performed in their reſpective ſhips; and ſhall take care that prayers and preaching, by the chaplain in holy orders of the reſpective ſhips, be performed diligently; and that the Lord's day be obſerved according to law. Divine worſhip.

Swearing, Drunkenneſs, ſcandalous actions, &c.

II. All flag officers, and all perſons in or belonging to his Majeſty's ſhips or veſſels of war, being guilty of prophane oaths, curſings, execrations, drunkenneſs, uncleanneſs, or other ſcandalous actions, in derogation of God's honor, and corruption of good manners, ſhall incur ſuch puniſhment as a court martial ſhall think fit to impoſe, and as the nature and degree of their offence ſhall deſerve,

Holding intelligence with an enemy, or rebel.

III. If any officer, mariner, ſoldier, or other perſon of the fleet, ſhall give, hold, or entertain intelligence, to or with any enemy or rebel, without leave from the king's Majeſty, or the lord high admiral, or the commiſſioners for executing the office of lord high admiral, commander in chief, or his commanding officer, every ſuch perſon ſo offending, and being thereof convicted by the ſentence of a court martial, ſhall be puniſhed with death.

Letter or meſſage from an enemy, or rebel.

IV. If any letter or meſſage from any enemy or rebel, be conveyed to any officer, mariner, or ſoldier, or other in the fleet, and the ſaid officer, mariner, ſoldier, or other as aforeſaid, ſhall not within twelve hours, having opportunity ſo to do, acquaint his ſuperior officer, or the officer commanding in chief, with it; or if any ſuperior officer being acquainted therewith, ſhall not in convenient time reveal the ſame to the commander in chief of the ſquadron, every ſuch perſon ſo offending, and being convicted thereof by the ſentence of the court martial, ſhall be puniſhed with death, or ſuch other puniſhment as the nature and degree of the offence ſhall deſerve, and the court martial ſhall impoſe.

V. All

V. All ſpies, and all perſons whatſoever who ſhall come or be found, in the nature of ſpies, to bring or deliver any ſeducing letters or meſſages, from any enemy or rebel, or endeavour to corrupt any captain, officer, mariner, or other in the fleet to betray his truſt, being convicted of any ſuch offence, by the ſentence of the court martial, ſhall be puniſhed with death, or ſuch other puniſhment as the nature and degree of the offence ſhall deſerve, and the court martial ſhall impoſe. Spies, and all perſons in the nature of ſpies.

VI. No perſon in the fleet ſhall relieve an enemy or rebel with money, victuals, powder, ſhot, arms, ammunition, or any other ſupplies whatſoever, directly or indirectly, upon pain of death, or ſuch other puniſhment as the court martial ſhall think fit to impoſe, and as the nature and degree of the crime ſhall deſerve. Relieving an enemy or rebel.

VII. All the papers, charter-parties, bills of lading, paſſports, and other writings, whatſoever, that ſhall be taken, ſeized or found aboard any ſhip or ſhips, which ſhall be ſurprized or taken as a prize, ſhall be duly preſerved, and the very original ſhall, by the commanding officer of the ſhip which ſhall take ſuch prize, be ſent entirely and without fraud to the court of admiralty, or ſuch other court or commiſſioners as ſhall be authorized to determine whether ſuch prize be a lawful capture, there to be viewed, made uſe of, and proceeded upon according to law, upon pain that every perſon offending herein ſhall forfeit and loſe his ſhare of the capture, and ſhall ſuffer ſuch further puniſhment as the nature and degree of his offence ſhall be found to deſerve, and the court martial ſhall impoſe. Papers, &c. found on board of prizes.

Taking money or goods out of prizes.

VIII. No perſon in or belonging to the fleet, ſhall take out of any prize, or ſhip ſeized as a prize, any money, plate, or goods, unleſs it ſhall be neceſſary for the better ſecuring thereof, or for the neceſſary uſe and ſervice of any of his Majeſty's ſhips or veſſels of war, before the ſame be adjudged lawful prize in ſome admiralty court; but the full and entire account of the whole, without embezzlement, ſhall be brought in, and judgment paſſed entirely upon the whole, without fraud; upon pain that every perſon offending herein ſhall forfeit and loſe his ſhare of the capture, and ſuffer ſuch further puniſhment as ſhall be impoſed by a court martial, or ſuch court of admiralty, according to the nature and degree of the offence.

Stripping or ill treating priſoners.

IX. If any ſhip or veſſel ſhall be taken as a prize, none of the officers, mariners, or other perſons on board her, ſhall be ſtripped of their cloaths, or in any ſort pillaged, beaten, or ill-treated, upon pain that the perſon or perſons ſo offending, ſhall be liable to ſuch puniſhments as a court martial ſhall think fit to inflict.

Preparation for fight.

X. Every flag officer, captain, and commander in the fleet, who upon ſignal or order of fight, or fight of any ſhip or ſhips which it may be his duty to engage, or who upon likelihood of engagement ſhall not make the neceſſary preparations for fight, and ſhall not in his own perſon, and according to his place encourage the inferior officers and men to fight courageouſly, ſhall ſuffer death, or ſuch other puniſhment as from the nature and degree of the offence a court martial ſhall deem him to deſerve; and if any perſon in the fleet ſhall treacherouſly or cowardly yield or cry for quarter, every perſon ſo offending, and being convicted

Yielding or crying for quarter.

victed thereof by ſentence of a court martial, ſhall ſuffer death.

XI. Every perſon in the fleet, who ſhall not duly obſerve the orders of the admiral, flag officer, commander of any ſquadron or diviſion, or other his ſuperior officer, for aſſailing, joining battle with, or making defence againſt any fleet, ſquadron, or ſhip; or ſhall not obey the orders of his ſuperior officer as aforeſaid, in time of action, to the beſt of his power, or ſhall not uſe all poſſible endeavours to put the ſame effectually into execution: every ſuch perſon ſo offending, and being convicted thereof by the ſentence of the court martial, ſhall ſuffer death, or ſuch other puniſhment, as from the nature and degree of the offence a court martial ſhall deem him to deſerve. Obedience to orders in battle.

XII. Every perſon in the fleet, who through cowardice, negligence, or diſaffection, ſhall in time of action withdraw or keep back, or not come into the fight or engagement, or ſhall not do his utmoſt to take or deſtroy every ſhip which it ſhall be his duty to engage; and to aſſiſt and relieve all and every of his Majeſty's ſhips or thoſe of his allies, which ſhall be his duty to aſſiſt and relieve; every ſuch perſon ſo offending, and being convicted thereof by the ſentence of a court martial ſhall ſuffer death *. Withdrawing or keeping back from fight, &c.

* By act of parliament, 19 Geo. III. c. 17. ſect. 3. this article and the ſubſequent are explained and amended thus: "And whereas, the re-"ſtraining of the power of the court martial to the inflicting of the "puniſhment of death, in the ſeveral caſes recited in the ſaid clauſes, "may be attended with great hardſhips and inconvenience; be it enacted, "that from and after the paſſing of this act, it ſhall and may be lawful in

Forbearing to purſue an enemy, &c.

XIII. Every perſon in the fleet who through cowardice, negligence, or diſaffection, ſhall forbear to purſue the chace of any enemy, pirate, or rebel, beaten or flying; or ſhall not relieve and aſſiſt a known friend in view to the utmoſt of his power, being convicted of any ſuch offence by the ſentence of a court martial, ſhall ſuffer death.

Delaying or diſcouraging any ſervice.

XIV. If when action, or any ſervice ſhall be commanded, any perſon in the fleet ſhall preſume to delay or diſcourage the ſaid action or ſervice, upon pretence of arrears of wages, or upon any pretence whatſoever; every perſon ſo offending being convicted thereof by the ſentence of the court martial, ſhall ſuffer death, or ſuch other puniſhment, as from the nature and degree of the offence a court martial ſhall deem him to deſerve.

Deſerting to an enemy running away with ſhips ſtores,

XV. Every perſon in or belonging to the fleet who ſhall deſert to the enemy, pirate, or rebel; or run away with any of his Majeſty's ſhips or veſſels of war, or any ordnance, ammunition, ſtores, or proviſion belonging thereto, to the weakening of the ſervice, or yield up the ſame cowardly or treacherouſly to the enemy, pirate, or rebel, being convicted of any ſuch offence by the ſentence of the court martial, ſhall ſuffer death.

Deſertion, and entertaining deſerters.

XVI. Every perſon in or belonging to the fleet, who ſhall deſert or entice others ſo to do, ſhall ſuffer death, or ſuch other puniſhment as the circumſtances of the offence ſhall deſerve, and a court martial ſhall judge

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" the ſeveral caſes recited in the ſaid clauſes, for the court martial to " pronounce ſentence of death, *or to inflict ſuch other puniſhment as the* " *nature and degree of the offence ſhall be found to deſerve.*

fit;

fit; and if any commanding officer of any of his Majeſty's ſhips or veſſels of war ſhall receive or entertain a deſerter from any other of his Majeſty's ſhips or veſſels, after diſcovering him to be ſuch deſerter, and ſhall not with all convenient ſpeed give notice to the captain of the ſhip or veſſel to which ſuch deſerter belongs; or if the ſaid ſhips or veſſels are at any conſiderable diſtance from each other, to the ſecretary of the admiralty, or to the commander in chief, every perſon ſo offending, and being convicted thereof by the ſentence of the court martial, ſhall be caſhiered.

Convoys.

XVII. The officers and ſeamen of all ſhips appointed for convoys and guard of merchant ſhips, or of any other, ſhall diligently attend upon that charge, without delay, according to their inſtructions in that behalf; and whoſoever ſhall be faulty therein, and ſhall not faithfully perform their duty, and defend the ſhips and goods in their convoy without either diverting to other parts or occaſions, or refuſing or neglecting to fight in their defence if they be aſſailed, or running away cowardly, and ſubmitting the ſhips in their convoy to peril and hazard; or ſhall demand or exact any money or other reward from any merchant or maſter for convoying of any ſhips or veſſels intruſted to their care, or ſhall miſuſe the maſters or mariners thereof, ſhall be condemned to make reparation of the damage to the merchants, owners, and others, as the court of admiralty ſhall adjudge; and alſo be puniſhed criminally according to the quality of their offences, be it by pains of death, or other puniſhment, according as ſhall be adjudged fit by the court martial.

XVIII. If

Receiving goods and merchandize on board.

XVIII. If any captain, commander, or other officer of any of his Majeſty's ſhips or veſſels, ſhall receive on board, or permit to be received on board ſuch ſhip or veſſel, any goods or merchandizes whatſoever, other than for the ſole uſe of the ſhip or veſſel, except gold, ſilver, or jewels, and except the goods and merchandizes belonging to any merchant, or other ſhip or veſſel which may be ſhipwrecked, or in imminent danger of being ſhipwrecked, either on the high ſeas, or in any port, creek, or harbour, in order to the preſerving them for their proper owners, and except ſuch goods or merchandizes, as he ſhall at any time be ordered to take or receive on board by order of the lord high admiral of Great Britain, or the commiſſioners for executing the office of lord high admiral for the time being; every perſon ſo offending, being convicted thereof by the ſentence of the court martial, ſhall be caſhiered, and be for ever afterwards rendered incapable to ſerve in any place or office in the naval ſervice of his Majeſty, his heirs and ſucceſſors *.

* By an after clauſe in this act, it is further enacted that from and after the 25th of December, 1749, if any captain, commander, or other officer of any of his Majeſty's ſhips or veſſels ſhall receive on board, or permit or ſuffer to be received on board ſuch ſhip or veſſel, any goods or merchandizes contrary to the true intent and meaning of the 18th article of this act, every ſuch captain, commander, or other officer, ſhall for every ſuch offence, over and above any puniſhment inflicted by this act, forfeit and pay the value of all and every ſuch goods and merchandizes ſo received or permitted or ſuffered to be received on board as aforeſaid, or the ſum of 500l. of lawful money of Great Britain, at the election of the informer or perſon who ſhall ſue for the ſame, ſo that no more than one of theſe penalties or forfeitures ſhall be ſued for and recovered by virtue of this act. One moiety of which penalties or forfeitures ſhall be forfeited and paid to the perſon who ſhall inform and ſue for the ſame, and

XIX. If any perſon in or belonging to the fleet ſhall make, or endeavour to make, any mutinous aſſembly, upon any pretence whatſoever, every perſon offending herein, and being convicted thereof by the ſentence of the court martial, ſhall ſuffer death. And if any perſon in or belonging to the fleet ſhall utter any words of ſedition or mutiny, he ſhall ſuffer death, or ſuch other puniſhment as a court martial ſhall deem him to deſerve. And if any officer, mariner, or ſoldier, in or belonging to the fleet, ſhall behave himſelf with contempt to his ſuperior officer, ſuch ſuperior officer being in the execution of his office, he ſhall be puniſhed according to the nature of his offence, by the judgment of a court martial.

Mutinous aſſembly.

Seditious words.

Contempt to ſuperior officers.

XX. If any perſon in the fleet ſhall conceal any traiterous or mutinous practice, or deſign, being convicted thereof by the ſentence of a court martial, he ſhall ſuffer death, or ſuch other puniſhment as a court martial ſhall think fit; and if any perſon, in or belonging to the fleet, ſhall conceal any traiterous or mutinous words, ſpoken by any, to the prejudice of his Majeſty or government, or any words, practice, or deſign, tending to the hinderance of the ſervice, and ſhall not forthwith reveal the ſame to the commanding officer; or being preſent at any mutiny or ſedition,

Concealing traiterous or mutinous deſigns, &c.

and the other moiety thereof, to and for the uſe of the Royal Hoſpital at Greenwich, which forfeiture ſhall be ſued for and recovered by action of debt, bill, plaint, or information, in any of his Majeſty's Courts of Record at *Weſtminſter*, or in the High Court of Admiralty, at the election of the informer or perſon who ſhall ſue for the ſame, and the court ſhall award ſuch coſts to the parties as ſhall be juſt; and in all caſes where judgment or ſentence ſhall be given againſt any ſuch offender, the court ſhall with all convenient ſpeed certify the ſame to the lord high admiral, or to the commiſſioners for executing the ſaid office.

ſhall

ſhall not uſe his utmoſt endeavours to ſuppreſs the ſame, he ſhall be puniſhed, as a court martial ſhall think he deſerves.

No perſon upon any pretence to attempt to ſtir up diſturbance.

XXI. If any perſon in the fleet ſhall find cauſe of complaint of the unwholeſomeneſs of the victual, or upon other juſt grounds, he ſhall quietly make the ſame known to his ſuperior, or captain, or commander in chief, as the occaſion may deſerve, that ſuch preſent remedy may be had, as the matter may require; and the ſaid ſuperior, captain, or commander in chief, ſhall as far as he is able, cauſe the ſame to be preſently remedied, and no perſon in the fleet, upon any ſuch or other pretence, ſhall attempt to ſtir up any diſturbance, upon pain of ſuch puniſhment as a court martial ſhall think fit to inflict, according to the degree of the offence.

Striking a ſuperior officer.

XXII. If any officer, mariner, ſoldier, or other perſon in the fleet, ſhall ſtrike any of his ſuperior officers, or draw, or offer to draw, or lift up any weapon againſt him, being in the execution of his office, on any pretence whatſoever, every ſuch perſon being convicted of any ſuch offence, by the ſentence

Quarrelling.

of a court martial, ſhall ſuffer death; and if any officer, mariner, ſoldier, or other perſon in the fleet, ſhall preſume to quarrel with any of his ſuperior officers, being in the execution of his office, or ſhall

Diſobedience.

diſobey any lawful command of any of his ſuperior officers; every ſuch perſon, being convicted of any ſuch offence by the ſentence of a court martial, ſhall ſuffer death, or ſuch other puniſhment as ſhall, according to the nature and degree of the offence, be inflicted upon him, by the ſentence of a court martial.

XXIII. If

XXIII. If any perſon in the fleet ſhall quarrel or fight with any other perſon in the fleet, or uſe reproachful or provoking ſpeeches or geſtures, tending to make any quarrel or diſturbance, he ſhall upon being convicted thereof, ſuffer ſuch puniſhment as the offence ſhall deſerve, and a court martial ſhall impoſe. Fighting. Provoking ſpeeches, &c.

XXIV. There ſhall be no waſteful expence of any powder, ſhot, ammunition, or other ſtores in the fleet, nor any embezzlement thereof, but the ſtores and proviſions ſhall be carefully preſerved, upon pain of ſuch puniſhment to be inflicted upon the offenders, abettors, buyers, and receivers (being perſons ſubject to naval diſcipline) as ſhall be by a court martial found juſt in that behalf. Embezzlement of ſtores.

XXV. Every perſon in the fleet, who ſhall unlawfully burn, or ſet fire to any magazine or ſtore of powder, or ſhip, boat, ketch, hoy, or veſſel, or tackle, or furniture thereunto belonging, not then appertaining to an enemy, pirate, or rebel, being convicted of any ſuch offence, by the ſentence of a court martial, ſhall ſuffer death. Burning a magazine, ſhip, &c.

XXVI. Care ſhall be taken in the conducting and ſteering of any of his Majeſty's ſhips, that through wilfulneſs, negligence, or other defaults, no ſhip be ſtranded, or run upon any rocks or ſands, or ſplit, or hazarded, upon pain, that ſuch as ſhall be found guilty therein, be puniſhed by death, or ſuch other puniſhment as the offence by a court martial ſhall be judged to deſerve. Steering and conducting ſhips, &c.

XXVII. No perſon in or belonging to the fleet ſhall ſleep upon his watch, or negligently perform the duty impoſed on him, or forſake his ſtation, upon pain of death, Sleeping, negligence, and forſaking a ſtation.

death, or ſuch other puniſhment as a court martial ſhall think fit to impoſe, and as the circumſtance of the caſe ſhall require.

Murder. XXVIII. All murders committed by any perſon in the fleet, ſhall be puniſhed with death, by the ſentence of a court martial.

Sodomy. XXIX. If any perſon in the fleet, ſhall commit the unnatural and deteſtable ſin of buggery or ſodomy, with man or beaſt, he ſhall be puniſhed with death, by the ſentence of a court martial.

Robbery. XXX. All robbery committed by any perſon in the fleet, ſhall be puniſhed with death, or otherwiſe, as a court martial upon conſideration of circumſtances ſhall find meet.

Falſe muſters. XXXI. Every officer or other perſon in the fleet, who ſhall knowingly make or ſign a falſe muſter or muſter book, or who ſhall command, counſel, or procure the making or ſigning thereof, or who ſhall aid or abet any other perſon in the making or ſigning thereof, ſhall, upon proof of any ſuch offence being made before a court martial, be caſhiered, and rendered incapable of further employment in his Majeſty's naval ſervice.

Apprehending and keeping criminals. XXXII. No provoſt martial belonging to the fleet ſhall refuſe to apprehend any criminal, whom he ſhall be authorized by legal warrant to apprehend; or to receive or keep any priſoner committed to his charge; or wilfully ſuffer him to eſcape, being once in his cuſtody; or diſmiſs him without lawful order; upon pain of ſuch puniſhment as a court martial ſhall deem him to deſerve. And all captains, officers, and others in the fleet, ſhall do their endeavour to detect, apprehend, and bring to puniſhment all offenders, and ſhall aſſiſt the officers appointed for that purpoſe therein,

Bringing offenders to puniſhment

upon

upon pain of being proceeded againſt, and puniſhed by a court martial, according to the nature and degree of the offence.

XXXIII. If any flag officer, captain, or commander, or lieutenant belonging to the fleet, ſhall be convicted before a court martial, of behaving in a ſcandalous, infamous, cruel, oppreſſive, or fraudulent manner, unbecoming the character of an officer, he ſhall be diſmiſſed from his Majeſty's ſervice.

Behaving unbecoming an officer.

XXXIV. Every perſon being in actual ſervice, and full pay, and part of the crew in or belonging to any of his Majeſty's ſhips or veſſels of war, who ſhall be guilty of mutiny, deſertion, or diſobedience to any lawful command, in any part of his Majeſty's dominions on ſhore, when in actual ſervice, relative to the fleet, ſhall be liable to be tried by a court martial, and ſuffer the like puniſhment for every ſuch offence, as if the ſame had been committed at ſea, on board any of his Majeſty's ſhips or veſſels of war.

Mutiny, deſertion, diſobedience when on ſhore, in the king's dominions.

XXXV. If any perſon who ſhall be in actual ſervice, and full pay in his Majeſty's ſhips and veſſels of war, ſhall commit upon the ſhore, in any place or places out of his Majeſty's dominions, any of the crimes puniſhable by theſe articles and orders, the perſon ſo offending ſhall be liable to be tried and puniſhed for the ſame, in like manner, to all intents and purpoſes, as if the ſaid crimes had been committed at ſea, on board any of his Majeſty's ſhips or veſſels of war.

Crimes committed on ſhore out of the king's dominions.

XXXVI. All other crimes, not capital, committed by any perſon or perſons in the fleet, which are not mentioned in this act, or for which no puniſhment is hereby directed to be inflicted, ſhall be puniſhed according to the laws and cuſtoms in ſuch caſes uſed at ſea.

Crimes not mentioned in this act.

No. II.

No. II. Courts Martial Statutes.

Abſtract of Sections reſpecting Courts Martial, contained in the Act of Parliament, 22 Geo. II. c. 33, intitled, An Act for amending, explaining, &c. reducing into one Act of Parliament the Laws relating to the Government of His Majeſty's Ships, Veſſels, and Forces by Sea; likewiſe, Clauſes of Amendment in the Act 19 Geo. III. c. 17.

Section III.

Not more than two years imprisonment.

NO perſon convicted of any offence ſhall by the ſentence of any court martial be adjudged to be impriſoned for a longer term than the ſpace of two years.

Section IV.

Juriſdiction of a court martial.

Nothing contained in the articles of war ſhall extend, or be conſtrued to extend, to impower any court martial to be conſtituted by virtue of this act, to proceed to the puniſhment or trial of any of the offences ſpecified in the ſeveral articles (other than the offences ſpecified in the 5th, 34th, and 35th articles and orders) which ſhall not be committed upon the main ſea, or in great rivers only, beneath the bridges of the ſaid rivers nigh to the ſea, or in the haven, river, or creek, within the juriſdiction of the Admiralty; and which ſhall not be committed by ſuch perſons as, at the time of the offence committed, ſhall be in actual ſervice, and full pay in the fleet or ſhips of war of his Majeſty, his heirs or ſucceſſors, ſuch perſons only excepted, and for ſuch offences only as are deſcribed in the fifth article of war.

Section

Section V.

Nothing in this act contained, ſhall extend, or be conſtrued to extend, to impower any court martial, to proceed to the puniſhment or trial of any land officer or ſoldier, on board any tranſport ſhip, for any offences ſpecified in the ſeveral articles in this act. No land officer or ſoldier to be tried.

Section VI.

The lord high admiral of Great Britain, or the commiſſioners for executing the office of lord high admiral of Great Britain, for the time being, ſhall have full power and authority to grant commiſſions to any officer commanding in chief any fleet, or ſquadron of ſhips of war, to call and aſſemble courts martial, conſiſting of commanders and captains. And that in caſe any officer commanding in chief any fleet or ſquadron of ſhips of war (who ſhall be authorized by the lord high admiral, or the commiſſioners for executing the office of lord high admiral, for the time being, to call and aſſemble courts martial, in foreign parts) ſhall happen to die, or be recalled, or removed from his command, then the officer upon whom the command of the ſaid fleet or ſquadron ſhall devolve, and ſo from time to time, the officer who ſhall have the command of the ſaid fleet or ſquadron, ſhall have the ſame power to call and aſſemble courts martial, as the firſt commander in chief of the ſaid fleet or ſquadron was inveſted with. Commiſſions to be granted to aſſemble courts martial. To devolve in foreign parts, with the command of a fleet or ſquadron.

Section VII.

No commander in chief of any fleet or ſquadron of his Majeſty's ſhips, or detachment thereof, conſiſting of more than five ſhips, ſhall preſide at any court martial, in foreign parts, but that the officer next in command to ſuch officer commanding in chief, ſhall hold No commander in chief in foreign parts to preſide at a court martial.

ſuch court martial, and preſide thereat; any law, cuſtom, or uſage to the contrary notwithſtanding.

Section VIII.

Commanders of detachments to be impowered to hold courts martial.

In caſe any commander in chief of any fleet or ſquadron of his Majeſty's ſhips or veſſels of war, in foreign parts, ſhall detach any part of ſuch fleet or ſquadron, every commander in chief ſhall, and is hereby authoriſed and required, by writing under his hand, to impower the chief commander of the ſquadron or detachment, ſo ordered on ſuch ſeparate ſervice (and in caſe of his death or removal, the officer to whom the command of ſuch ſeparate ſquadron or detachment ſhall belong), to hold courts martial, during the time of ſuch ſeparate ſervice, or until the commander of the ſaid detachment for the time being, ſhall return to his commander in chief, or ſhall come under the command of any other his ſuperior officer, or return to Great Britain or Ireland.

Section IX.

Five ſhips meeting, ſenior officer may hold courts martial and preſide.

If any five or more of his Majeſty's ſhips or veſſels of war ſhall happen to meet together in foreign parts, then and in ſuch caſe, it ſhall be lawful for the ſenior officer of the ſaid ſhips or veſſels to hold courts martial, and preſide thereat, from time to time, as there ſhall be occaſion, during ſo long time as the ſaid ſhips or veſſels of war, or any five or more of them ſhall continue together.

Section X.

If a material objection to the ſecond officer in command, the

That where any material objection occurs, which may render it improper for the perſon who is next in command to the ſenior officer, or commander in chief of any fleet or ſquadron of his Majeſty's ſhips of war

war in foreign parts, to hold courts martial, or preſide thereat, in ſuch caſe it ſhall be lawful for the lord high admiral, or commiſſioners for executing the office of lord high admiral for the time being, as alſo the commander in chief of any ſuch fleet or ſquadron of his Majeſty's ſhips in foreign parts reſpectively, to appoint the third officer in command, to preſide at, or hold ſuch court martial.

third may be appointed to hold courts martial.

Section XI.

It ſhall be lawful for the lord high admiral of Great Britain, or the commiſſioners for executing the office of lord high admiral for the time being, and they are hereby reſpectively authorized from time to time, as there ſhall be occaſion, to direct any flag officer or captain of any of his Majeſty's ſhips of war, who ſhall be in any part of Great Britain or Ireland, to hold courts martial, in any ſuch ports, provided ſuch flag officer or captain be the firſt, ſecond, or third in command in ſuch port, as ſhall be found moſt expedient, and for the good of his Majeſty's ſervice; and ſuch flag officer or captain, ſo directed to hold courts martial, ſhall preſide at ſuch court martial, any thing herein contained to the contrary notwithſtanding.

In Great Britain or Ireland, the admiralty may appoint the firſt, ſecond, or third officer in command in any port to hold courts martial.

Section XII.

No courts martial to be held or appointed by virtue of this preſent act, ſhall conſiſt of more than thirteen or of leſs than five perſons, to be compoſed of ſuch flag officers, captains, or commanders then and there preſent, as are next in ſeniority to the officer who preſides at the court martial.

Court martial not to conſiſt of more than thirteen or leſs than five next in ſeniority to the officer preſiding.

Section XIII.

Nothing herein contained ſhall extend, or be conſtrued to extend, to authorize and impower the lord

Particular number not to be aſcer-

tained by the admiralty or officer impowered to order or hold courts martial.

high admiral, or the commiſſioners for executing the office of lord high admiral, or any officer impowered to hold courts martial, to direct or aſcertain the particular number of perſons of which any court martial, to be held or appointed by virtue of this preſent act, ſhall conſiſt.

Section XIV.

In what caſes commanders may aſſiſt.

In caſe any court martial ſhall be appointed to be held at any place where there are no leſs than three, nor yet ſo many as five officers of the degree and denomination of a poſt captain, or of a ſuperior rank, to be found, then it ſhall be lawful for the officer, at the place appointed for holding ſuch court martial, who is to preſide at the ſame, to call to his aſſiſtance as many of the commanders of his Majeſty's veſſels, under the rank and degree of a poſt captain, as, together with the poſt captains then and there preſent, will make up the number of five, to hold ſuch court martial.

Section XV.

No member to go on ſhore before ſentence be given.

No member of any court martial, after the trial is begun, ſhall go on ſhore till ſentence be given, but remain on board the ſhip, in which the court ſhall firſt aſſemble, except in caſe of ſickneſs, to be judged of by the court, upon pain of being caſhiered from his Majeſty's ſervice; nor ſhall the proceedings of the ſaid court be delayed by the abſence of any of its members, provided a ſufficient number doth remain to compoſe the ſaid court, which ſhall and is hereby required to ſit from day to day (Sundays always excepted), until the ſentence be given*.

* It having been found by experience, that the confining members of courts martial to the ſhips in which ſuch courts martial were ordered to

Section XVI.

Upon all trials of offenders by any court martial, all the officers preſent who are to conſtitute the ſaid court martial, ſhall before they proceed to ſuch trial, take ſuch oath as is herein after mentioned, upon the Holy Evangeliſts, before the court; which oath the judge advocate, or his deputy, or the perſon appointed to officiate as ſuch, is hereby authorized and required to adminiſter in the words following, (that is to ſay);

Form of oath to be adminiſtered.

I, A. B. do ſwear, that I will duly adminiſter juſtice, according to the articles and orders eſtabliſhed by an act paſſed in the twenty-ſecond year of the reign of his Majeſty, King George II. for amending, explaining, and reducing into one act of parliament, the laws relating to the government of his Majeſty's ſhips, veſſels, and forces by ſea, without partiality, favour, or affection; and if any caſe ſhall ariſe which is not particularly mentioned in the ſaid articles and orders, I will duly adminiſter juſtice according to my conſcience, the beſt of my underſtanding, and the cuſtom of the navy in like caſes; and I do further ſwear, that I will not upon any account, at any time whatſoever, diſcloſe or diſcover

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to be aſſembled, until ſentence was given, had been attended with great inconvenience and prejudice to the healths of officers ſummoned to attend as members——By 19 Geo. III. cap. 17. ſect. 1, 2. this clauſe of the act is *repealed and made void to all intents and purpoſes.* Provided always that the proceedings of any court martial ſhall not be delayed by the abſence of any of its members, when a ſufficient number doth remain to compoſe ſuch court, which is required to ſit from day to day (Sunday always excepted) until the ſentence be given. And no member of the ſaid court martial ſhall abſent himſelf from the ſaid court, during the whole courſe of the trial, upon pain of being caſhiered from his Majeſty's ſervice, except in caſe of ſickneſs, or other extraordinary and indiſpenſible occaſion, to be judged of by the ſaid court.

the vote or opinion of any particular member of this court martial, unleſs thereunto required by act of parliament.

So help me God.

Oath to be adminiſtered to the judge advocate.

As ſoon as the ſaid oath ſhall have been adminiſtered to the reſpective members, the preſident of the court is hereby authorized and required to adminiſter to the judge advocate, or the perſon officiating as ſuch, an oath in the following words;

I, A. B. do ſwear, that I will not, upon any account, at any time whatſoever, diſcloſe or diſcover the vote or opinion of any particular member of this court martial, unleſs thereunto required by act of parliament.

So help me God.

Section XVII.

Court may puniſh perſons refuſing to give evidence, or prevaricating, or behaving with contempt.

In caſe any perſon in the fleet, being called upon to give evidence, at any court martial, ſhall refuſe to give evidence upon oath, or ſhall prevaricate in his evidence or behave with contempt to the court, it ſhall and may be lawful for ſuch court martial to puniſh every ſuch offender by impriſonment, at the diſcretion of the court; ſuch impriſonment, not to continue longer than three months, in caſe of ſuch refuſal or prevarication, nor longer than one month in the caſe of ſuch contempt. And that all and every perſon and perſon who ſhall commit any wilful perjury, in any evidence or examination, upon oath at any ſuch court martial, or who ſhall corruptly procure or ſuborn any perſon to commit ſuch wilful perjury, ſhall and may be proſecuted in his Majeſty's court of King's Bench, by indictment or information, and every iſſue joined in any ſuch indictment or information, ſhall be tried by good and lawful men of the county of Middleſex,

Witneſſes committing perjury how to be proſecuted.

ſex, or ſuch other county as the ſaid court of King's Bench ſhall direct; and all and every perſon and perſons, being lawfully convicted upon any ſuch indictment or information, ſhall be puniſhed with ſuch pains and penalties as are inflicted for the like offences reſpectively, by two acts of parliament, the one made in the fifth year of the reign of Queen Elizabeth, intitled, *An act for puniſhment of ſuch perſons as ſhall procure or commit any wilful perjury;* and the other made in the ſecond year of the reign of his preſent Majeſty, intitled, *An act for the more effectual preventing and further puniſhment of forgery, perjury, and ſubornation of perjury; and to make it felony to ſteal bonds, notes, or other ſecurities for payment of money.*

5 Eliz. c. 9.

2 Geo. II. c. 25.

Section XVIII.

The offence only to be ſet forth in any information.

And be it further enacted by the authority aforeſaid, That in every information or indictment to be proſecuted by virtue of this act for any ſuch offence, it ſhall be ſufficient to ſet forth the offence charged upon the defendant, without ſetting forth the commiſſion or authority for holding the court martial, and without ſetting forth the particular matter tried, or to be tried, directed, or intended to be tried before ſuch court.

Section XIX.

Sentences of death (except in caſes of mutiny) not to be executed without directions from the admiralty, &c.

No ſentence of death given by any court martial held within the narrow ſeas (except in caſes of mutiny) ſhall be put in execution till after the report of the proceedings of the ſaid court ſhall have been made to the lord high admiral, or commiſſioners for executing the office of lord high admiral, and his or their directions ſhall have been given therein; and if the ſaid court ſhall have been held beyond the narrow ſeas, then ſuch ſentence of death ſhall not be carried into

execution but by order of the commander of the fleet or ſquadron wherein ſentence was paſſed; and in caſes where ſentence of death ſhall be paſſed in any ſquadron, detached from any other fleet or ſquadron upon a ſeparate ſervice, then ſuch ſentence of death (except in caſes of mutiny) ſhall not be put in execution, but by order of the commander of the fleet or ſquadron from which ſuch detachment ſhall have been made, or of the lord high admiral, or commiſſioners for executing the office of lord high admiral; and in caſes where ſentence of death ſhall be paſſed in any court martial held by the ſenior officer of five or more of his Majeſty's ſhips which ſhall happen to meet together in foreign parts, purſuant to the power herein before given, then ſuch ſentence of death (except in caſes of mutiny) ſhall not be carried into execution, but by order of the lord high admiral, or commiſſioners for executing the office of lord high admiral.

Section XX.

Judge advocate to adminiſter oaths to witneſſes.

The judge advocate for the time being, of any fleet, or his deputy, ſhall have full power and authority, and is hereby required to adminiſter an oath to any witneſs, at any trial by court martial; and in the abſence of the judge advocate and his deputy, the court martial ſhall have full power and authority to appoint any perſon to execute the office of judge advocate.

Section XXI.

This act to be in force with regard to crews of ſhips loſt.

All the powers given by the ſeveral articles and orders eſtabliſhed by this act, ſhall remain and be in full force with reſpect to the crews of ſuch of his Majeſty's ſhips as ſhall be wrecked, or be otherwiſe loſt or deſtroyed; and all the command, power, and authority given to the officers of the ſaid ſhip or ſhips

ſhall

ſhall remain and be in full force, as effectually as if ſuch ſhip or ſhips to which they did belong were not ſo wrecked, loſt, or deſtroyed, until they ſhall be regularly diſcharged from his Majeſty's further ſervice, or removed into ſome other of his Majeſty's ſhips of war, or until a court martial ſhall be held, purſuant to the cuſtom of the navy in ſuch caſes, to enquire into the cauſes of the loſs of the ſaid ſhip or ſhips; and if upon ſuch enquiry it ſhall appear by the ſentence of the court martial that all or any of the officers or ſeamen of the ſaid ſhip or ſhips did their utmoſt to preſerve, get off, or recover the ſaid ſhip or ſhips, and ſince the loſs thereof have behaved themſelves obediently to their ſuperior officers according to the diſcipline of the navy, and the ſaid articles and orders herein before eſtabliſhed, then all the pay and wages of the ſaid officers and ſeamen, or of ſuch of them as ſhall have done their duty as aforeſaid, ſhall continue and go on, and be paid to the time of their diſcharge or death; or if they ſhall be then alive, to the time of the holding of ſuch court martial, or removal into ſome other of his Majeſty's ſhips of war; and every ſuch officer and ſeaman of any of his Majeſty's ſhips of war, who, after the wreck or loſs of his ſhip, ſhall act contrary to the diſcipline of the navy, and the ſeveral articles and orders herein before eſtabliſhed, or any of them, ſhall be ſentenced by the ſaid court martial, and puniſhed as if the ſhip to which he did belong was not ſo wrecked, loſt, or deſtroyed.

Pay of ſuch ſhips reſerved.

Section XXII.

All the pay and wages of ſuch officers and ſeamen of any of his Majeſty's ſhips as are taken by the enemy, and

Continuance of wages to

men belonging to ſhips taken by an enemy.

and upon enquiring at a court martial ſhall appear by the ſentence of the ſaid court to have done their utmoſt to defend the ſaid ſhip or ſhips, and ſince the taking thereof, to have behaved themſelves obediently to their ſuperior officers, according to the diſcipline of the navy, and the ſaid articles and orders herein before eſtabliſhed, ſhall continue and go on, and be paid, from the time of their being ſo taken, to the time of the holding of ſuch court martial, or until they ſhall be regularly diſcharged from his Majeſty's ſervice, or removed into ſome other of his Majeſty's ſhips of war, or (if they ſhall die in captivity, or not live to the time of the holding of ſuch court martial) to the time of their death, in ſuch manner, and not otherwiſe, as if the ſaid ſhip or ſhips to which they did belong reſpectively, was not or were not ſo taken.

Section XXIII.

Perſons not to be tried after a certain time.

No perſon or perſons, not flying from juſtice, ſhall be tried or puniſhed by any court martial for any offence to be committed againſt this act, unleſs the complaint of ſuch offence be made in writing to the lord high admiral for the time being, or any commander in chief of his Majeſty's ſquadrons or ſhips impowered to hold courts martial, or unleſs a court martial to try ſuch offender ſhall be ordered by the ſaid lord high admiral, or the ſaid commiſſioners, or the ſaid commander in chief, either within three years after ſuch offence ſhall be committed, or within one year after the return of the ſhip, or of the ſquadron to which ſuch offender ſhall belong, into any of the ports of Great Britain or Ireland, or within one year after the return of ſuch offender into Great Britain or Ireland.

No. III. Particulars relative to the Caſe of conſtituting a Court Martial to try the Earl of TORRINGTON.

THE conſtituting of a court martial to try admiral Earl Torrington, in the reign of William III. was the ſubject of much debate, in both houſes of parliament. The king was reſolved it ſhould be by a a court martial, but the earl and his friends, maintained a right of being tried by his peers. Doubts were ſtarted on the one ſide, as to the power of the admiralty; for though it was admitted that the lord high admiral of England might have iſſued a commiſſion for trying him, yet it was queſtioned whether any ſuch authority was veſted in the commiſſioners of the admiralty or not; and though ſome great lawyers gave their opinions in the affirmative, yet it was judged expedient, to ſettle ſo important a point by the authority of parliament *.

To obviate theſe difficulties a bill was brought in, for veſting in the commiſſioners of the admiralty the ſame power in regard to granting commiſſions, which was already veſted by law in the lord high admiral of England †.

The king appointed at the time a new board of admiralty, compoſed of ſeven members inſtead of five, as had been formerly, and to this board it was, that the intended act gave the power of appointing courts mar-

* Campbell's Admirals, vol. ii. p. 338.

† Stat. 2 William and Mary, ſeſſ. 2. cap. 2.

tial

tial for the trial of any officer of what rank ſoever, as a lord high admiral might do*.

On the third reading of this bill in the houſe of peers it occaſioned warm debates; it was, however, carried by a majority of two only, and many of the lords entered their proteſts for the following reaſons.

"Becauſe this bill gives a power to commiſſioners "of the admiralty to execute a juriſdiction, which, by "the act of the 13 Car. II. intitled, *An act for eſta-* "*bliſhing articles and orders, for the regulating and better* "*government of his Majeſty's navy, ſhips of war, and* "*forces by ſea*, we conceive they had not; whereby "the Earl Torrington, may come to be tried for his "life, for facts committed ſeveral months before this "power was given or deſired; we think it reaſonable "that every man ſhould be tried by that law that was "known to be in force when the crime was committed.

"It is by virtue of the ſaid act of 13 Charles II. "that the Earl of Torrington was judged by this houſe, "not to have the privilege of a peer of this realm, for "any offences committed againſt the ſaid act; and "there is no other law as we conceive by which the "ſaid earl could have been debarred from enjoying "the privilege of a peer of this realm; which act "making no mention of commiſſioners of the ad- "miralty, but of a lord high admiral only, by whoſe "authority all the powers given by that act, are to be "exerciſed, and without whoſe conſent ſingly, no ſen- "tence of death can be executed, we think it of

* The Hiſtory and Proceedings of the Houſe of Lords, vol. i. p. 405.

"dangerous

"dangerous conſequence to expound a law of this "capital nature, otherwiſe than the literal words do "import. As we conceive it without precedent to paſs "even explanatory laws, much leſs ſuch as have a retro-"ſpect in them, in caſes of life and death; ſo we think "it not at all neceſſary to make ſuch a precedent at this "time, there being an undoubted legal way already "eſtabliſhed to bring this earl to a trial, by a lord high "admiral.

"Thirdly, the judges have unanimouſly declared, "that the law marine was no where particulariſed in "their books, whereby the power or juriſdiction of "the lord high admiral may be aſcertained, ſo that "practice is all we know of it; we conceive it unpre-"cedented and of dangerous conſequence, that the "juriſdiction exerciſed by the lord high admiral, ſhould "by a law be declared to be in the commiſſioners of "the admiralty, whereby an unknown and therefore "unlimited power may be eſtabliſhed in them."

Signed, *Rivers*, *Bath*, *Huntingdon*, *Grenville*, *Rocheſter*, *Herbert*, *Stamford*, *Craven*, *Dartmouth*, *J. Exon*, *Oxford*, *Bolton*, *Macclesfield*, *J. Bridgewater*, *Thomas Roſſen*, *Weymouth*, *Crew*,

No. IV. Opinion of Doctor PAUL, upon the Caſe where an equal Number of Members at a Court Martial were on each Side.

To the Right Honourable the Lords Commiſſioners for executing the office of Lord High Admiral, &c.

May it pleaſe your lordſhips,

IN humble obedience to your lordſhips' commands ſignified to me by Mr. Winnington, your lordſhips' ſolicitor, referring to me a letter from Mr. Atkins, deputy judge advocate of the fleet, ſetting forth, that upon a debate, a certain matter was put to the vote at a court martial, upon which there appeared to be equal numbers, the preſident included, viz. four againſt four; upon which a motion was made and agreed to, that ſince an equality of votes may happen in ſome material caſes, therefore that a letter ſhould be wrote to your lordſhips for your opinion, what may be proper to be done when a matter is put to the vote, and the numbers are equal on both ſides, the preſident included, and how that matter is to be determined, directing me to lay before your lordſhips my humble ſentiments upon this caſe.

I with great ſubmiſſion certify your lordſhips, that by the laws of this realm, where there are a number of judges appointed to adjudge a point of law or fact, the ſame muſt be ſettled and decreed by a majority in the King's Bench, Common Pleas, and court of Exchequer; there

there are in each four judges, the chief is veſted with ſuperior dignity, not much unlike a preſident; but, in deciſions, if two puiſne judges diſſent from the chief, and one puiſne judge agrees with him, no judgment in ſuch caſe can be given. In the court of delegates where the lord high chancellor appoints a number of judges, if at any time, upon an ordinary act or ſentence the court happens to be divided no order or ſentence, can be obtained, though there is always a perſon of ſuperior diſtinction placed at the head of every ſuch commiſſion of delegates.

I therefore conceive, that a court martial ſhould obſerve the ſame reaſonable rules that other courts of juſtice comply with; the point at iſſue may be reconſidered by the ſame judges, and if they ſhould alter their opinions, that may produce a final determination of the point in queſtion; but if the ſeveral members of of the court martial adhere to their firſt opinion, upon which there is an equality, I think the queſtion muſt remain undecided.

G. PAUL.

Doctors Commons, 28th of June, 1746.

Letter

No. V. Letter from the Members of the Court Martial on Admiral KEPPEL, to the Admiralty, relative to their long Confinement.

HAVING now been in confinement ſix and thirty days, ſince we firſt aſſembled to ſit on the trial of Admiral Keppel, greatly to the prejudice of our healths, we cannot in juſtice to the ſervice to which we have the honour to belong, and to thoſe officers who may be hereafter required to ſubmit to like injuries, let paſs an opportunity, that appears to us ſo proper for repreſenting to the lords of the admiralty, how much we lament that officers of our rank ſhould, by law, be made liable to ſo ſevere an hardſhip, which, from any reaſon occuring to us, we cannot conceive to be neceſſary, either to the parties on whoſe account a court martial is held, uſeful to the public, or conſiſtent with the character of officers who are called on to ſit as judges; from theſe conſiderations we are deſirous to make known our ſentiments to their lordſhips, in hopes they will take ſuch meaſures, as may appear to them to be requiſite, for the removal of an oppreſſion ſo long and ſo juſtly complained of, and which we flatter ourſelves their lordſhips will more readily acquieſce in, when it is conſidered, that the judge advocate, who is a part of the court, is at liberty upon every adjournment to retire, whilſt the judges are obliged to continue in confinement,

ment, however long it may be, till ſentence ſhall be given,

We are, &c.

T. Pye,	*J. Moutray,*
R. Roddam,	*C. Boteler,*
T. Penny	*M. Arbuthnot,*
A. Duncan,	*F. S. Drake,*
J. Montagu,	*W. Bennet,*
M. Milbank,	*J. Cranſtoun.*

Court Room, Portſmouth,
11th February, 1779.

To Philip Stephens, Eſq.

No. VI. Letter from Mr. STEPHENS to Admiral Sir THOMAS PYE, and order of Council eſtabliſhing a firſt Captain to Flag Officers.

SIR, *8th of June, 1779.*

HAVING communicated to my lords commiſſioners of the admiralty your letter of the 7th inſtant, reſpecting the propriety of Captain Kempenfelt, firſt captain to admiral Sir Charles Hardy, ſitting at a court martial above a ſenior captain; I am in return commanded by their lordſhips, to ſend you herewith a copy of his late Majeſty's order in council, eſtabliſhing a firſt captain to flag officers, having the command of a fleet or ſquadron of twenty ſhips of the line, with the ſame rank as is allowed to the firſt captain to the admiral and commander in chief of the fleet, under which eſtabliſhment Captain Kempenfelt has been ap-

pointed firſt captain to Sir Charles Hardy, and to refer you to the third article of the General Printed Inſtructions, under the head of *Rank and Command*, by which you will ſee, that he is, as ſuch, to be eſteemed as a rear admiral, and to take place at all councils of war, and alſo at courts martial, next to the junior rear admiral.

I am, &c.

PHILIP STEPHENS.

Admiral Sir THOMAS PYE.

At the Court of St. James's the Twenty-ſecond Day of March 1747.

PRESENT,

The King's moſt Excellent Majeſty in Council.

WHEREAS there was this day read at the board, a memorial from the lords commiſſioners of the admiralty, dated the third of laſt month, ſetting forth, that by the eſtabliſhment of the navy, two captains are allowed to the admiral of the fleet when he goes to ſea, and only one to all other flag officers, and therefore propoſing (for the reaſons therein contained), that a flag officer commanding a fleet of twenty ſhips of the line of battle, may have two captains allowed to him, in the ſame manner as is now allowed to the admiral of the fleet. His Majeſty taking the ſame into his royal conſideration, is pleaſed to approve thereof, and to order, as it is hereby ordered, with the advice of his privy council, that whenever any flag officer ſhall be appointed to command a fleet or ſquadron of twenty ſhips of the line of battle, whether all his Majeſty's own ſhips, or united on the ſame ſervice with thoſe of his allies, that he

he be allowed a firſt captain, with the pay and rank of a rear admiral, and all other privileges and profits belonging to the ſaid poſt, in the ſame manner as is allowed to the firſt captain of the admiral of his Majeſty's fleet; but that the ſaid appointment do continue only during the time of the flag officers command. And the right honourable the lords commiſſioners of the admiralty are to cauſe his Majeſty's pleaſure, hereby ſignified, to be carried into execution.

(Signed) W. SHARPE.

No. VII. Copy of a Letter from the Deputy Judge Advocate, to the Secretary of the Admiralty, relative to Sir ROGER CURTIS ſitting as a Member of a Court Martial, in preference to Captains ſenior to him on the Liſt.

SIR, *Portſmouth, October*, 1790.

DOUBTS having ariſen in the minds of ſeveral of the flag officers and ſenior captains at this port, whether a court martial aſſembled in the manner the laſt was, is legal, owing to Sir Roger Curtis ſitting as member thereof, as firſt captain to the commander in chief, in preference to many captains preſent, who are ſenior to him on the liſt, I am directed by the honorable Admiral Barrington, to requeſt the lords commiſſioners of the admiralty, to ſtate the caſe to the crown lawyers for their opinion upon the legality. Section 1.

The act of parliament directs that the court ſhall be compoſed of ſuch flag officers, captains, and commanders, then and there preſent, as are next in

ſeniority to the officers who preſide at the court martial.

The third article of Inſtructions under the head of *Rank and Command*, ſays that the firſt captain to the commander in chief ſhall be eſteemed as a rear admiral, and take place at all councils of war, and *courts martial*, next to the junior rear admiral.

It is underſtood by them, when theſe inſtructions were framed, that the perſon who filled the office of firſt captain to the commander in chief was, in all caſes, the ſenior captain on the liſt.

I am, &c.

PHILIP STEPHENS, *Eſq.*

Section 2. *Caſe and opinion of counſel on the queſtion—Whether the firſt captain to the commander in chief (not being within the thirteenth in ſeniority on the liſt) had a right to compoſe part of the court, and to ſit next the junior rear admiral.*

The lords commiſſioners of the admiralty have directed this caſe to be laid before his Majeſty's advocate, attorney and ſolicitor generals, and the advocate and counſel for the affairs of the admiralty and navy.

Firſt, Whether the third article in the Printed Inſtructions, confirmed by the order in council, veſted in firſt captains a preferable right to ſit at courts martial, in excluſion of captains ſenior on the liſt, or only gave them rank and place at ſuch courts, when their ſeniority as captains entitled them to ſit there.

Secondly, Suppoſing the ſaid article veſted firſt captains,

captains, with a preferable right to ſit, in excluſion of captains ſenior to them, then, whether ſo much of the ſaid article as gave them that right, was not annulled or controuled by the words in the twelfth ſection of the act of parliament, which directs that courts martial ſhall be compoſed of ſuch flag officers, captains, or commanders, then and there preſent, as are next in *ſeniority* to the officer who preſides, &c. or at leaſt ſo far annulled and controuled as renders it neceſſary for the firſt captain to be otherwiſe entitled to ſit, as being one of ſuch captains next in ſeniority.

And upon the whole, whether Sir Roger Curtis, was legally entitled to ſit as a member of the court martial held on lieutenant Bligh.

OPINION.

We are of opinion, that the third article in the Printed Inſtructions, conformed by the order in council, veſted in firſt captains a preferable right to ſit at courts martial in excluſion of captains ſenior on the liſt, and not merely a rank and place, at ſuch courts, when their ſeniority entitled them to ſit. Section 2.

We are of opinion that the right of ſuch captains ſo veſted by the ſaid third article, was annulled by the words in the twelfth ſection of the ſtatute, ſo as to diſable them from ſitting at courts martial, when *their ſeniority* would not entitle them to it.

We are conſequently of opinion that Sir Roger

N. B. Sir Roger Curtis, by his *ſeniority on the liſt*, did not come within the thirteen members to compoſe the court.

Curtis, was not legally entitled to ſit as a member of the court martial held on lieutenant Bligh.

(Signed) *Wm. Scott,*
A. Macdonald,
J. Scott,
Thomas Bever,
F. C. Cuſt.

Section 3. *Copy of a letter from Sir* HYDE PARKER *to the Right honorable Lord* HOOD, *vice admiral of the Blue, commander in chief, &c. reſpecting his right to ſit at courts martial next the junior rear admiral.*

The Victory, at Spithead,
22d of June, 1791.

MY LORD,

Having been ſummoned to aſſiſt at a court martial, which met on the 20th inſtant, on board his Majeſty's ſhip the Royal William, I claimed, on the members ſeating themſelves, to take the place next in rank to the junior rear admiral then preſent, agreeable to what I underſtand to be the true purport and meaning of the third article under the head of *Rank and Command,* of the regulations and inſtructions, relating to his Majeſty's ſervice at ſea—Being in this over-ruled by a deciſion of the majority of the officers then aſſembled, who were of opinion, I ought to take my place in the court according to my rank as a poſt captain only, without regard to that ſuperior rank, which the article above referred to appears to give me; and having in this determination acquieſced, that the buſineſs before the court ſhould not be delayed, without being ſatisfied as

to

to its propriety; in order to reſolve the doubts, which ſeveral officers with myſelf entertain on this point, I am to requeſt that your lordſhip will be pleaſed to apply to the lords commiſſioners of the admiralty to know,

Whether the *firſt captain* to an admiral of your lordſhip's rank, and commanding in chief a ſquadron of his Majeſty's ſhips and veſſels equally numerous with that at preſent under your lordſhip's command, and being by the ſeniority of his commiſſion within the number required to conſtitute a court, *ſhall be eſteemed, as a rear admiral, and take place at all councils of war, and alſo at courts martial*, next to the junior rear admiral.

I have the honor to be,
My Lord, &c.

The Right Honorable
Lord HOOD, *&c.*

Copy of a letter from Mr. Secretary STEPHENS, *in anſwer to Sir* HYDE PARKER's *letter, with opinion thereon.* Section 4.

Admiralty-Office, 24th of June, 1791.

MY LORD,

I have communicated to my lords commiſſioners of the admiralty your lordſhips letter of the 22d inſtant, tranſmitting one you had received from Sir Hyde Parker, your firſt captain, requeſting, for the reaſons therein given, to be informed, whether the *firſt captain* to an admiral of your lordſhip's rank, and commanding in chief a ſquadron of his Majeſty's ſhips and veſſels equally numerous with that at preſent under your command, and being by the ſeniority of his commiſſion within the number required to conſtitute a

court, "*ſhall be eſteemed as a rear admiral, and take "place at all councils of war, and alſo at courts martial, "next to the junior rear admiral.*"

And in return I am commanded by their lordſhips to acquaint you, that they are clearly of opinion, that the firſt captain to the admiral of the fleet, or any flag officer having a ſquadron of twenty ſail of ſhips of the line under his command, being by the ſeniority of his commiſſion as a captain within the number of officers required to conſtitute a court martial, ought to be eſteemed as a rear admiral, and take place at courts martial, as well as at councils of war, next to the junior rear admiral, agreeable to the third article of the General Printed Inſtructions under the head of Rank and Command.

I have the honor to be,
My Lord, &c.

Vice Admiral Lord HOOD,
&c. Spithead.

Section 5. *Copy of a letter from the Deputy Judge Advocate to Mr.* STEPHENS, *relative to Sir* HYDE PARKER.

SIR,

YOU will be pleaſed to inform the lords commiſſioners of the admiralty, that purſuant to their lordſhips' order, the flag officers and captains aſſembled on board the Royal William for the purpoſe of compoſing a court martial, for the trial of Thomas Jones, a ſeaman, belonging to his Majeſty's ſloop Speedy, on the charge therein mentioned, but a doubt having ariſen in the minds of ſome of the members, whether

Sir

Sir Hyde Parker (who comes within the number directed by act of parliament to compoſe the court) ſhould take his ſeat at the court martial, next the junior rear admiral, under the directions of the third article in the Naval Inſtructions, as firſt captain to the commander in chief, in preference to captains who will alſo compoſe part of the court, and who are ſenior to him on the liſt; or whether he ſhould take his ſeat as a captain, according to his ſeniority on the liſt.

I am requeſted to deſire their lordſhips will be pleaſed to order their ſolicitor to ſtate the caſe, for the opinion of ſuch counſel, as they ſhall think proper, on the queſtions here underwritten.

Firſt, Whether Sir Hyde Parker, as the firſt captain to the commander in chief, commanding twenty ſail of the line and upwards, being by his ſeniority on the liſt of captains within the number of perſons directed by the twelfth ſection of the act of 22 Geo. II. to compoſe the court, has a right to take place at the court martial, next the junior rear admiral, in preference to captains, ſenior to him on the liſt, purſuant to the third article of the naval inſtructions, under the title of rank and command?

Secondly, Suppoſing Sir Hyde Parker, as firſt captain to ſuch commander in chief, ſhould be admitted to take place next to the rear admiral; whether or not his vote being given in that place, when there are two captains ſitting who are ſenior to him on the liſt, is conſiſtent with the ſeventh article of the Naval Inſtructions, under the title of Courts Martial, which directs, *that the youngeſt member ſhall vote firſt proceeding in order up to the preſident*, and whether or not a ſentence being given

given in ſuch caſe, may not be ſubject to the members of the court to be called on by a ſuperior court of law, for illegality in their proceedings?

Section 6. *Opinion of counſel for the crown on the preceding queſtion.*

Having conſidered the king's inſtructions, and the act of 22 Geo. II. c. 33. and the uſage which has obtained ſince that act paſſed; we are of opinion that the firſt captain to the commander in chief, when a member of the court martial according to that act, has a right to take place next the junior rear admiral, and to vote according to that rank.

Wm. Scott,
A. Macdonald,
J. Scott,
F. C. Cuſt.

14th of July, 1791.

No. VIII.

No. VIII. Caſes and Opinion relative to Murders cognizable by a Court Martial.

Admiralty-Office, 20*th of April*, 1776.

SIR,

Section 1. HAVING communicated to my lords commiſſioners of the admiralty your letter of the 16th inſtant, incloſing one from captain Jervis, of the Foudroyant, giving an account that in a fray, which happened on the 15th, between John Black and Daniel Brady, two ſeamen belonging to that ſhip, the latter received an unfortunate blow from the former, under which and from the want of proper care, owing to the tranſactions not being made known to any of the officers, he languiſhed till half paſt five the next morning and then died; and deſiring to know whether the priſoner ſhould be delivered up to the magiſtrates of the county of Cornwall, or be tried at a court martial—I am commanded by their lordſhips, to ſignify their directions to you, to cauſe him to be delivered up to the civil magiſtrate to be dealt with according to law, upon proper application being made to you for that purpoſe.

I am, &c.

PHILIP STEPHENS.

To Vice Admiral AMHERST.

Admiralty-Office, 21*ſt of February*, 1783.

SIR,

Section 2. I have communicated to my lords commiſſioners of the admiralty your letter of yeſterday's date, informing them that Richard Davis, acting midſhipman of the Euridice,

Euridice, having *ſtabbed* John Liddel Palmer, another midſhipman *on board* the ſaid ſhip, on Sunday night laſt, of which wounds the latter died, you had, on the coroner's application, ordered the body of the deceaſed to be carried on ſhore to Goſport, where an inqueſt was taken, and a verdict of wilful murder found againſt Richard Davis, whom you directed to be delivered up to the civil magiſtrate, to take his trial for the murder; and in return, I am commanded by their lordſhips to acquaint you, that this being a caſe cognizable by a court martial, more eſpecially as the wounds were given and the deceaſed died *on board* the ſhip, you ought not to have ſubjected the body to the coroner's inqueſt, or to have delivered up Davis to the civil magiſtrate.

I am, &c.

PHILIP STEPHENS.

Admiral Sir THOMAS PYE,

Admiralty-Office, 11th of January, 1783.

SIR,

Section 3. I have communicated to my lords commiſſioners of of the admiralty your letter of the 6th inſtant, returning Captain de Courcy's letter, relative to the man killed by Lieutenant Oſmond, of the Swallow ſloop, and in return thereto, I am commanded by their lordſhips, to incloſe for your peruſal a letter which they have received from Mr. Bedford the coroner, upon the ſubject, together with the opinion of the attorney general thereupon, and to ſignify their directions to you, to cauſe the above-mentioned lieutenant to be delivered up to the civil magiſtrates, to the end that he may take his trial,

trial, at the next goal delivery for the county, accordingly, taking particular care that the perſons named in the coroner's above-mentioned letter, be not ſuffered to go to ſea, but kept in readineſs to attend the ſaid trial.

I am, &c.

PHILIP STEPHENS.

Admiral Sir THOMAS PYE.

Abſtract of Lieutenant OSMOND'S *Caſe.* Section 4.

On the 29th of December 1782, Lieutenant Oſmond ſtabbed Richard Tucker, a ſeaman belonging to the Veſuvius bomb veſſel, as he was coming alongſide the Swallow. The wounded man was ſent to Haſlar hoſpital, and died there two days afterwards. On the firſt of January following, the coroner's inqueſt ſat on the body, and the jury brought in a verdict of wilful murder againſt Lieutenant Oſmond.

The Attorney General's Opinion. Section 5.

I preſume the wound was given in a place not within the limits of any county, but be that as it may, ſtill this unfortunate man ought to be delivered up to the civil power, in order to be tried at the next goal delivery for the county in which Richard Tucker died; for by the ſtatute, 2 Geo. II. c. 21, "When a perſon ſhall be feloneouſly ſtricken upon the ſea and ſhall die of the ſtroke in England, the offender may be indicted in the county where the death ſhall happen." I do not ſee what a court martial has to do with the buſineſs, it is for the county goal delivery, or an admiralty ſeſſions.

L. KENYON.

January the 9th, 1783.

No. IX.

No. IX. Letter and Caſe relative to trying by Courts Martial, Officers and men in Ordinary.

Dorſetſhire, Portſmouth Harbour,

Section 1. SIR, *Auguſt, the 12th 1765.*

WE the underwritten captains of his Majeſty's ſhips at Portſmouth, who were to have compoſed a court martial for the trial of Alexander Cockburne, having, previous to the trial, taken into conſideration the order from their lordſhips, that from the nature of this preſent caſe, being that of a warrant officer of the Centaur, a ſhip in ordinary, we entertain great doubts whether, as the ſhips in ordinary are under the immediate direction of the commiſſioners of the dock-yard, and have never been generally eſteemed to be liable to martial law, nor to the directions of the military officers, we, when aſſembled as a court, ſhall have juriſdiction over the priſoner; we make it therefore our humble requeſt, that their lordſhips will be pleaſed, if they approve thereof, to direct the opinion of the king's civilians to be taken on the full circumſtances of the caſe, for our guidance on the preſent occaſion,

We are, &c.

(Signed) *R. Hughes*, *Wm. Bennet*, *J. Montagu*, *P. T. Percival*, *R. Hughes, Jun.* *Wm. Campbell*, *W. Hotham*, *John Luttrell.*

THOMAS CORBETT, *Eſq.*

N. B. Dr. Harris, advocate of the admiralty, in his opinion on the above caſes, had not a doubt of the competency of a court martial to try any perſon belonging to his Majeſty's ſhips in ordina ry, for offences committed by them againſt the articles of war.

Letter

Letter from the Secretary of the Admiralty, relative to the competency of trying perſons belonging to ſhips in ordinary. Section 2.

SIR,

I am favoured with yours of the 4th inſtant, in regard to courts martial having cognizance of crimes committed by perſons belonging to the ſhips in ordinary.

As the act of parliament expreſsly extends to perſons (without exception) *in actual ſervice and full pay*, and as perſons belonging to ſhips in ordinary are undoubtedly under both theſe circumſtances, courts martial appear to be fully impowered thereby to take cognizance of crimes committed by ſuch perſons.

But as the precedent of this juriſdiction having been exerciſed, muſt undoubtedly be more ſatisfactory than any opinion of mine on this matter; I ſhall therefore, only add, that ſometime between the two laſt wars, I attended a court martial at Chatham, where two or three warrant officers of ſhips in ordinary at Woolwich were ordered to be tried by the admiralty, and they were tried accordingly.

I am, &c.

THOMAS CORBETT.

No. X. Papers relative to the trying of Mates or Seamen belonging to Navy Tranſports.

Navy-Office, 19th of July, 1791.

SIR,

Section 1.

COMMISSIONER Fanſhaw having tranſmitted us the incloſed depoſitions, (No. 1 to 14.) concerning the men named in the margin, who are now in cuſtody on board the Cambridge, being concerned in embezzling ſome ſtores from the Plymouth tranſport, and recommended that they ſhould be tried for the ſaid offence by a court martial; we deſire that you will be pleaſed to lay the ſame before the right honorable the lords commiſſioners of the admiralty, and acquaint their lordſhips that having ſome doubts concerning the propriety of trying them by a court martial, we applied to our ſolicitor for his opinion thereon, a copy of whoſe anſwer is alſo incloſed, and you will pleaſe to move their lordſhips to give ſuch directions thereon, as they ſhall think proper.

J. Crabb, mate, Arthur Giffard, James Wilſon, P. Lindgren, George Chapander, belonging to the Plymouth tranſport.

We are, Sir,

Your very humble ſervants,

(Signed) *Henry Martin,*
J. Henſlow,
Geo. Marſh,
L. Cras.

PHILIP STEPHENS, *Eſq. &c.*

Great

Great Marlborough-ſtreet,

GENTLEMEN, *19th of July*, 1791.

In obedience to your directions, ſignified to me in your letter of 13th inſtant (incloſing ſeveral diſpoſitions and other papers relative to ſome ſtores being embezzled by the mate and part of the crew of the Plymouth tranſport), that I ſhould give you my opinion, whether, as the ſaid tranſport is borne on the ordinary of the yard, and not conſidered as one in commiſſion, the embezzlement above mentioned is a proper caſe for the inveſtigation of a court martial, I take the liberty to acquaint you that the embezzlement in queſtion having been committed on board a ſhip belonging to his Majeſty, by perſons in his ſervice and pay, I humbly apprehend they may be legally tried by a court martial, and that it is a caſe proper for the inveſtigation of ſuch a court. Section 2.

Herewith I return the ſeveral papers, which you were pleaſed to ſend me on the ſubject.

I am, with great reſpect,

Your Honor's moſt humble,

And moſt obedient ſervant,

(Signed) JAMES DYSON.

Atteſted JOHN MARGETSON.

Order for aſſembling a court martial, by the commiſſioners for executing the office of Lord High Admiral of Great Britain and Ireland, &c. Section 3.

WHEREAS the commiſſioners of his Majeſty's navy have tranſmitted to us two letters, dated the 9th and

10th of laſt month, which they have received from Robert Fanſhaw, Eſq. reſident commiſſioner at Plymouth, the former ſtating the circumſtances of an attempt made by John Crabb, the mate, Arthur Giffard, James Wilſon, Peter Lindegren, and George Chapander, ſeamen, part of the crew of his Majeſty's tranſport the Plymouth, to carry away and to embezzle ſome of her ſtores; and the latter incloſing copies of ſeveral depoſitions relative to the tranſaction and the copy of the report of a ſurvey taken by the officers of his Majeſty's yard at that port upon the ſtores of the ſaid tranſport, by which there appears a conſiderable deficiency in the quantity of cordage iſſued for refitting her, beſides the quantity ſtopt in the boat. And whereas, from the circumſtances ſtated in the ſaid commiſſioner's letter, and deficiencies ſpecified in the ſaid report, there is ground to apprehend, that ſome part of the ſtores of the ſaid tranſport has been clandeſtinely taken away, and that a quantity of the ſtores was taken out of the ſaid veſſel with intention to be embezzled by the above named perſons, belonging to her. And whereas we think fit that they ſhall be tried for the ſame by a court martial, we ſend you herewith the two letters from commiſſioner Fanſhaw above mentioned, together with copies of the depoſitions marked No. 1. to 14, and the copy of the report of a ſurvey on the ſtores of the ſaid tranſport herein referred to, and do hereby require and direct you to aſſemble a court martial as ſoon as conveniently may be, which court (you being preſident) is hereby required and directed to try the ſaid John Crabb, Arthur Giffard, James Wilſon, Peter Lindegren, and George Chapander,

Chapander, for the offences with which they are reſpectively charged in the ſaid letters and papers accordingly. Given under our hands, the 27th Auguſt, 1791.

(Signed) *Chatham,*
A. Gardner,
C. Pybus.

To JOHN MACBRIDE, *Eſq. captain of his Majeſty's ſhip the Cumberland, and ſecond officer in the command of his Majeſty's ſhips and veſſels at Plymouth.*

By command of their Lordſhips.

(Signed) PHILIP STEPHENS.

At a court martial aſſembled and held on board his Majeſty's ſhip Cambridge, in Hamaoze, this 31ſt Auguſt, 1791. Section 42

John Macbride, eſq. preſident; Sir James Wallace, knight, John Ford, John Colpoys, Thomas Mackenzie, Henry Harvey, Charles Chamberlayne, Charles Morice Pole, John Thomas Duckworth, Honorable John Rodney, Thomas Hicks, John Samuel Smith, Sir Thomas Byard, knight.

PURSUANT to an order from the right honorable the lords commiſſioners for executing the office of lord high admiral of Great Britain and Ireland, addreſſed to John Macbride, eſquire, captain of his Majeſty's ſhip Cumberland, and ſecond officer in command of his Majeſty's ſhips and veſſels at Plymouth, directing him to aſſemble a court martial, to try John Crabb, mate, Arthur Giffard, James Wilſon, Peter

Lindegren, and George Chapander, ſeame, belonging to his Majeſty's tranſport the Plymouth, for embezzlement of the king's ſtores: and the court having maturely and deliberately conſidered the ſame, is of opinion, that the priſoners, John Crabb, mate, Arthur Giffard, James Wilſon, Peter Lindegren, and George Chapander, ſeamen, are not perſons ſubject to naval diſcipline.

Signed by all the Members.

By command of the court,

G. M. RAYLAND,

Appointed to officiate as deputy judge advocate.

Section 5. *The following is a copy of a letter from Mr. Secretary* STEPHENS, *of the admiralty, to Sir* RICHARD BICKERTON, *baronet, commander in chief of his Majeſty's ſhips and veſſels at Plymouth, dated 8th Sept.* 1791.

SIR,

HAVING communicated to my lords commiſſioners of the admiralty your letter of the 31ſt *ultimo*, tranſmitting the reſult of the meeting of the captains who aſſembled that morning on board the Cambridge, to hold a court martial, to try the mate and ſeamen belonging to the navy tranſport, by which it appears that they are of opinion, that the priſoners above mentioned are not ſubject to naval diſcipline; I am commanded by their lordſhips to ſend you herewith, for the information of the captains, a copy of a letter from Mr. Dyſon (aſſiſtant to the council for the affairs of the admiralty and navy) to the navy board, acquainting them that the embezzlement with which the priſoners

ſoners are charged, is, in his opinion, proper for the inveſtigation of a court martial, having been committed on board a ſhip belonging to his Majeſty, by ſeamen in his Majeſty's ſervice and pay; which opinion (the tranſport being borne, and the officers and men paid in like manner as thoſe of other ſhips in the ordinary) their lordſhips conceive to be grounded upon one given by Doctor Harris, advocate of the admiralty, in the year 1765*, in conſequence of a complaint exhibited by lieutenant Tait of one of his Majeſty's ſhips in commiſſion, againſt Alexander Cockburn, a gunner of a ſhip in ordinary, that he had not a doubt of the competency of a court martial to try any perſon belonging to his Majeſty's ſhips in ordinary, for offences committed by them againſt the articles of war.

I am, &c.

The following is a copy of a letter from Captain MACBRIDE *to Sir* RICHARD BICKERTON, *baronet, &c. &c. &c. dated September* 1791, *viz.* Section 6.

SIR,

IN conſequence of your letter of the 10th inſtant, I have convened the captains (who remain at this port) that compoſed the court martial upon the mate and four ſeamen belonging to the Plymouth tranſport, and have communicated Mr. Dyſon's opinion thereupon; notwithſtanding which we remain unanimous in our former deciſion, for the following reaſons; we conſider *actual ſervice and full pay*, as expreſſed in the article of war, to apply only to officers and men

* Vide the caſe alluded to, Appendix, No. IX. Section 1.

actually belonging to one of his Majeſty's ſhips or veſſels of war, under a flag or pendant.

The crews of navy tranſports enter, and it ſeems they have always been diſcharged upon requiring it, and diſcharge themſelves at pleaſure, and in many inſtances of an armament, have left the tranſports and ordinary, and entered on board of his Majeſty's ſhips of war, and received his Majeſty's bounty: had they been ſubject to naval diſcipline, they were liable to be tried for deſertion, and the captain who entertained them liable to be tried by a court martial for having ſo done.

And though we are of opinion, that the warrant officers and men belonging to his Majeſty's ſhips of war in ordinary, ſhould be ſubject to naval diſcipline, yet, when we conſider them immediately under the navy board, and their officers, who ſay they are not ſubject to naval diſcipline, we lament the line is not more ſtrongly marked between ſhips in commiſſion and thoſe in ordinary.

With every ſentiment of deference and reſpect to their lordſhips, we humbly entreat their lordſhips will be pleaſed to lay theſe our doubts and reaſons before his Majeſty's judges, for their opinion and our guidance in future.

I am, &c.

CASE.

Section 7. SHIPS of war laid up in port are called ſhips in ordinary, being inſerted in the *ordinary liſt* of the navy, and the warrant officers, &c. appointed to take care of them are paid quarterly, in like manner as artificers and labourers in the king's dock yards. Navy tranſports (which are alſo in the ſame liſt) are employed in

in carrying ſtores, &c. from one dock yard to another, and their officers and people (who are appointed by the navy board) are likewiſe paid in the ſame manner: and which tranſports, as well as ſhips of war in ordinary, are under the immediate direction and controul of the navy board. But ſhips of war in commiſſion come under the denomination of *extraordinaries* (on account of the uncertainty in the expence attending them) and are under the immediate orders of the lords of the admiralty.

22 George II. c. 33. ſect. 2. enacts, "That for the "regulating and better government *of his Majeſty's* "*navies, ſhips of war, and forces by ſea*, the articles "and orders thereinafter following, as well in time of "peace as in time of war, ſhall be duly obſerved and "put into execution, in manner thereinafter men-"tioned;" the 24th of which articles is in the following words, viz.

"There ſhall be no waſteful expence of any powder, "ſhot, ammunition, or other ſtores, in the fleet, nor "any embezzlement thereof, but the ſtores and pro-"viſions ſhall be carefully preſerved, upon pain of "ſuch puniſhment to be inflicted upon the offenders, "abettors, buyers, and receivers *(being perſons ſubject* "*to naval diſcipline)* as ſhall be by a court martial "found juſt in that behalf."

Sect. 4. provides, "That nothing in the ſaid act "ſhall extend to impower any court martial to pro-"ceed to the puniſhment or trial *of any of the* offences "ſpecified in the ſeveral articles, &c. which ſhall not "be committed upon the main ſea, and which ſhall "not be committed by ſuch perſons as at the time of

"the offence committed, *ſhall be in actual ſervice and "full pay in the fleet or ſhips of war* of his Majeſty, his "heirs or ſucceſſors."

The aforegoing caſe is laid before his Majeſty's advocate, attorney, and ſolicitor general, and the advocate and counſel for the admiralty, for their opinion.

QUERY.

WHETHER the officers and crews of the navy tranſports of the deſcription before mentioned, may, or may not be legally tried by a court martial, for breach of any of the articles of war, ſpecified in 22 George II. c. 33. and particularly for the offence of embezzling his Majeſty's ſtores, on board of or belonging to ſuch tranſports?

OPINION.

Attending to the anſwers which have been given by the navy board to the queſtions annexed; we are of opinion, that the officers and crews of navy tranſports of the above deſcription, cannot be legally tried by a court martial.

Signed { *William Scott,*
A. P. Macdonald,
J. Scott,
W. Battine.

9th December, 1791.

Queries,

Queries, by counſel, reſpecting the crews of ſhips in ordinary and navy tranſports, with the anſwers of the navy board, referred to in the opinion of the crown lawyers. Section 8.

I.

Q. HOW and by what authority are the different officers of ſhips in ordinary and navy tranſports reſpectively appointed, and what are the different ranks or ſtations of ſuch officers on board each?

A. The ſtanding warrant officer in ſhips in ordinary *viz.* boatſwains, gunners, carpenters, and purſers, are appointed by the admiralty; and the cooks by the navy board; and the mates of the tranſports are recommended by the maſter, and appointed by the maſter-attendant of the dock yard, with the approbation of the board, or the commiſſioner reſident at the port.

II.

Q. How and with whom, and upon what terms do the ſeamen belonging to the ſhips in ordinary and navy tranſports reſpectively contract or engage themſelves? and how are they ſeverally paid, diſtinguiſhed from the mode of paying off ſhips in commiſſion?

A. They make their application to be entered to the maſter-attendant at the port, who approves and certifies the ſame to the commiſſioners, and if it likewiſe meets his approbation, he ſigns it, which is an authority to the clerk of the cheque to enter him; there is no contract, but the cuſtom and pay is well known, they are paid their wages quarterly, on the yard books, when the workmen belonging to the dock yard are paid.

III.

of the *rank and degree of poſt captain* even for that time; the queſtion then is, whether a poſt captain commanding a ſloop, is to be conſidered as the junior poſt captain, or as a maſter and commander. If the former, he muſt ſit as a member of every court martial that ſhall be held at the place where he may be; but if the latter, he can only be called upon when there are not leſs than three, nor yet ſo many as five officers of a ſuperior degree.

No. XII. Caſe relative to the Court Martial held on Captain NORRIS, accuſed by his Officers of bad Conduct in the Engagement off Toulon, February, 1744, the Proceedings of which were cenſured by the Houſe of Commons.

SOON after the engagement off Toulon, Captain Norris having reſigned the command of the Eſſex, on account of ill health, had intended returning to England; but learning how much his character was aſperſed by his officers, he applied to Vice Admiral Rowley (then commanding officer), for a court martial to enquire into his conduct on the day of action.

As Captain Norris had reſigned his command, the vice admiral did not conceive he had power to order a court martial to be aſſembled, without orders from the admiralty.

Captain Norris made application to the admiralty, and a commiſſion was granted for Vice Admiral Rowley's aſſembling a court martial, to enquire into the conduct

conduct of Captain Norris; and upon the 28th January, 1745, a court martial was accordingly aſſembled, at Mahon, on board of the Torbay, compoſed of the following members:

William Rowley, eſquire, vice admiral, &c. preſident.

CAPTAINS.

J. Gaſcoigne	R. Hughes
H Oſborne	Hon. Geo. Murray
Jo. Lingen	Will. Dilk
C. Drummond	Thos. Pye
Thos. Fox	Jn. Lovett
Cha. Watſone	Ja. Hodſall
Tho. Cooper	R. Watkins
Hon. Geo. Townſhend	M. De L'Angle
Ed. Strange	Jn. Watkins
Matt. Mitchell	G. R. Vanburgh
Robt. Pett	Jn. Wilſon
C. W. Purvis	Hon. Wm. Farmer.
Rob. Maynard	

Lieutenant Edward Jekyl, ſecond lieutenant of the Eſſex, was the accuſer of Captain Norris, the court wiſhed that the accuſer ſhould be ſworn, but this he refuſed; and the court, after proceeding ſeveral days in examining witneſſes, a motion was made and ſeconded on the 5th of February, whether the court had a right, or ought to come to any determination on the matter before them, as Captain Norris was not then in his Majeſty's ſervice, or on full pay. The court therefore came to the reſolution to tranſmit the whole minutes of their proceedings, on this enquiry, to the lords commiſſioners of the admiralty. Lieutenant Jekyl repreſented to the ſecretary of the admiralty the treatment

ment he had received from the court, and Lieutenant Palliſer, Gower, and Peyton, the other lieutenants of the Eſſex, wrote to the admiralty on the ſame ſubject; theſe papers were laid before the houſe of commons, who animadverted on the proceedings, and cenſured them as *partial*, *arbitrary*, and *illegal*.

Captain Norris was included, with other captains and officers accuſed of bad conduct, in the vote of the houſe of commons requeſting his Majeſty to give directions to try them, but Captain Norris, when at Gibraltar, on his way home to England, retired into Spain, changed his name, and remained for ever in obſcurity.

No. XIII. Caſe of Lieutenant FRYE of the Marines, and the Conſequences reſulting from illegal Proceedings at a Court Martial.

IN the year 1743, Lieutenant Frye of the marines, ſerving on board the Oxford man of war, was brought to a court martial, at Port Royal, in Jamaica, by the captain of the ſhip, for having diſobeyed his orders, in refuſing to aſſiſt another lieutenant in carrying an officer priſoner on board the ſhip. Lieutenant Frye had perſiſted to have the captain give the order in writing. The evidence produced againſt him at the court martial, were the depoſitions of a parcel of illiterate people, reduced into writing ſeveral days before he was brought to trial, which perſons were entirely unknown to him, having never to his knowledge ſeen or heard their names before; and upon his objecting

to

to the evidence, he was brow-beaten and over-ruled. On the charge being thus proved, he was ſentenced to fifteen years impriſonment, and rendered for ever incapable of ſerving his Majeſty. He was brought home, and his caſe after being laid before the privy council, appearing in a juſtifiable light, his late Majeſty was graciouſly pleaſed to remit the puniſhment, and to order him to be releaſed.

Some time after he brought an action in the court of Common Pleas, againſt Sir Chaloner Ogle, who had ſat as preſident at the court martial, and had a verdict in his favour for 1000*l.* damages, it having been proved that he had been kept fourteen months in cloſe confinement before he was brought to trial. The judge moreover informed him that he was at liberty to bring his action againſt any of the members of the ſaid court martial he could meet with. The ſubſequent ſteps of this caſe are ſtill more remarkable.

Upon application made by Lieutenant Frye, Sir John Willes, lord chief juſtice of the Common Pleas, iſſued his writ of capias againſt Rear Admiral Mayne, and Captain Rentone, two of the members who had ſat at the above court martial; on the 15th of May, 1746, while Admiral Mayne preſided, and Captain Rentone ſat as member of a court martial, at Deptford, for the trial of Vice Admiral Leſtock, they were both arreſted, at the breaking up of the court, in conſequence of the above writ.—The arreſting of the preſident highly offended all the members of the court, they met twice on the ſubject, and reſented highly what they deemed an inſult, and drew up certain *reſolutions*,

lutions, in which they expreſſed themſelves with ſome degree of acrimony againſt the lord chief juſtice; and the judge advocate was directed to deliver them to the board of admiralty, in order to their being laid before the king. In theſe reſolutions they demanded "ſatiſ-"faction for the high inſult on their preſident, from "all perſons how high ſoever in office, who have ſet "on foot this arreſt, or in any degree adviſed or pro-"moted it," and remonſtrating that by the ſaid arreſt, "the order, diſcipline, and government of his Ma-"jeſty's armies by ſea was diſſolved, and the ſtatute "13 Charles II. made null and void."

The lords of the admiralty were much diſpleaſed at the indignity offered the court, and accordingly laid the reſolutions before his Majeſty. The duke of Newcaſtle, by his Majeſty's command, wrote to the lords commiſſioners of the admiralty, wherein he ſays, "His "Majeſty expreſſed great diſpleaſure at the inſult "offered to the court martial, by which the military "diſcipline of the navy is ſo much affected; and the "king highly diſapproves of the behaviour of Lieut. "Frye on the occaſion. His Majeſty has it under con-"ſideration what ſteps may be adviſeable to be taken "on this occaſion."

From the ſequel it will appear that the lords commiſſioners of the admiralty, as well as the ſecretary of ſtate, were not aware of the very great authority of the lord chief juſtice of Common Pleas; who, as ſoon as he heard of the reſolutions of the court martial, cauſed each individual member to be taken in cuſtody, and was proceeding in legal meaſures to aſſert and maintain the authority of his office, when a ſtop was put to the

the proceſs by the following ſubmiſſion (ſigned by the preſident, and all the members of the court*) being tranſmitted to Lord Chief Juſtice Willes.

" As nothing is more becoming a gentleman, than " to acknowledge himſelf to be in the wrong, ſo ſoon " as he is ſenſible he is ſo, and to make ſatisfaction to " any perſon he has injured; we, therefore, whoſe " names are underwritten, being thoroughly convinced " that we were entirely miſtaken in the opinion we " had conceived of Lord Chief Juſtice Willes, think " ourſelves obliged in honor, as well as juſtice, to " make him ſatisfaction as far as it is in our power. " And, as the injury we did him was of a public na- " ture, we do, in this public manner, declare, that we " are now ſatisfied the reflections caſt upon him in " our reſolutions of the 16th and 21ſt of May laſt, " were unjuſt, unwarrantable, and without any foun- " dation whatſoever; and we do aſk pardon of his " lordſhip, and of the court of Common Pleas, for " the indignity offered both to him and the court."

This paper was dated the 10th of November, 1746, was received in the court of Common Pleas on the

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* Signed by Perry Mayne, eſq. rear admiral of the Blue, preſident. Honorable John Byng, rear admiral of the Blue.

CAPTAINS.

Honorable Ed. Legge	Jn. Orme
James Rentone	Thos. Frankland
Charles Coleby	Honorable Jn. Hamilton
Joſeph Hamer	Sir Chas. Molloy
Smith Calis	Robert Erſkine
Jn. Pitman	Chas. Catford.
Thos. Hanway	Edw. Spragge.

14th, and ordered to be regiſtered in the Remembrance Office—a memorial, as the lord chief juſtice then obſerved, "*to the preſent and future ages, that whoever ſet themſelves up in oppoſition to the laws, or think themſelves above the law, will in the end find themſelves miſtaken.*" The letter from the court martial, together with Judge Willes's acceptation, were inſerted in the Gazette of 15th November, 1746.

No. XIV. Queries, and Judge BATHURST'S Opinion relating to the Duties of a Judge Advocate, and Aſſembling Naval Courts Martial.

QUERY I. What is properly the office of a judge advocate; the act of the 22 Geo. II. ſays, he is to ſwear the court and the evidence, and the general printed Inſtructions under the heads of Courts Martial, directs him to take minutes of the proceedings of the court, to adviſe them of the proper forms, and to deliver his opinion on any doubts or difficulties that may ariſe in the courſe of the trial; but I ſhould be glad to know, whether he is proſecutor for the crown, and, if ſo, whether he can with propriety adviſe the priſoner and aſſiſt him in his defence?

Anſwer to the above Query by Judge BATHURST.

The anſwers to theſe queries ſuppoſe the fact contained in them to be accurately ſtated, as well as the clauſes of the different acts of parliament which are alluded to.

The duty of a judge advocate can only be collected from the ſtatutes which relate to naval courts martial, and

and the conſtant practice ſince the firſt of theſe, which is ſuppoſed to be the 13th of Charles II. It is undoubtedly his duty that the proof, both on the part of the crown and the priſoner, ſhould be properly laid before the court; and where the point is doubtful, he ſhould incline on the part of the priſoner.

QUERY II. By the act of parliament of the 22d George II. a court martial is authorized, in the abſence of the judge advocate of the fleet and his deputy, to appoint a perſon to execute the office of judge advocate; but as it cannot properly become a court martial, till the members are ſworn but by a judge advocate, how and when is ſuch perſon to be appointed?

It appears highly reaſonable that he ſhould be appointed ſome time before the court aſſembles, as there ought to be ſome time to give the priſoner notice of his trial, to ſummons the evidence, &c. which are ſuppoſed to be part of the judge advocate's duty; has not the preſident therefore authority, as ſoon as he receives an order to aſſemble a court martial, to grant a warrant to ſome perſon to execute the office, if not objected to by the majority of the members, will of courſe become the officiating judge advocate agreeably to the act; and can it be a legal court martial, if the perſon officiating as judge advocate be appointed by warrant from the commander in chief of the ſquadron inſtead of the preſident?

Anſwer to the ſecond Query.

I think that the court martial, as ſoon as it is aſſembled, may appoint a judge advocate; and as the act ſays it muſt be done by the court, a majority ſhould

concur in the appointment. It might not be improper, however, to have this further explained by a new act.

No. XV. Caſe and Opinion of the King's Advocate General, and the Solicitor of the Admiralty, with regard to a Judge Advocate's Proceedings at a Court Martial.

I. A COURT martial is intended to be ſoon held for enquiring into the conduct of ſeveral officers, in the late naval engagement off Toulon, in February 1744; and charges have been prepared by the proſecutors in behalf of the crown, againſt the ſeveral officers who are to be tried; Should ſuch charges be laid before the court by the judge advocate?—Should he examine the witneſſes upon ſuch points as may occur to him to be proper or neceſſary at the trials, as well in ſupport of the charges, as in behalf of the perſons charged; and, in the deliberations or debates of the court, ought he to offer his ſentiments and opinion, if he ſhould judge the ſame proper or requiſite for the information of the court? and ought he not to offer and lay before the court, whatever he judges may tend to their information?

The charge intended to be laid before the court martial, ought to be produced by the judge advocate. He may examine the witneſſes upon ſuch points as may occur to him to be proper or neceſſary to be conſidered at the trial, as well in ſupport of the charge, as on behalf

half of the perſons accuſed. In the deliberation and debates he muſt offer his ſentiments and opinion, if required, or if he obſerved any error in point of law, he ought to offer his judgment on the point for the information of the court; and he ought to lay before the court every matter or thing that may conduce to a regular deciſion of the points in queſtion.

II. Part of a judge advocate's duty at a court martial, is to take minutes of all the proceedings thereat; which minutes are to be atteſted by the judge advocate, and are the only authentic account of the court's proceedings:

Ought not the court to be ſo deliberate in their proceedings, as to allow ſufficient time for the judge advocate to take his minutes of the whole proceedings with exactneſs? but if the court ſhould ſcruple to do ſo, and not allow ſufficient time in their proceedings for that purpoſe; how in ſuch caſes ought the judge advocate to act?

A court martial ought to allow a ſufficient time, for the judge advocate to take proper minutes of the entire proceedings with exactneſs. And the minutes taken ſhould be read to the court, and be approved by them. We are of opinion, that the court cannot in point of juſtice deny ſufficient time for the taking proper minutes of the proceedings.

III. It is cuſtomary for the judge advocate to take preparatory affidavits from the witneſſes in ſupport of the charge, againſt a perſon to be tried at a court martial.

Is it fitting or proper ſuch affidavits ſhould be com-

municated to the officer appointed to aſſemble or preſide at the court martial, or to any other officer who may be ſummoned as a member of the court, till the ſame are properly laid in a judicial way before the court martial?

It may be proper for the judge advocate to communicate to the preſident of the court martial, the affidavits taken by virtue of his office; but not to the ſeveral other members that compoſe the court, before the court ſhall be regularly aſſembled.

IV. It has been the general practice at courts martial, for the preſident to put the interrogatories to the witneſſes; in caſe a preſident ſhould decline to put an interrogatory deſired by any member of a court martial, and not ſuffer it to be put; What method in ſuch caſe is fitting and proper to be taken? and is it a neceſſary form that the preſident ſhould put all interrogatories to the witneſſes?

The preſident is certainly a proper perſon to put the interrogatories to the witneſſes. If he ſhould decline or refuſe to put a queſtion propoſed by an inferior member, then it ought to be determined by a majority of votes, whether that queſtion ſhould be put or not; if the majority agree that the queſtion is proper, then the preſident ought to put and propoſe it to the witneſſes.

V. When courts martial proceed to a determination upon matters before them, if the members are not unanimous therein, the ſentences are drawn up agreeable to the ſentiments and judgment of the major part of them, and ſuch ſentences have uſually (if not conſtantly)

conſtantly) been ſigned by all the members, as well thoſe who agreed thereto, as thoſe who did not; Is it neceſſary, and why, that members of a court martial, who do not concur with the majority in their determination, ſhould nevertheleſs ſign the ſentence drawn up agreeable to ſuch determination?

The ſentences in courts martial receive their force and validity from the judgment of the majority; that all the members preſent ought to ſign ſuch ſentences, although they differ in opinion.

VI. If a court martial conſiſting of any number of members whatſoever, adjourns from time to time as may be found neceſſary, and during ſuch adjournments the number of members who firſt compoſed the court, are unavoidably reduced by ſickneſs or death, or otherwiſe; May not ſuch of them as remain from time to time meet according to adjournment, and go on with the examination into, and determination of the matters before the court? Would the addition of new members be proper? and would it in that caſe be eſteemed a continuation of the ſame court?

If the number of a court martial be reduced by ſickneſs, death, or any other accident, the remaining members may meet, and act at the ſeveral adjournments. The addition of new members will not be proper, unleſs ſuch perſons ſhould hear or be well informed of the evidence given before their attendance.

VII. Is it fitting or proper that copies of the affidavits in ſupport of a charge againſt a perſon to be tried at a court martial, ſhould be delivered to the accuſed perſon, previous to his trial?

It is in no caſe proper, that copies of the affidavits in ſupport of a charge againſt a perſon to be tried at a court martial, ſhould be delivered or ſhewn to the perſon accuſed, previous to his trial.

G. PAUL.
W. STRAHAN.

Doctor's Commons, Sept. the 6th 1745.

No. XVI. Vote of the Honorable Houſe of Commons to enquire into the Conduct of Admiral MATHEWS, &c. &c. and that Commiſſioners might be appointed to collect the Evidence; together with a Caſe ſtated, and Opinion reſpecting the deferring paſſing Sentence on Capt. BURRISH, until the Court had gone through the whole Evidence againſt the Admiral.

Section 1. *Vote of the Honorable Houſe of Commons, 11th April* 1745.

RESOLVED,

THAT an humble addreſs be preſented to his Majeſty, that he will be graciouſly pleaſed to give directions, that courts martial may be held in the moſt ſpeedy and ſolemn manner, to enquire into the conduct of Admiral Mathews, Vice Admiral Leſtock, Capt. Burriſh, Captain Richard Norris, Captain Williams, Captain Ambroſe, Captain Frogmore, Captain Dilk, in and relating to the late engagement between his Majeſty's fleet, and the combined fleets of France and Spain

Spain off Toulon, and of the lieutenants of his Majeſty's ſhip the Dorſetſhire then on board, and of all other officers who are or ſhall be charged with any miſconduct in that action, and to try them for the ſame; and that his Majeſty would be pleaſed to appoint a proper perſon or perſons to collect all the evidence neceſſary for the trials of the ſaid ſeveral commanders and officers, and to proſecute them effectually; in order to bring thoſe to condign puniſhment through whoſe miſconduct it ſhall be found that ſuch diſcredit has been brought upon his Majeſty's arms, the honor of the nation ſacrificed, and ſuch an opportunity loſt of doing the moſt important ſervice to the common cauſe.

The houſe of commons purſuant to the foregoing vote, addreſſed the king, that his Majeſty would be pleaſed to give directions that courts martial may be held in the moſt ſpeedy and ſolemn manner, to enquire into the conduct of Admiral Mathews, Vice Admiral Leſtock, Captain Burriſh, Captain Richard Norris, Captain Williams, Captain Ambroſe, Captain Frogmore, Captain Dilk, in and relating to the late engagement between his Majeſty's fleet, and the combined fleets of France and Spain, off Toulon, and of the lieutenants of the Dorſetſhire then on board, and of all other officers who are or ſhall be charged with any miſconduct in that action, and to try them for the ſame; and that his Majeſty would be pleaſed to appoint a proper perſon or perſons to collect all the evidences neceſſary for the trials of the ſaid ſeveral commanders and officers, and to proſecute them effectually, in order to, &c. &c. &c. 11th April, 1745.

The duke of Newcaſtle tranſmitted the ſaid addreſs to April 20.

to the lords of the admiralty, and ſignified his Majeſty's pleaſure that their lordſhips ſhould comply with what was deſired thereby.

In purſuance of his Majeſty's pleaſure ſo ſignified, the lords of the admiralty appointed Mr. Sharpe, and Mr. Creſpigny, to collect all the evidences neceſſary for the trial of the ſaid officers, and to proſecute them effectually; and thoſe two gentlemen were accordingly employed in preparing the charges, and collecting the evidences, againſt ſuch of the named officers as were in England, and alſo againſt ſome others ſince charged with miſconduct in the ſaid action. And the lords of the admiralty, by letter dated the 11th of September laſt, directed Sir Chaloner Ogle to aſſemble a court martial on board his Majeſty's ſhip London, at Chatham, upon the 23d of the ſame month, and to proceed to enquire into the conduct of Admiral Mathews, Vice Admiral Leſtock, Captain Burriſh, &c. relating to the late ſaid engagement between his Majeſty's fleet and the combined fleets of France and Spain, off Toulon, and to try them for the ſame, upon ſuch charges as the proſecutors for the crown had prepared againſt them; and in the trials of the ſaid officers, Sir Chaloner Ogle, was directed to begin firſt with the lieutenants, then go on with the captains, and laſtly with the flag officers.

A court martial was accordingly aſſembled by Sir Chaloner Ogle, the lieutenants were accordingly firſt tried, and ſentence of acquittal was pronounced; the court then proceeded to the trial of Captain Burriſh, and heared the evidence of all the witneſſes produced by the proſecutors for the crown in ſupport of the charge againſt

againſt him, and alſo of all thoſe produced by himſelf in his behalf.

And it being then obſerved, that the tenor of the oath taken by each member is "*Well and truly to try* "*and determine the matter before them, between the king* "*and the priſoner to be tried*; and ſome of the members of the court being of opinion, that they could not comply with the tenor of that oath, without hearing all the evidence to be given at any of the trials, in relation to the ſaid engagement; ſince after ſo hearing the whole evidence, the conduct of each particular officer to be tried, may appear to the court in a different light, from what it may appear in, when only one part of the evidence has been heard; and therefore the ſame members were further of opinion that if the conſideration of the evidence already given relating to Captain Burriſh's conduct, and the paſſing ſentence thereupon, were to be deferred till they had gone through the whole evidence that may be given, relating to all the officers accuſed of miſconduct in the ſame engagement, the doing ſo may enable the court more truly to determine upon Captain Burriſh's conduct therein, and conſequently to do ſtrict juſtice between the king and the priſoner.

QUERY. Can the court legally defer paſſing ſentence upon Captain Burriſh, till they have gone through the whole evidence relating to all the accuſed officers; and if they can, and ſhould ſo defer it, can they conſider the evidence given at the enſuing trials as in any manner affecting Captain Burriſh, and admit the ſame to have any weight in the forming their judgment and ſentence upon his conduct? Section 2.

ANSWER.

ANSWER. We have conſidered this queſtion, and are of opinion that there is no law which prohibits a court martial from taking time to give a ſentence; but we apprehend it to be moſt proper, and moſt agreeable to practice, to give a ſentence upon trial for a capital offence, before the court proceeds to any other trial, for offences of the like nature.

And we are very clearly of opinion, that they cannot conſider the evidence given at any enſuing or preceding trial, as in any manner affecting Captain Burriſh, and that they cannot by law admit ſuch evidence to have any weight in forming their judgment, and giving ſentence upon him.

G. PAUL,
W. STRAHAN,
G. LEE.

Doctor's Commons,
Oct. 4th, 1745.

No. XVII.

No. XVII. Particulars relative to the Articles of Charges exhibited againſt the Officers, accuſed of not having done their Duty in the Engagement off Toulon, and the Purport of the ſeparate Sentences of the Court Martial, aſſembled Sept. and Oct. 1745, and May and June 1746.

IN conſequence of an addreſs from the houſe of commons*, his Majeſty iſſued orders to the board of admiralty, for the trial of ſuch officers as were accuſed of not doing their duty in the engagement off Toulon, and the lords of the admiralty according directed Sir Chaloner Ogle, knight, admiral of theBlue ſquadron, to aſſemble a court martial on board his Majeſty's ſhip London, at Chatham, to try them upon the charges prepared againſt them by the proſecutors for the crown; and in the trials of the officers therein named, Sir Chaloner Ogle was directed to begin firſt with the lieutenants, then go on with the captains, and laſtly with the flag officers.

The court aſſembled on the 23d of September, 1745, and was compoſed of the following members, viz.

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* Appendix, No. XVI. Section i.

Sir

Sir Chaloner Ogle, knight, admiral of the Blue,
Preſident.
Perry Mayne, eſquire, rear admiral of the Blue.
William Smith, eſquire, commodore.

CAPTAINS.

William Parry	Francis Geary
Charles Wyndham	Smith Callis
William Chambers	George Bridges Rodney
James Rentone	Robert Erſkine
Robert Allan	John Pitman
Thomas Frankland	Edward Spragge
Sir William Hewit, bart.	Robert Swanton
Charles Coleby	Hon. Archibald Stuart
Sheldrake Layton	George Elliot
Joſeph Hamer	John Orme
Sir Charles Molloy, knt.	

The firſt perſons brought to trial were Meſſrs. Henry Page, Charles Davids, William Griffiths, and Cornelius Smelt, being the four lieutenants of the Dorſetſhire. They were accuſed of having adviſed their captain, George Burriſh, eſq. not to bear down upon the enemy. Of this charge they were all acquitted.

On the 25th of September the court proceeded to the trial of Captain George Burriſh of the Dorſetſhire. There were five articles laid to his charge, which were to the following purport, viz. 1. For not engaging within point blank, withdrawing from the fight, and not keeping his proper ſtation in the line. 2. For not bearing down and engaging in his proper ſtation, notwithſtanding the admiral ſent two ſeveral orders ſo to do; in reply to which orders, the captain pleaded that he had

no

no powder filled, although a battle had been expected for ſeveral days preceding. 3. For expending his ammunition to no manner of purpoſe, when he was not within point blank diſtance of the enemy, contrary to his inſtructions and his duty. 4. For not affording aſſiſtance, and going to the relief of the Marlborough (though the next ſhip to her, and capable of ſo doing) agreeable to his inſtructions, and to two ſeveral orders ſent him by Admiral Mathews. 5. For not covering and conducting the fireſhip, when ſhe blew up without doing any execution, notwithſtanding her deceaſed Captain hailed him, and requeſted aſſiſtance from him. The court after having heard witneſſes for the proſecution and the priſoner, on the ninth of October pronounced the following ſentence: "That by reaſon of captain Burriſh lying inactive for half an hour, when he might "have aſſiſted the Marlborough, and not being in a "line with the admiral, when he firſt brought to, he "is guilty of part of the charge exhibited againſt him, "as he did not do his utmoſt to burn, ſink, or deſtroy "the enemy, nor give the proper aſſiſtance to the "Marlborough till after the meſſage he received from "the admiral; that he is guilty of the 12th and 13th "articles of the Fighting Inſtructions, and that there"fore the court adjudge him to be caſhiered, and for "ever rendered incapable of being an officer in his "Majeſty's navy."

On the 10th of October, the court proceeded to the trial of Captain Edmund Williams, of the Royal Oak. The charges againſt him amounted to four, the purport of which were: 1. That he did not bear down and engage the enemy, but kept back from the fight to windward of his ſtation in the line. 2. That he expended

pended his ammunition to no manner of purpoſe, by firing at the enemy when not within point blank diſtance, or even at random ſhot diſtance. 3. That he neglected giving aſſiſtance to the Namur and Marlborough, then hard preſſed by the enemy, when he had it in his power ſo to do. 4. Diſobedience to the admiral's ſignals.

The court found that Captain Williams failed in his duty, by not being in a line with the admiral, and by keeping to windward of the line during the greateſt part of the action, and not within a proper diſtance to engage with any effect, during the moſt part of the time he was engaged; but in regard to his long ſervices, and his eye ſight being very defective, and other favourable conſiderations, the court were unanimouſly of opinion that all this greatly weighed in mitigation of the puniſhment due, and therefore only adjudged him as unfit to be employed any more at ſea; but recommended him to the lords commiſſioners of the admiralty, to be continued on the half pay liſt, according to his ſeniority. This their lordſhips complied with, and Captain Williams was afterwards appointed a ſuperannuated rear admiral in 1747.

On the 18th of October, the court proceeded to the trial of Captain John Ambroſe, of the Rupert. The charges againſt him were nearly the ſame as thoſe exhibited againſt Captain Williams, with the additional one, of his neglecting to cover and protect the Ann galey, fireſhip, when bearing down to burn the Real. The court found that he had failed in his duty, in not engaging cloſer than he did, when he had it in his power: but, in regard that both before and ſince the action, he had borne the character of a vigilant officer, and

and that his failure in the action ſeemed to have ariſen from a miſtake in judgment; the court only ſentenced him to be caſhiered during his Majeſty's pleaſure, and mulcted him of one year's pay, for the uſe of the cheſt at Chatham; his Majeſty, however, was pleaſed to reſtore him to his rank; and, in 1747, he was put on the ſuperannuated liſt, as a rear admiral.

Captain Dilk of the Chicheſter was next tried, for not bearing down and engaging the enemy cloſer, when he had it in his power ſo to do. The court found the charge proved, and by their ſentence, he was diſmiſſed from the command of the Chicheſter. But his Majeſty was afterwards pleaſed to reſtore him to his rank, and to place him on the half-pay liſt.

Captain Frogmore of the Boyne was among the number of accuſed captains; but died before he returned to England.

Captain Norris of the Eſſex was likewiſe among the number accuſed, but the particulars of his trial at Mahon, after having reſigned the command of his ſhip, and of his having afterwards retired into Spain, has been already mentioned*.

Captains Robert Pett, George Sclater, Temple Weſt, Thomas Cooper, and James Lloyd, were ſeverally accuſed of miſconduct by Vice Admiral Leſtock, and tried by a court martial on the ſeveral charges exhibited againſt them; the evidence in ſupport of which had been previouſly collected by John Sharpe, and Philip Creſpigny, eſquires.

* Appendix, No. XII.

Captains Pett and Sclater were acquitted; but Captains Weſt, Cooper, and Lloyd, were by the ſentence of the court caſhiered. The ſentence was deemed extremely hard, and reprobated as ſevere and bearing no proportion to the faults proved againſt them. Many palliating circumſtances had appeared in their favour, and from the general teſtimony of their characters as good officers and ſeamen, his Majeſty was pleaſed to reſtore them to their former rank in the ſervice.

On the 6th of May, 1746, the court aſſembled on board of his Majeſty's ſhip, the prince of Orange, at Deptford, for the trial of Vice Admiral Leſtock. Sir Chaloner Ogle could not attend through illneſs. The court was compoſed of the following members.

Perry Mayne, eſq. rear admiral of the Blue, preſident,
Honorable John Byng, rear admiral of the Blue.

CAPTAINS.

Hon. Edw. Legge,	John Orme,
James Rentone,	Thomas Frankland,
Charles Coleby,	Hon. John Hamilton,
Joſeph Hamer,	Sir Charles Molloy,
Smith Callis,	Robert Erſkine,
John Pitman,	Charles Catford,
Thomas Hanway,	Edw. Spragge.

This trial took up the whole of the month of May; a very great number of witneſſes having been examined for and againſt Mr. Leſtock. On the 3d of June the deputy judge advocate read the ſentence of the court, which was, "The court were of opinion, that the in-"formation the charge was founded upon was not "true, and that the evidence in ſupport of the charge "was not ſufficient to make it good; and that many witneſſes

"witneſſes in ſupport of the charge, as likewiſe thoſe "in the admiral's defence, had refuted the whole; "therefore the court unanimouſly acquitted Vice Ad- "miral Leſtock of the whole and every part of the "charge."

On the 16th of June, the trial of Admiral Matthews commenced. This court martial was compoſed of the following members.

Perry Mayne, eſq. rear admiral of the Red preſident.

The Hon. John Byng, rear admiral of the Blue,

CAPTAINS

Miles Stapleton,	Sir Charles Molloy, ſenior,
Hon. Edw. Legge,	Smith Callis,
James Rentone,	John Pitman,
Thomas Frankland,	Charles Catford,
Sir Wm. Hewitt,	Thomas Hanway,
Charles Coleby,	George Elliot,
Hon. J. Hamilton,	Edward Spragge,
Sheldrake Laton,	and
Joſeph Hamer,	John Orme,

Vice Admiral Leſtock exhibited no leſs than fifteen charges againſt him; the purport of which was, That through his miſconduct, the miſcarriage of his Majeſty's fleet in the Mediterranean was principally owing. Many witneſſes were examined; and, after ſeveral adjournments, the court, on the 22d of October, paſſed the following ſentence, *viz.*

"The court having examined the witneſſes pro- "duced, as well in ſupport of the charge as in behalf "of the priſoner; and having thoroughly conſidered "their evidence, do unanimouſly reſolve, that it ap-

" pears thereby, that Thomas Matthews, eſq. by divers " breaches of duty, was a principal cauſe of the miſ- " carriage of his Majeſty's fleet in the Mediterranean, " in the month of February 1744, and that he falls " under the 14th article of an act of the 13 Charles II. " for eſtabliſhing articles and orders for the regulating " the better government of his Majeſty's navies, ſhips " of war, and forces by ſea: and the court do unani- " mouſly think fit to adjudge the ſaid Thomas Mat- " thews to be caſhiered, and rendered incapable of " any employ, in his Majeſty's ſervice.

No. XVIII. Letter from the Secretary of the Admiralty, in anſwer to a Letter from the Judge Advocate, upon Admiral Matthews objecting againſt different Captains being admitted to ſit as Members on his Trial.

Admiralty Office, 17th June, 1746.

SIR,

I HAVE laid your letter of yeſterday's date before my lords commiſſioners of the admiralty, incloſing a letter from Admiral Matthews, delivered by him yeſterday to the court martial, at Deptford, wherein he objects againſt Captain Legge, Captain Rentone, and Captain Hamilton being admitted to ſit as judges or members of that court, for enquiring into the conduct of himſelf and others in the late action in the Mediterranean, between his Majeſty's fleet and the combined fleets of France and Spain, off Toulon, with the

the reaſons upon which his ſaid objection is founded; and you having ſignified, that the court martial deſire their lordſhip's determination thereupon, and the validity of the ſaid caſe of objection. Their lordſhips command me in the firſt place, to take notice of the difference between your letter, and that of the two proſecutors, who in their letter of the ſame date, ſay, "That the court looking upon that objection of no avail, had proceeded to read the charge, againſt Admiral Matthews, after the ſaid objection;" which is in effect over-ruling it.

But leſt any doubt ſhould ſtill remain upon the minds of any of the members of the court, their lordſhips think proper to enter into a more particular diſcuſſion of the reaſons alledged by the admiral, for his objection; which are,

1ſt. That by an ancient and eſtabliſhed uſage, ſuch captains only have been admitted to ſit at courts martial, whoſe ſhips were then within the diſtricts and limits of the command of the flag officer, or commander in chief, who preſided at ſuch court martial.

2d. That the three captains objected againſt are now commanders of ſhips that are out of the diſtrict or limits of the ſaid commander.

In anſwer to which their lordſhips direct you to inform the court, that the act of parliament of the 13 Charles II. which is the foundation of martial law and for trying offences committed at ſea, mentions no ſuch reſtrictions, and ſays only, that courts martial ſhall conſiſt of commanders and captains.

In foreign parts indeed courts martial do generally conſiſt of flag officers, and captains of ſhips then under

the command of the preſident, which uſage is the caſe of neceſſity; but here at home, captains of ſhips have often been called from other ports to the port where the court martial is held; indeed almoſt always when the trial has been upon officers of diſtinction, or the trial has been upon any matters of importance; ſome inſtances of which go here incloſed.

As to his third objection, that the ſaid captains are not in the actual command of their reſpective ſhips, but that the ſaid ſhips are commanded by other commanders appointed for that purpoſe: Their lordſhips direct you to inform the court, that the caſe of thoſe three captains is the ſame as of thoſe captains who appear (by the inſtances incloſed) to have repaired from diſtant places to the port where the court martial has been aſſembled, the command of their ſhips being left in other hands during their abſence. That, in peace and in port, it has been commonly judged ſufficient to entruſt the command of ſhips to the firſt lieutenants, during the abſence of the captain; but in the preſent circumſtances of affairs, their lordſhips thought it not for his Majeſty's ſervice, to ſuffer thoſe ſhips to be idle in port, becauſe of the abſence of their captains at a court martial, but to depute others to officiate for them by order only, which is ſo far from diveſting their proper captains from their real command, that one of the officiating captains is only a maſter and commander, and will not take poſt, notwithſtanding he now acts in the command of a ſhip of ſixty guns.

As to the admiral's queſtions, deſiring to be informed by the court, before they proceeded on his trial, who

who is his accuſer, and by whom the charge againſt him was drawn and prepared; their lordſhips command me to ſend you the incloſed copy of an addreſs from the houſe of commons, dated 11th April, 1745, which whoever has read, cannot but be much ſurprized at the queſtion, eſpecially from a member of the houſe of commons.

I am, &c.

T. CORBETT.

No. XIX. Caſe laid before the King's Civilian at the Admiralty, whether a Captain who is ill, his Preſence may be diſpenſed with, and the Proceedings go on; with Dr. HARRIS's Opinion relating thereto.

Cornwall, Hamoaze, 27th October, 1765.

SIR,

BE pleaſed to acquaint their lordſhips, that in obedience to their order of the 10th inſtant, directing the captains of his Majeſty's ſhips and veſſels at Plymouth, next in command to Captain Lloyd, of the Fame, to aſſemble a court martial for the trial of William Skane, a deſerter from his Majeſty's ſloop Fame, tranſmitted to me by Lord Edgecombe; I made the ſignal for aſſembling a court martial on board his Majeſty's ſhip under my command, on Saturday the 26th inſtant, but found it impoſſible to form a court for proceeding to trial, from the following reaſons, *viz.* "There being nine of his Majeſty's ſhips in commiſ-

"ſion at this port, none of whoſe captains are abſent "upon leave, and the act directing no court martial, "held by virtue of the ſaid act, ſhall conſiſt of more "than thirteen or leſs than five perſons, to be com- "poſed of ſuch flag officers, captains or commanders, "then and there preſent, as are next in ſeniority to "the officer who preſides at the court martial." Five captains only did aſſemble of the ſhips then and there in commiſſion, ſo that three were abſent, ill health preventing their attendance. It was doubted whether the act does allow, to diſpenſe on any account whatſoever with the abſence of any of the captains or commanders then and there preſent, as are next in ſeniority to the officer who preſides at the court martial, according to the words of the ſaid act; I therefore beg you will be pleaſed to ſignify this difficulty to their lordſhips, that opinion may be had whether the ſaid act does allow of the abſence of any ſuch captains; and if it does allow of any ſuch abſence, under what circumſtances, and the proofs that are neceſſary to juſtify the legal proceedings of a court. I have communicated this difficulty to Lord Edgecombe, who has directed me to apply to their lordſhips; and as I myſelf differ in opinion from captains **** who are the gentlemen who raiſed this difficulty, I ſhall continue to make the ſignal and give my attendance from day to day, until the abſent ſenior captains are able to attend, or I receive their lordſhips' directions, by which their lordſhips will ſee that I am no way deficient in my duty.

I am, &c.

GEO. MACKENZIE.

Opinion

Opinion of Doctor HARRIS *on the foregoing caſe, reſpecting the legality of aſſembling a court martial when any of the officers next in ſeniority to the preſident are unable to attend through ill health.*

IT appears to have been the intention of the legiſlator by the act of the 22 George II. that every court martial ſhould be compoſed, if poſſible, of ſenior officers; but though the words of the ſtatute are, "That "no court martial ſhall conſiſt of more than thirteen, "or leſs than five perſons, to be compoſed of ſuch "officers as are next in ſeniority to the officer who "preſides;" they can never, I think, be underſtood to mean, that the next in ſeniority to the preſident, who happens to be preſent on the ſame ſtation with their ſhips, ſhould attend in order, at all events, and notwithſtanding any impediment whatever, or otherwiſe, that no legal court can be held; for ſuch a conſtruction ſeems not only unreaſonable, as well as detrimental to his Majeſty's ſervice, by rendering it extremely difficult to make a court, but alſo to be very contrary to the general tenor of other parts of the act, which appears to be calculated to expedite juſtice as much as poſſible, by permitting five captains to conſtitute a court, and even by allowing commanders to aſſiſt, when a ſufficient number of poſt captains are not to be found.

And as I obſerve every court martial has an expreſs power, by the 15th ſection of the ſtatute, to diſpenſe with the preſence of any member, and ſuffer him to go on ſhore (in caſe of illneſs), even after a trial is begun, there ſeems to be no reaſon to doubt, but that any

any officer may be excuſed from attendance, by the preſident and court, if a juſt reaſon is aſſigned before a trial is begun; and that they may afterwards proceed to buſineſs, if the remaining number of qualified officers is ſufficient to conſtitute a court martial; I therefore apprehend, that Mr. Mackenzie, and the five other captains may legally aſſemble, and proceed as a court, to try William Skane, if it is taken down in the minutes, that the abſent and ſenior officers have certified the preſident by letter, or otherwiſe, of their inability to attend through ill health.

(Signed) G. HARRIS.

Doctors Commons,
4th Nov. 1775.

No. XX. Letter from Admiral Sir THOMAS PYE, to the Admiralty, ſtating his having recommended to the Court Martial on Captain BROMEDGE, to diſpenſe with the Attendance of Rear Admiral EDWARDS and Captain BALFOUR, two of its Members, *viz.*

Arrogant, Spithead, 25th May, 1780.

SIR,

I AM to acquaint you, for the information of my lords commiſſioners of the admiralty, that the wind being favourable for Rear Admiral Edwards to proceed to Newfoundland, and Captain Balfour, of the Culloden to the Weſt Indies, agreeable to the orders they are under,

under, and they being members of the court martial which has been ſitting ſeveral days paſt on Captain Bromedge, late commander of the Buffalo, and is not likely to be finiſhed for ſome days; and being of opinion, the court has power to diſpenſe with their attendance, by the late act of parliament, which ſays, "No members of the court martial to abſent themſelves from the trial, except in caſe of ſickneſs, or "other extraordinary or indiſpenſible occaſion, to be "judged by the court." I mean that the public ſervice may not ſuffer by their attendance on this duty, to recommend to the members of the court martial, when they aſſemble to-morrow morning, to diſpenſe with the attendance of the ſaid rear admiral and captain, as there will be eleven members ſtill remaining to paſs ſentence, that the king's ſervice may not ſuffer by their being prevented proceeding to their reſpective deſtinations.

I am, &c.

T. PYE.

PHILIP STEPHENS, *Eſq.*

N.B. Though the admiralty approved of the above letter, the members of the court were of opinion, they had not power to determine upon the above application, for diſpenſing with the attendance of Rear Admiral Edwards, and Captain Balfour.

No. XXI. Letter to the Admiralty, on the Non-attendance of a Captain.

Prince of Wales, Portſmouth Harbour,
29th January, 1780.

WE the underſigned captains of his Majeſty's ſhips and veſſels at Portſmouth and Spithead, having attended on board his Majeſty's ſhip the Prince of Wales, in obedience to a ſignal made for that purpoſe, in order to proceed to form a court martial, deſire to repreſent to you, that upon the court's going to be ſworn in, the incloſed letter was received from Captain Hamilton, commander of his Majeſty's ſhip the Champion, repreſenting that he was prevented from attending the court by a ſevere cold and ſore throat; his ſurgeon attended, but refuſed to atteſt upon oath, that Captain Hamilton's attending the court would endanger his health, on which the ſurgeon was ſent after him, but found he was gone off to his ſhip at Spithead; We therefore do not think ourſelves authorized to form the court, on account of the abſence of Captain Hamilton.

We are, &c.

Signed { *John Moutray*, *Philip Affleck*, *Fra. Reynolds*, *Benj. Caldwell*, *Longford*, *John Macartney*, *Ant. Hunt*, *St. John Chinnery*, *Hen. Collins*, *Cha. M. Pole*.

To PHILIP STEPHENS, *Eſq.*

Caſe and Opinion of the King's Advocate, Attorney General, and Solicitor General, relative to the Judge Advocate's aſking Queſtions of Witneſſes when under Examination.

Admiralty-Office, 18th of November, 1747.

SIR,

I AM commanded by the lords commiſſioners of the admiralty, to ſend you incloſed an atteſted copy of the opinion of his Majeſty's advocate general, ſolicitor general, and attorney general, in relation to the judge advocate's aſking queſtions of witneſſes at a court martial.

I am, &c.

THOMAS CORBETT.

Mr. ATKINS,
Deputy Judge Advocate.

18 *Geo. II. An act for the further regulating, and better government of his Majeſty's navies, ſhips of war, and forces by ſea, and for regulating the proceedings upon courts martial in the ſea ſervice—It is among other things enacted as follows, viz.*

THAT from and after the firſt day of June 1745, it ſhall and may be lawful to and for the ſaid lord high admiral, or the commiſſioners for executing the office of lord high admiral for the time being; and they are hereby authorized and impowered to grant commiſſions to any flag officers, commanders in chief of ſquadrons of ſhips, or captains of his Majeſty's ſhips, to

to call and aſſemble courts martial conſiſting of flag officers and captains, to enquire and try any perſon or perſons whatſoever, for any offences or crimes againſt the preſent act, or for any other offences or crimes which are cognizable at any ſuch court martial, by virtue of any other law now in being; and that at all ſuch courts martial, to be held to enquire and try any perſon, for any ſuch offence or crime which ſhall be committed after the commencement of this act, *the judge advocate of the fleet, or the perſon appointed to act for him for the time being, ſhall and may, and he and they are reſpectively authorized and required to collect the evidence in ſupport of the charge againſt the perſon charged, and to inform the court, and proſecute in his Majeſty's name*; and for that purpoſe it ſhall and may be lawful to and for the ſaid judge advocate, or ſuch perſon ſo appointed to act for him as aforeſaid, and he and they are hereby reſpectively authorized and required, by writing under his or their hands, to ſummon all and every ſuch perſon or perſons, as he or they reſpectively ſhall be informed, or have reaſons to believe can give any material evidence in ſupport of the ſaid charge, to appear and be examined as a witneſs or witneſſes before any ſuch court martial.

Whether in conſequence of the direction contained in the foregoing extract in the words that are interlined,

QUERY, Is it the duty of the judge advocate, and has he thereby a right to aſk the witneſſes, when under examination upon a trial, ſuch queſtions as ſhall appear to him fitting and proper?

As the judge advocate is by the act appointed and obliged

obliged to proſecute on behalf of the crown, and, by his having before collected the evidence, muſt be able to judge what queſtions are proper to put to the witneſſes; we are of opinion he has a right to aſk them all proper and fit queſtions.

G. PAUL,
D. RYDER,
W. MURRAY.

(A true copy.)
THOMAS CORBETT.
17th of Nov. 1747.

No. XXIII. Application for Courts Martial.

Ruſſel, Portſmouth Harbour, Section 1.
March 29, 1779.

SIR,

I BEG leave to acquaint you, that this day James Taylor, ſteward to the purſer of his Majeſty's ſhip under my command, and James Webſter, ſeaman, belonging to the ſaid ſhip, have been detected in carrying on ſhore, and ſelling ſeveral articles of ſlop cloathing belonging to government, in charge of the purſer of the ſaid ſhip.

I requeſt you will be pleaſed to apply to the right honorable the lords commiſſioners of the admiralty, for an order for a court martial to be held on the ſaid James Taylor, and James Webſter, for the ſaid offence.

I am, &c.
FRA. S. DRAKE.

Vice Admiral EVANS,

Hydra,

Hydra, Spithead, Sept. 2, 1771.

Section 2. SIR,

I beg leave to inform you that Thomas Geary, a marine belonging to his Majeſty's ſhip under my command, was confined on the 23d of July 1779, for wilfully and maliciouſly firing at Oliver Veale, ſerjeant of marines belonging to the ſaid ſhip, on that night, when on duty, to the endangering of his life, the ball having paſſed through his jacket. In conſequence of which, I am to requeſt you will apply for a court martial to be held on the ſaid Thomas Geary for the ſaid crime.

I am, &c.
LLOYD.

Admiral Sir THOMAS PYE.

No. XXIV. Admiralty and Commander in Chief's Orders to aſſemble a Court Martial.

By the Commiſſioners, &c. &c.

Section 1. WHEREAS Sir Thomas Pye, admiral of the White, and commander in chief of his Majeſty's ſhips and veſſels at Portſmouth and Spithead, hath tranſmitted to us a letter of the ſecond of September laſt, from captain Thomas Lloyd, late commander of his Majeſty's ſhip Hydra, requeſting that Thomas Geary, a marine belonging to that ſhip, might be tried by a court martial for wilfully and maliciouſly firing at the ſerjeant belonging to her on the night of the 23d of June preceding, when on duty, to the endangering of his life, the

the ball having paſſed through his jacket. And whereas, we think fit the ſaid captain Lloyd's requeſt ſhould be complied with *; we ſend you herewith his above-mentioned letter, and do hereby require and direct you forthwith to aſſemble a court martial for the trial of the ſaid Thomas Geary, for the offence with which he therein ſtands charged, and to try him for the ſame accordingly.

Given under our hands the 3d of November, 1779.

(Signed) SANDWICH,
R. MAN,
BAMBER GASCOYNE.

To Captain THOMAS BURNETT,
commander of his Majeſty's ſhip Prudent, and ſenior captain of his Majeſty's ſhips and veſſels at Portſmouth, and Spithead.

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* The form of an order for aſſembling a court martial abroad by a commander in chief is ſimilar; but ſhould he be under the neceſſity of preſiding himſelf, the laſt clauſe of the order is worded thus: "By virtue of the power and authority to me given, I do hereby aſſemble a court martial compoſed of the captains and commanders of the ſquadron under my command, for the trial of T. G. for the offences with which he ſtands charged in Captain L.'s letter to me herewith produced for the reference of the court, and to try him for the ſame accordingly. Given, &c." Section 2.

To &c.

No. XXV. Judge Advocate's Warrant.

By Admiral Sir THOMAS PYE, *&c. &c.*

WHEREAS the right honorable the lords commiſſioners of the admiralty have directed me, by an order dated the 11th inſtant, to aſſemble a court martial, and try Captain William Williams, of his Majeſty's ſhip the Active, for leaving his ſtation at Newfoundland without orders; and whereas by an act paſſed in the twenty-ſecond year of the reign of King George the Second, intitled "An act for amending, explaining, and reducing into one act of parliament, the laws relating to the government of his "Majeſty's ſhips, veſſels, and forces by ſea," it is ordered, "that in the abſence of the judge advocate, and "his deputy, the court martial ſhall have full power "and authority to appoint any perſon to execute the "office of judge advocate."

I do, with the conſent and approbation of the members who conſtitute this court, hereby authorize and appoint you to execute the office of judge advocate on the above occaſion. For which this ſhall be your warrant.

Given on board his Majeſty's ſhip Prince George (where the court is aſſembled), in Portſmouth Harbour, December 22, 1777.

T. PYE.

To THOMAS BINSTEED, *Eſq.*
hereby appointed to execute the office of judge advocate at the court martial abovementioned.

No. XXVI. Provoſt Marſhall's Warrant.

By JOHN AMHERST, *Eſq. &c. &c. &c.*

THE right honorable the lords commiſſioners of the admiralty, having ordered a court martial to be aſſembled to try William Evans, a ſeaman, belonging to his Majeſty's ſhip the Albion, for deſertion. I do hereby authorize and appoint you to officiate as provoſt marſhall on this occaſion; and you are to take the perſon of the ſaid William Evans into your cuſtody, and him ſafely keep, until he ſhall be delivered by due courſe of law; and for ſo doing this ſhall be your warrant.

Given, &c.

J. A.

To Mr. J. GRANT, *hereby appointed provoſt marſhall on the occaſion.*

No. XXVII. Commander in Chief and Preſident's Memorandums or Summonſes to Flag Officers and Captains, to attend a Court Martial.

Mem.

YOU are to attend a court martial, which is to be aſſembled by Vice Admiral Evans, on board his Majeſty's ſhip, Warſpite, in Portſmouth Harbour, on Wedneſday next, the third inſtant, at nine o'clock in the morning, in order to ſit as member of the ſame. Section 1. Summons to ſit as a member.

Dated, &c.

THOMAS PYE.

Reſpective captains, Spithead, and Portſmouth Harbour.

Royal George, Spithead,

Mem. *Oct.* 19, 1790.

Section 2. Members to attend a court martial.

YOU are desired to attend at a court martial, to be assembled by me on board his Majesty's ship, the Royal William, on Friday, the second instant, at eight o'clock in the morning, and it is expected you will attend in your uniform frocks.

(Signed) S. BARRINGTON.

To the respective admirals and captains at Spithead.

Victory, Spithead,

Mem. *July* 16, 1791.

Section 3. Summons to members.

A COURT martial will be held on board his Majesty's ship, Royal William, on Monday, the 18th instant; the signal will be made at eight o'clock, A. M. and the court will meet precisely at nine.

By order of the Commander in Chief,

H. PARKER.

To the admirals commanding squadrons, to be by them given in orders to the respective captains.

No. XXVIII. Memorandum to the Preſident to aſſemble Members, and to the Captain of the ſhip where the Court is to be aſſembled.

Section 1. Preſident to aſſemble members.

WHEREAS I have ordered the captains of his Majeſty's ſhips at Spithead, to attend a court martial, at which you are to preſide, to be held on board his Majeſty's ſhip ——, in Portſmouth Harbour, on Monday next, the 18th inſtant, at nine o'clock in the morning.

You are to aſſemble the ſame at the time above mentioned, and, as ſenior captain in Portſmouth Harbour, you are to ſignify my directions to the reſpective captains of his Majeſty's ſhips there, that they may attend in like manner.

To Captain EVANS,
Invincible.

Section 2. To make the ſignal.

Memorandum from the commander in chief, to the captain of the ſhip where the court martial is to be aſſembled.

Sandwich, June 15, 1777.

THE right honorable the lords commiſſioners of the admiralty having directed captain ——, of his Majeſty's ſhip ——, to preſide at a court martial, which will be held on board his Majeſty's ſhip ——, under your command, on Monday next, the 18th inſtant, at nine o'clock in the morning.

You are hereby required to attend the ſame, and to cauſe the ſignal to be made at the above-mentioned hour.

To Captain ——

No. XXIX. Judge Advocate's Letters and Summonſes to Priſoners, Proſecutor, and Evidence.

Section 1. Letter to priſoner.

SIR, *Portſmouth, Auguſt* 10, 1779.

THE lords commiſſioners of the admiralty having ordered Captain Cleland, of the Arrogant, to aſſemble a court martial, to enquire into the loſs of his Majeſty's ſtoreſhip, the Supply, late under your command, and to try yourſelf, her officers and men, for their conduct on that occaſion; and it being intended that I ſhall officiate as judge advocate upon the occaſion at the ſaid court martial, which is to be held on board the Arrogant, in Portſmouth Harbour, on Thurſday next the 12th inſtant, at nine o'clock in the morning; I ſend you herewith a copy of the order for the trial on yourſelf, officers, and company above mentioned, alſo copies of the papers referred to in the order, and am to deſire you will be pleaſed to tranſmit me a liſt of the officers and men late belonging to the Supply, who are now at this port, and of ſuch perſons as you may think proper to call to give evidence in your favor, that they may be ſummoned to attend accordingly.

I am, &c.

Captain NASMITH, *late of his Majeſty's Storeſhip Supply, &c.*

Section 2. Letter to priſoners.

Edgar, Torbay, Auguſt 27, 1781.

THE right honorable the lords commiſſioners of the admiralty having directed a court martial to be hel on

on you for embezzlement of ſtores, to-morrow morning at nine o'clock, on board his Majeſty's ſhip, A. I am to acquaint you therewith, and incloſe for your information, Captain G.'s complaint againſt you.

You are therefore deſired to prepare yourſelf for the ſame, and if you have any perſons to appear as witneſſes in your behalf, you will ſend me a liſt of their names, that they may be duly and ſpeedily warned to attend the ſaid court martial.

W. B.

Mr. A. C. *Maſter of the Valiant,* *Deputy Judge Advocate.*

SIR,

The lords commiſſioners of the admiralty having ordered Capt.——, to aſſemble a court martial to try A. B. for deſertion from his Majeſty's ſhip under your command, and it being intended that I ſhall officiate as judge advocate upon the occaſion, I am to requeſt you will be pleaſed to ſend me a liſt of the witneſſes you chuſe to call upon in ſupport of the charge, and to cauſe the incloſed notice to be delivered to the priſoner, and to permit a liſt of his witneſſes to be ſent me with your's and ſuch of either as belong to the ſhip you command; the preſident deſires you will give them directions to attend the court. Section 3. Letter to Proſecutor.

I am, &c.

To Captain ——, of his Majeſty's ſhip ——,

SIR, *Auguſt* 19, 1779.

YOU are deſired to attend at Portſmouth, to give evidence at a court martial to be held there the 12th inſtant, Section 4. Letter to evidence.

inſtant, for enquiring into the conduct and behaviour of Vice Admiral Sir Hugh Paliſer, on the 27th and 28th of July 1778, and to continue ſuch attendance ſo long as the ſaid court ſhall think neceſſary.

I am, &c.

(Signed) GEO. JACKSON,
Judge Advocate.

Admiral Sir THOMAS PYE, *&c.*

SIR,

Section 5. Another. YOU are deſired to attend a court martial to be held on board his Majeſty's ſhip ——, to-morrow the 27th inſtant, at nine o'clock, for the trial of Mr. C. on a charge exhibited againſt him by Captain G. of his Majeſty's ſhip, V. for embezzlement, in order to give your evidence thereon.

I am, &c.

To Mr. ——.

No. XXX. Letter from a Judge Advocate putting off a Court Martial, on account of the Indiſpoſition of the Preſident.

SIR,

THE court martial for the trial of ——, belonging to his Majeſty's ſhip under your command, being put off till Friday next, the 4th inſtant, on account of the indiſpoſition of the preſident—I am directed by him to acquaint you therewith, and to requeſt you will pleaſe to cauſe the incloſed notice to be delivered to the priſoner, and give directions for the witneſſes belonging to ——, to attend the court on board

board the ——, on Friday next, inſtead of to-morrow, at ten o'clock in the morning.

I am, &c.

To Captain ——,

No. XXXI. Form of Minutes.

Minutes of proceedings at a court martial held on board his Majeſty's ſhip the Prudent, at Spithead, on the 8th and 9th days of November 1779.

PRESENT,

THOMAS Burnett, Eſq. commander of his Majeſty's ſhip Prudent, and ſenior captain of his Majeſty's ſhips and veſſels at Portſmouth, preſident, Section 1.

CAPTAINS.

Sam. Uvedale	Mark Robinſon
Wm. Dickſon	R. Fanſhaw
Geo. Montagu	R. Rodney Bligh
Wm. Cumming	Tho. Lenox Frederick
Edw. Garnier	Walter Young *.

The priſoner was brought into court, and the evidence and audience admitted.

Read the order of the right honorable the lords commiſſioners of the admiralty, dated the third inſtant,

* Should any of the captains be abſent on leave, or unable to attend through ill-health, it muſt be inſerted in the minutes immediately after the names of thoſe preſent, thus: "being all the captains of the poſt "ſhips at ——, except Captain ——, of his Majeſty's ſhip the——, who "is abſent with leave from the lords commiſſioners of the admiralty and "Captain ——, of the ——, who certified the preſident his inability "to attend through ill health."

directed

directed to Captain Thomas Burnett, commander of his Majeſty's ſhip, Prudent, and ſenior captain of his Majeſty's ſhips and veſſels at Portſmouth and Spithead, to try Thomas Geary, a marine belonging to his Majeſty's ſhip, Hydra, for wilfully and malicioufly firing at the ſerjeant belonging to her, on the night of the 23d of June laſt, when on duty, to the endangering of his life, the ball having paſſed through his jacket.

Then the members of the court and judge advocate, in open court, and before they proceeded to trial, reſpectively took the oaths directed by act of parliament made and paſſed in the 22d year of the reign of his late Majeſty King George II. entitled "An act for "amending, explaining, and reducing into one act of "parliament, the laws relating to the government of his Majeſty's ſhips, veſſels, and forces by ſea.

A letter from Captain Thomas Lloyd, late commander of the Hydra, to Sir Thomas Pye, admiral of the White, &c. &c. was read as follows; viz.

SIR, *Hydra, Spithead, Sept.* 2, 1779.

I BEG leave to inform you, &c. &c. &c.

All the evidences were ordered to withdraw out of court, except Lieutenant Rowley Bulteel, of the Hydra, who was ſworn.

Court.

Anſwer.

Lieutenant Bulteel ordered to withdraw.

Serjeant Oliver Veale was next called into court, and ſworn.

Court.

Anſwer.

The

The priſoner aſked this witneſs no queſtions, the latter withdrew.

Lieutenant Bulteel was again called in and interrogated.

Court.

Anſwer.

The evidence in ſupport of the charge being finiſhed, the priſoner was called upon to make his defence, which he did in the following words, viz.

The ſerjeant, &c.

The priſoner then deſired that his witneſſes might be examined.

Bryan Coile, private marine, was according ſworn.

Priſoner.

Anſwer.

The evidence withdrew.

The priſoner requeſted Captain Lloyd to ſpeak to his character. Captain Lloyd ſaid, "I never heard any "complaint againſt him from any officer while under "my command, except for the offence, with which he "ſtands charged. I never ſaw him drunk, nor was he "ever puniſhed for the offence."

The priſoner having nothing further to offer in his defence, the court was cleared and proceeded to deliberate upon and form the ſentence.

The court having carefully and deliberately weighed and conſidered the evidence produced, and what the priſoner alledged in his defence, were of opinion that the charge had been fully proved *, and that he fell

* Peculariries in the minutes when the charge has been proved, and the puniſhment only corporal. "1. That the charge has been proved. 2. That the puniſhment to be inflicted on the priſoner for his offence be corporal.

under the firſt part of the 22d article, of an act paſſed in the 22d year of his late Majeſty King George II. for amending, explaining, and reducing into one act of parliament, the laws relating to the government of his Majeſty's ſhips, veſſels and forces by ſea—In conſequence thereof, the court adjudged the priſoner, Thomas Geary, to be hanged by the neck until he is dead, at the yard-arm of ſuch one of his Majeſty's ſhips, and at ſuch time as the lords commiſſioners of the admiralty ſhall direct. But in conſideration of the good character of the priſoner, and ſome other favorable circumſtances, the court agreed to recommend him as a proper object for mercy.

The court was opened, audience admitted, and ſentence paſſed accordingly.

Section 2. *Minutes of the proceedings of a court martial aſſembled and held on board his Majeſty's ſhip Blenheim, at St. Helens, the day of February* 1783, *for the trial of* WILLIAM KING, *ſeaman, belonging to his Majeſty's ſhip Goliath, for deſertion, viz.*

PRESENT,

John Elliot, eſq. commodore and commander of a ſquadron of his Majeſty's ſhips, preſident.

CAPTAINS.

Philip Affleck	Stair Douglas
John Brown	Hon. George Berkeley.
Thomas Lewes	

corporal. And 3. That therefore the court adjudges the priſoner to receive 200 laſhes on his bare back with a cat-of-nine-tails, alongſide of "ſuch of his Majeſty's ſhips and veſſels at ———, in ſuch proportions "and at ſuch times as the commander in chief of his Majeſty's ſhips and "veſſels at —— ſhall direct."

The

The priſoner being brought into court, and audience admitted, the order of the right honorable the lords commiſſioners of the admiralty, dated the third inſtant, directed to commodore John Elliot, &c. at St. Helens, for the trial of William King, ſeaman, belonging to his Majeſty's ſhip Goliath, for deſertion, was read, the members of the court and judge advocate, then, in open court, and before they proceeded to trial, reſpectively took the oath enjoined by act of parliament. The letter from Captain Sir Hyde Parker, commander of his Majeſty's ſhip Goliath (containing the charges againſt the priſoner), was then read, and all the witneſſes being ordered to withdraw and attend their examinations ſeparately, they all withdrew accordingly, except the firſt to be ſworn, and the court proceeded to trial as follows:

Evidence in ſupport of the charge, ——— of his Majeſty's ſhip the Goliath, ſworn and examined as follows:

Court.

Anſwer.

The muſter book of his Majeſty's ſhip Goliath, being produced to the court, the priſoner appeared to be run the day of January laſt.

There being no other witneſſes to examine in ſupport of the charge, the priſoner was aſked what he had to offer in his defence—The defence reſted here—The court was then cleared, and the judge advocate having read the minutes and the court having maturely conſidered the whole, agreed that the charge againſt

againſt the priſoner is proved *. 2. That the puniſhment to be inflicted on him for his offence be corporal. And 3. That therefore, the court adjudges the priſoner to receive 200 laſhes on his bare back with a cat-of-nine-tails, alongſide of ſuch of his Majeſty's ſhips and veſſels at St. Helens or Spithead, in ſuch proportions and at ſuch times, as the preſent commander of a ſquadron of his Majeſty's ſhips at St. Helens, or the commander in chief of his Majeſty's ſhips and veſſels at Portſmouth, ſhall direct.—The court was then opened, audience admitted, and ſentence paſſed accordingly.

No. XXXII. Caſe and Opinion reſpecting the Legality of admitting a Proſecutor as an Evidence at a Court Martial.

SIR, *Portſmouth, Jan. 7, 1789.*

Section 1. CAPTAIN Thomſon, commander of his Majeſty's ſhip, Edgar, being directed by their lordſhips to aſſemble a court martial for the trial of Mr. Charles Thackary, lieutenant of his Majeſty's ſhip, Thorn, on ſeveral charges repreſented in a letter from Captain William Taylor, her commander, to you, and amongſt

* Peculiarities of minutes when the charge is not proved.

"That the charge is not proved, and did thereupon adjudge the "priſoner to be acquitted, and returned to his proper ſhip, there to "ſerve in his former ſtation."

others

others for going into the captain's cabin when alone at tea, and calling him ſcoundrel and liar, which Captain Taylor can alone prove, and as Captain Thompſon apprehends that the court may have a doubt of the propriety of admitting Captain Taylor to give his evidence, becauſe he is complainant, he has directed me to ſtate the caſe to you, and to requeſt you to move their lordſhips to lay the ſame before ſuch counſel as they ſhall think proper, for an opinion on the following queſtion:

"Whether Captain Taylor's evidence under the "above circumſtances ought to be admitted or not, "and if it ought to be admitted, whether after he has "been examined, as is the cuſtom of courts martial to "examine the witneſſes ſeparately and apart from each "other, he can be permitted to remain in the court to "conduct the proſecution?"

Captain Thompſon means to aſſemble the court martial on Monday morning next, and hopes to be favored with an anſwer before that time.

Sir, I am, &c.

To PHILIP STEPHENS, *Eſq.*

OPINION.

THE diſtinction between the objection to the competency, and objections to the credit of a witneſs, has been long eſtabliſhed, and in criminal proſecutions it is not a legal objection to the competency of a witneſs or to the admiſſibility of his evidence, that he is the proſecutor, whatever objections to his credit may ariſe under the circumſtances of the caſe. Section 2.

The effect of the evidence when admitted, and the mode of conducting the proſecution, muſt be left to the

the judgment of the court. If the practice of courts martial in examining witneſſes ſeparately is ſo univerſal that it cannot be diſpenſed with in any caſe; I ſuppoſe that ſome agent or attorney on behalf of the proſecutor may conduct the proſecution, which is every day's practice in courts of law.

If any doubt ſhould be conceived by the judges of the court on the propriety of receiving the evidence of a complainant, it may be proper to obſerve, that the rule which is univerſal in civil actions that a plaintiff cannot be admitted as a witneſs in his own cauſe, does not apply to criminal proſecutions, which are always ſuppoſed to be at the ſuit of the crown, and on behalf of the public; and therefore, objections from intereſt, or for want of other evidence or circumſtances to confirm the teſtimony of a ſingle witneſs, are objections only to the credit.

F. C. CUST.

Lincoln's Inn, January 10, 1789.

No. XXXIII.

No. XXXIII. Opinion of the Attorney and Solicitor Generals, and the Hon. Heneage Legge, reſpecting the Number of Witneſſes to be examined at Courts Martial. Dated April 25, 1746.

IN anſwer to the queſtion in the letter tranſmitted to us, we think the court ſhould not refuſe any witneſſes, that are now ready to be examined, if the proſecutors inſiſt they are material.

But as we are of opinion, it is in the power of the court to limit a certain time for concluding the examinations, what time that ſhould be, muſt depend upon all the circumſtances, of which the court can only be the judge.

And we think the proſecutors ſhould be very careful not to call too many to the ſame facts, which can only tend unneceſſarily to protract the trials, and finally to elude the juſtice of them.

D. RYDER.
WM. MURRAY.
HENEAGE LEGGE.

No. XXXIV. Forms of ſundry Sentences.

Section 1. *Sentence of a court martial on Admiral Byng, and letter, recommending him to mercy.*

AT a court martial aſſembled on board his Majeſty's ſhip, Prince George, in Portſmouth harbour, upon the 27th of December, 1756, and held every day afterwards (Sundays excepted), till the 27th of January, 1757, incluſive.

PRESENT,

Vice Admiral Smith, preſident.
Rear Admiral Holbourne,
Rear Admiral Norris,
Rear Admiral Brodrick.

CAPTAINS.

Holmes,	Douglas,
Geary,	Bentley,
Boys,	Keppel,
Moore,	Dennis.
Simcoe,	

The court, purſuant to an order from the lords commiſſioners of the admiralty, to Vice Admiral Smith, dated 14th December, 1756, proceeded to enquire into the conduct of the Honorable John Byng, admiral of the Blue ſquadron of his Majeſty's fleet, and to try him upon a charge, that during the engagement between his Majeſty's fleet, under his command, and the fleet of the French king, on the 20th of May laſt, he did withdraw, or keep back, and did not do his utmoſt to take, ſeize, and deſtroy the ſhips of the French king, which it was his duty to have engaged, and

and to aſſiſt ſuch of his Majeſty's ſhips as were engaged in the action with the French ſhips, which it was his duty to have aſſiſted; and for that he did not do his utmoſt to relieve St. Philip's Caſtle, in his Majeſty's iſland of Minorca, then beſieged by the forces of the French king, but acted contrary to, and in breach of his Majeſty's command; and having heard the evidence, and priſoner's defence, and very maturely and thoroughly conſidered the ſame, they are unanimouſly of opinion, that he did not do his utmoſt to retrieve St. Philip's Caſtle, and alſo, that during the engagement between his Majeſty's fleet under his command, and the fleet of the French king, on the 20th of May laſt, he did not do his utmoſt to take, ſeize, and deſtroy the ſhips of the French king, which it was his duty to have engaged, and to aſſiſt ſuch of his Majeſty's ſhips as were engaged in fight with the French ſhips, which it was his duty to have aſſiſted; and do therefore unanimouſly agree, that he falls under part of the 12th article of an act of parliament of the 22d year of his preſent Majeſty, for amending, explaining, and reducing into one act of parliament the laws relating to the government of his Majeſty's ſhips, veſſels, and forces by ſea; and as that article poſitively preſcribes death, without any alternative left to the diſcretion of the court, under any variation of circumſtances, the court do therefore unanimouſly adjudge the ſaid Admiral John Byng to be ſhot to death, at ſuch time, and on board ſuch ſhips as the lords commiſſioners ſhall direct.

But as it appears by the evidence of Lord Robert Bertie, Captain Gardener, and other officers of the

ſhip, who were near the perſon of the admiral, that they did not perceive any backwardneſs in him during the action, or any mark of fear or confuſion, either from his countenance or behaviour, but that he ſeemed to give his orders coolly and diſtinctly, and did not ſeem wanting in perſonal courage, and from other circumſtances, the court do not believe that his miſconduct aroſe either from cowardice or diſaffection, and do therefore unanimouſly think it their duty moſt earneſtly to recommend him as a proper object of mercy.

Signed by all the Members compoſing the Court.

Section x. *To the Right Honorable the Lords Commiſſioners of the Admiralty.*

WE the underwritten, the preſident and members of the court martial, aſſembled for the trial of Admiral Byng, believe it unneceſſary to inform your lordſhips, that in the whole courſe of this long trial, we have done our utmoſt to endeavour to come at truths, and to do the ſtricteſt juſtice to our country and the priſoner, but we cannot help laying the diſtreſſes of our minds before your lordſhips on this occaſion, in finding ourſelves under a neceſſity of condemning a man to death, from the great ſeverity of the 12th article of war, part of which he falls under, and which admits of no mitigation, even if it ſhould be committed by an error in judgment only, and therefore for our conſciences ſake, as well as in juſtice to the priſoner, we

we pray your lordſhips, in the moſt earneſt manner, to recommend him to his Majeſty's clemency.

We are, &c.

Signed by all the Members of the Court Martial.

St. George, Portſmouth Harbour,
27th January, 1757.

Sentence of a court martial on twenty ſeamen belonging to his Majeſty's ſhip Narciſſus, for mutiny and ſedition: ſix of whom were ordered for execution, two corporally puniſhed, and the others acquitted. Section 8.

At a court martial aſſembled on board his Majeſty's ſhip Aſſurance, in the North River, New York, the 18th, and held by ſeveral adjournments, the 20th, 21ſt, 22d, 23d, 24th, and 25th days of May, 1782.

PRESENT,

Captain Elliot Salter, preſident.

CAPTAINS.

R. Biggs,	Jn. Bazely,
Chr. Maſon,	Wm. Swiney,
David Graves,	Matthew Squires.

The court (being duly ſworn according to act of parliament), in purſuance of an order from Robert Digby, eſquire, rear admiral of the Red, and commander in chief of his Majeſty's ſhips and veſſels in North America, directed to Elliot Salter, eſquire, captain of his Majeſty's ſhip Santa Margarita, proceeded to the ſeparate trials of Hamilton Wood, Thomas Crandon, Joſiah Marſhal, Robert Wiſely, and Francis Rae, belonging to his Majeſty's ſhip Narciſſus, for making ſeveral

mutinous aſſemblies, and uttering words of ſedition and mutiny, and endeavouring to perſuade the ſhip's company to riſe on Captain Edwards and his officers, and diſpoſſeſs them of their command and authority in the Narciſſus, and to carry her into ſome rebel port; alſo Owen Cooper, Thomas Splitman, John Simpſon, James Bryan, Thomas Hogan, Peter Delaney, James Young, Thomas Gallachan, David Brett, Jonathan Major, Lucas Cabbanne, John Jewel, Daniel Obrien, Anthony Moffets, and Morris Bryan, for being preſent at the ſaid mutinous aſſemblies, and concealing traiterous deſigns; and having heard read the charge exhibited againſt them, in a letter from captain Edwards, of his Majeſty's ſaid ſhip Narciſſus, to Rear Admiral Digby, as well as the evidence in ſupport of the ſaid charge, and alſo what the priſoners had to offer in their own defence reſpectively; and having maturely and deliberately conſidered the whole and every part thereof with the moſt minute attention; the court is of opinion, That the charge is fully proved againſt the ſaid Hamilton Wood, Thomas Crandon, Joſiah Marſhall, Francis Rae, Owen Cooper, and Thomas Splitman; that it is in part proved againſt Robert Wiſely, and Peter Delaney, and that it is not proved againſt John Simpſon, James Bryan, Thomas Hogan, James Young, Thomas Gallachan, David Brett, Jonathan Major, Lucas Cabbanne, John Jewel, Daniel Obrien, Anthony Moffets, and Morris Bryan; the court doth therefore adjudge the following puniſhment, viz. The ſaid Hamilton Wood, Thomas Crandon, Joſiah Marſhall, Francis Rae, Owen Cooper, and Thomas Splitman, to be hanged by the necks until they are dead,

dead, at the yard-arms of his Majeſty's ſaid ſhip Narciſſus, and at ſuch time as the commander in chief of his Majeſty's ſhips and veſſels at the port ſhall direct, and the body of the ſaid Hamilton Wood to be afterwards hung in chains, in the moſt conſpicuous place the commander in chief ſhall think proper to direct. That Robert Wiſely ſhall receive 500 laſhes, and Peter Delaney ſhall receive 200 laſhes with a cat-of-nine-tails on their bare backs, alongſide of ſuch ſhips, and at ſuch times, in ſuch proportions, as the commander in chief ſhall think proper; and they are hereby ſentenced to ſuffer accordingly. And the court doth acquit John Simpſon, James Bryan, Thomas Hogan, James Young, Thomas Gallachan, David Brett, Jonathan Major, Lucas Cabbane, John Jewel, Daniel Obrien, Anthony Moffets, and Morris Bryan, and they are hereby acquitted accordingly.

Signed by the Court.

JOHN M'ARTHUR,
Appointed by the court to execute the office of Judge Advocate on the occaſion.

Sentence of death on Mr. BENJAMIN LEE, *maſter's mate of the Marlborough.* Section 4.

At a court martial aſſembled on board his Majeſty's ſhip Barfleur, in Port Royal harbour, Jamaica, on Friday the 7th of March, 1783.

PRESENT,

The Right Honorable Samuel Lord Hood, rear admiral of the Blue, &c. &c. preſident.

CAPTAINS, &c.

The court being duly ſworn, in purſuance of an order from Joſhua Rowley, eſquire, rear admiral of the Red, and commander in chief of his Majeſty's ſhips, and veſſels employed and to be employed at and about Jamaica, and dated the 3d day of March, 1783, and directed to the Right Honorable Samuel Lord Hood, rear admiral of the Blue, &c. proceeded to try Mr. Benjamin Lee, maſter's mate of his Majeſty's ſhip Marlborough, for behaving in a riotous manner, and inſulting Lieutenant Triſtram Hillman, fourth lieutenant of the ſaid ſhip, on the night of the 2d of March, 1783, when in the execution of his office; and having heard the evidence on the part of the proſecution, and that of the priſoner, and very ſeriouſly and maturely conſidered the ſame, are of opinion, that the charge againſt the priſoner is fully proved. The court do therefore adjudge the ſaid Mr. Benjamin Lee to be hanged by the neck until he is dead, at the yard-arm of ſuch of his Majeſty's ſhips, and at ſuch time as ſhall be directed by the commander in chief of his Majeſty's ſhips and veſſels at this port, and the ſaid Mr. Benjamin Lee is hereby ſentenced to be hanged by the neck until he is dead accordingly.

Signed by the Court,

A. B. *appointed by the court to execute the office of Judge Advocate on the occaſion.*

Sentence

Sentence on a ſeaman for abuſing the ſecond lieutenant of a ſhip, alſo ordering two ſeamen, who were examined as witneſſes, to be impriſoned for prevarication. Section 5.

At a court martial held, &c.

The court, in purſuance of an order from the right honorable the lords commiſſioners of the admiralty, dated the 3d of May, 1773, and directed to Captain ——— of his Majeſty's ſhip ——— and ſenior officer next to Captain ——— of his Majeſty's ſhips and veſſels at Plymouth, proceeded to try William Owen, a ſeaman belonging to his Majeſty's ſhip Albion, for having abuſed, in the groſſeſt and moſt offenſive terms, Sir George Home, ſecond lieutenant of that ſhip, and for having quitted the yaul, to which he belonged, without the permiſſion of the coxſwain, and not returning to him on his commanding him ſo to do, and having heard the witneſſes, produced on the part of the crown, in ſupport of the charge, and what the priſoner had to alledge in his defence, and having maturely and deliberately weighed and conſidered the whole, the court is of opinion, that the charges have been proved againſt the priſoner; and doth, from the circumſtances of the caſe, adjudge him to receive 50 laſhes on his bare back with a cat-of-nine-tails, on board the ſaid ſhip Albion, at ſuch time, and in ſuch manner, as the commanding officer of the ſaid ſhip Albion for the time being ſhall appoint; and the ſaid William Owen is hereby ordered to be puniſhed accordingly.

And

And it appearing to the court that A. B. and C. D. two ſeamen belonging to his Majeſty's ſhip E, who were produced as witneſſes, and ſworn, and examined on the ſaid trial, did, in the courſe of their ſeveral examinations, prevaricate in this evidence. The court doth order them ſeverally to be impriſoned in the Marſhalſea, for the term of three months.

Signed by the Court.

Section 6. *Sentence of a court martial on a midſhipman, wherein he is reprimanded for* HAVING BEEN DISORDERLY WHEN A PRISONER AT LARGE, *and which was the grounds of an action againſt the captain.*

At a Court Martial held, &c.

THE court in purſuance of an order, &c. proceeded to the trial of Thomas Crawford, belonging to his Majeſty's ſhip the Emerald, for having behaved to Captain Knell of the ſaid ſhip with contempt, diſobeyed his orders and acted in a quarrelſome, diſorderly manner. And having ſtrictly examined the evidence in ſupport of the charge, as well as heard what the priſoner had to offer in his defence, and very maturely conſidered the whole, the court is of opinion, that the charge is proved in part, *he having been diſorderly when a priſoner at large*, but in conſideration of his long confinement, they do only adjudge the ſaid Thomas Crawford to be reprimanded, and he is hereby reprimanded accordingly.

Signed by the Court.

Sentence

Sentence of a court martial on Admiral KEPPEL. Section 7.

At a court martial aſſembled on board his Majeſty's ſhip Britannia, in Portſmouth harbour, the 7th January, 1779, and held by adjournment at the houſe of the governor of his Majeſty's garriſon, at Portſmouth, every day afterwards (Sundays excepted), till the 11th February, 1779, incluſive.

PRESENT,

Sir Thomas Pye, admiral of the White, preſident.

Matthew Buckle, eſquire, vice admiral of the Red, till the cloſe of the ſixth day, when he became unable to continue his attendance on account of ſickneſs,

John Montagu, eſquire, vice admiral of the Red,

Marriot Arbuthnot, eſq.
Robert Roddam, eſq. } rear admirals of the White,

CAPTAINS.

M. Milbank,	F.S. Drake,
Taylor Penny,	J. Moutray,
Wm. Bennet,	Adam Duncan,
Ph. Boteler,	Ja. Cranſtoun.

The court, purſuant to an order from the right honorable the lords commiſſioners of the admiralty, dated 31ſt December, 1778, and directed to Sir Thomas Pye, proceeded to enquire into a charge exhibited by Vice Admiral Sir Hugh Palliſer, againſt the Honorable Admiral Keppel, for miſconduct and neglect of duty on the 27th and 28th of July, 1778, in ſundry inſtances, as mentioned in a paper which accompanied the ſaid order, and to try him for the ſame, and the court having heard the evidence, and the

the priſoner's defence, and maturely and ſeriouſly conſidered the whole, are of opinion, that the charge is malicious and ill-founded, it having appeared that the ſaid admiral, ſo far from having by miſconduct and neglect of duty, on the days therein alluded to, loſt opportunity of rendering eſſential ſervice to the ſtate, and thereby tarniſhing the honor of the Britiſh navy, behaved as became a judicious, brave, and experienced officer.

The court do therefore unanimouſly and honorably acquit the ſaid Admiral Auguſtus Keppel, of the ſeveral articles contained in the charge againſt him, and he is hereby fully and honorably acquitted accordingly.

Signed by the Court.

Section 8. *Sentence of honorable acquittal on the Honorable Captain* THOMAS PAKENHAM, *commander of the Creſcent, and his officers and ſhips company,*

At a court martial aſſembled, and held on board his Majeſty's ſhip Warſpite, in Portſmouth Harbour, on Monday, July 30, 1781.

PRESENT,

Captain Richard Onſlow, commander of his Majeſty's ſhip Bellona, and ſecond officer in command of his Majeſty's ſhips at Portſmouth, preſident.

CAPTAINS.

Ben. Caldwell,	C. Buckner,
Ant. Hunt,	Hon. C. Phipps,
Rob. Man,	Chr. Maſon,
Math. Squire,	Rt. Hon. Lord Hervey.
John Knowles,	

The

The court, in purſuance of an order from the commiſſioners for executing the office of lord high admiral of Great Britain and Ireland, &c. dated the 26th of this preſent month July, proceeded to enquire into the conduct of the Honorable Captain Thomas Pakenham, commander of his Majeſty's late ſhip the Creſcent, and ſuch of the company as were on board her at the time ſhe ſtruck to the Dutch frigate, and into the conduct of Lieutenant John Bligh, and ſuch of the company of the ſaid ſhip Creſcent as were on board her at the time ſhe was afterwards taken by the French frigate, and to try them reſpectively for the ſame accordingly. The court are unanimouſly of opinion that the Honorable Captain Thomas Pakenham, throughout the action, in a variety of inſtances, behaved with the cooleſt and ableſt judgment, and with the firmeſt and moſt determined reſolution, and that he did not ſtrike the Creſcent's colours, until ſhe was totally unable to make the ſmalleſt defence. The court do therefore, unanimouſly adjudge that the Honorable Captain Thomas Pakenham, be honorably acquitted, and he is hereby unanimouſly and honorably acquitted accordingly. The court cannot diſmiſs Captain Pakenham, without expreſſing their admiration of his conduct on this occaſion, wherein he has manifeſted the ſkill of an able and judicious ſeaman, and the intrepidity of a gallant officer; and from the great and extraordinary number of the killed and wounded on board the Creſcent, as well as the ſtate ſhe was in at the time of ſurrender, the court expreſs the higheſt approbation of the ſupport given by the officers and men of the Creſcent to their captain, and of their courage and ſteadineſs during

during the action, a circumſtance that, while it reflects high honor on them, does no leſs credit and honor to the diſcipline kept by Captain Pakenham; and do therefore, unanimouſly and honorably acquit the ſaid officers and ſhip's company, and they are hereby unanimouſly and honorably acquitted accordingly; and it appears to the court that the Creſcent being left by herſelf, having few men, and being in a very diſabled ſtate, ſhe was in no condition to defend herſelf againſt two ſuch large frigates, and that Lieutenant Bligh, the officers and ſhip's company, did their utmoſt to preſerve the king's ſhip from the enemy, and do therefore, unanimouſly adjudge that they be honorably acquitted, and they are hereby unanimouſly and honorably acquitted accordingly.

Signed by the Court.

W. H. BETTISWORTH,
Judge Advocate on this occaſion.

Section 9. *Sentence of a court martial on Mr.* JOHN WARDELL, *Maſter of his Majeſty's armed tranſport Cyrus, for drunkenneſs, ſcandalous, infamous, and un-officer-like behaviour.*

AT a court martial, &c.

PRESENT,

Edmund Affleck, eſq. commodore, &c. preſident.

CAPTAINS, &c.

The court (being all duly ſworn) in purſuance of an order, &c. dated the 24th inſtant, &c. proceeded to the trial of Mr. John Wardell, maſter of his Majeſty's armed tranſport Cyrus, for having been guilty of drunkenneſs

drunkenneſs and incapacity, and ſcandalous, infamous, and un-officerlike behaviour, when commanding officer after the death of Lieutenant James Turner; and having heard the witneſſes produced on the part of the crown, in ſupport of the charge, and what the priſoner had to ſay in his defence, and very maturely conſidered the whole, the court is of opinion, that the charge is fully proved; and do therefore adjudge the ſaid Mr. John Wardell to be broke as maſter of the ſaid armed tranſport, and rendered incapable in future of holding any employment or office of truſt in his Majeſty's naval ſervice, and he is hereby ſentenced accordingly.

Signed by the Court.

Section 10.

Sentence of a court martial held on WILLIAM HOBBS, *a ſerjeant of marines on board his Majeſty's ſhip Cyclops, for drunkenneſs, &c.*

AT a court held, &c.

PRESENT,

Edmund Affleck, Eſq. commodore, &c. preſident.

CPTAINS, &c.

The court, in purſuance of an order from A. D. &c. dated the 27th inſtant, proceeded to the trial of William Hobbs, ſerjeant of marines on board his Majeſty's ſhip Cyclops, for having been frequently guilty of drunkenneſs and neglect of duty; having heard the witneſſes produced for the crown in ſupport of the charge, and what the priſoner had to offer in his defence, and very maturely conſidered the whole, the court is of opinion that the charge is fully proved, and do therefore adjudge the ſaid William Hobbs to be broke as a ſerjeant, reduced into the ranks, and rendered incapable of ſerving

ing in any ſtation ſuperior to that of a private marine; and he is hereby ſentenced accordingly.

Signed by the Court.

Section 11. *Sentence of a court martial on* TIMOTHY BRADLEY, *a ſeaman, for deſertion.*

AT a court martial held at New York, the 3d of December 1781.

PRESENT,

Edmund Affleck, eſq. commodore, &c. preſident.

CAPTAINS,

Philips Coſby, &c. &c.

THE court, in purſuance of an order from Robert Digby, eſq. rear admiral of the Red, and commander in chief, &c. dated November 30, 1781, and directed to Edmund Affleck, eſq. commodore, &c. proceeded to the trial of Timothy Bradley, a ſeaman belonging to his Majeſty's armed-ſhip Britannia, on a charge exhibited againſt him for deſerting from the ſaid ſhip, and inliſting into a new raiſed corps, and afterwards ſending off a threatening meſſage, "that whenever he "might meet with the boatſwain on ſhore, he would "cut off his ears and make him eat them afterwards." And having heard the witneſſes produced on the part of the crown in ſupport of the charge, and what the priſoner had to offer in his defence, and having maturely and deliberately weighed and conſidered the whole, the court are of opinion that the charge is proved, they do therefore adjudge the ſaid Timothy Bradley, to receive 500 laſhes on his bare back with a cat-of-nine-tails, alongſide ſuch of his Majeſty's ſhips, at

at ſuch times, and in ſuch proportions, as the commander in chief ſhall think proper to direct, and he is hereby ſentenced accordingly.

Signed by the Court.

Sentence of a court martial on Mr. HUGH M'CULLOUGH, *boatſwain of his Majeſty's ſhip Chatham, for abſenting himſelf without leave, &c.* Section 18.

AT a court martial held, &c.

PRESENT,

Edmund Affleck, Eſq. commodore, &c.

CAPTAINS.

S. Lutwidge, &c. &c.

The court in purſuance of an order, &c. proceeded to the trial of Mr. Hugh M'Cullough, boatſwain of his Majeſty's ſhip the Chatham, for abſenting himſelf without leave on the 21ſt of December laſt, when ſent on duty, and for having frequently been guilty of the ſame crime; and having heard the evidence for the crown in ſupport of the charge, as well as what the priſoner had to offer in his defence, and very maturely conſidered the ſame, the court are of opinion that the charge is fully proved, and do therefore adjudge him to be broke from his preſent employment as boatſwain of his Majeſty's ſhip Chatham; but in conſideration of his general character from his captain and officers as an able and active ſeaman, when at ſea, do recommend him to be employed in ſuch ſtation in the ſervice, as the commander in chief ſhall think fit; and he is hereby ſentenced accordingly.

Signed by the Court.

Section 13. *Sentence of a court martial held on* JOHN SUTHERLAND, *for being the cauſe of the death of* JAMES FITZGERALD, *a marine belonging to his Majeſty's ſhip Grana.*

At a court, &c.

PRESENT,

Edmund Affleck, Eſq. commodore, &c. preſident.

CAPTAINS, &c.

The court in purſuance of an order &c. proceeded to the trial of James Sutherland, a ſeaman belonging to his Majeſty's ſhip Grana, for being the cauſe of the death of James Fitzgerald, a marine belonging to the ſaid ſhip, in a ſcuffle on the evening of the 26th of June laſt; and having heard the evidence on behalf of the crown, and what the priſoner had to offer in his defence, and very maturely conſidered the whole, the court is of opinion, that no marks of violence whatever appearing on the ſtricteſt examination of the head and body of the deceaſed, to aſcertain a blow given by the priſoner to be the occaſion of his death, and although the death of the ſaid James Fitzgerald might enſue in the ſcuffle between the priſoner and him by his fall or otherwiſe, they do acquit the ſaid John Sutherland of all murder or intention of murder whatſoever, and he is hereby acquitted accordingly.

Signed by the Court.

Section 14. *Sentence on Mr.* EDWARD DAVIS, *maſter of the Scorpion, for neglect of duty, diſreſpect, drunkenneſs, and unofficer-like behaviour.*

AT a court martial aſſembled and held on board his Majeſty's ſhip Jupiter, in Engliſh Harbour, Antigua, on Monday the 4th of Auguſt 1788, purſuant to an order

order from William Parker, Eſq. commander in chief of his Majeſty's ſhips and veſſels employed at Barbadoes, the Leeward Iſlands, and the ſeas adjacent.

PRESENT,

William Parker, Eſq. commander in chief, preſident.

CAPTAINS.

John Holloway, Henry Newcome,
Richard Bickerton, Wm. Henry Ricketts.

The order for aſſembling the court martial being read, and the oath, &c. adminiſtered, the court proceeded to try Mr. Edward Davis, maſter of his Majeſty's ſloop Scorpion, upon the charges brought againſt him by Captain Paget Bayly, commander of the ſaid ſloop, for neglect of duty, diſreſpect, drunkenneſs, and unofficerlike behaviour; after having examined the evidence produced in ſupport of the charges, and thoſe called upon by the priſoner, and heard his defence, and very maturely and deliberately conſidered the whole; the court is of opinion, that the charges are fully proved, and do therefore ſentence the ſaid Mr. Edward Davis, to be diſmiſſed from his Majeſty's naval ſervice, and rendered incapable of ever ſerving his Majeſty, his heirs and ſucceſſors, in any ſtation in the degree of an officer whatever; and alſo mulct him of ſuch pay as may be due ſince the ſixth day of February laſt, the day he refuſed doing his duty. And the ſaid Edward Davis is hereby diſmiſſed from his Majeſty's naval ſervice, and rendered incapable of ſerving his Majeſty, his heirs and ſucceſſors, in any ſtation in the degree of an officer whatever, and he is alſo mulcted of his pay due to him ſince the ſixth day of February laſt, accordingly.

Signed by the Court.

No. XXXV. Letter from the Secretary of the Admiralty, relative to the inconveniencies attending the Sentences of Courts Martial, naming particular Ships for Execution.

SIR, *Admiralty-Office, Feb. 14th, 1742.*

I HAVE received and read to my lords commiſſioners of the admiralty, your letter of yeſterday's date, incloſing the ſentence and proceedings of a court martial held the fourth inſtant, on board the Shrewſbury, on Lawrence Gandy, and William Stalton, for deſertion, and their lordſhips obſerving that the court names the particular ſhip on board which they are to ſuffer death; I am commanded to acquaint you, that they think the ſame may be liable to many inconveniencies, and that it ſhould rather be left general, to ſuffer on board any of his Majeſty's ſhips the preſident thinks fit. As an inſtance of which I am to inform you, that a ſeaman being lately condemned at a court martial held at Plymouth, to ſuffer death, and to be executed on board his Majeſty's ſhip the Nonſuch, and the ſervice requiring the immediate ſailing of the ſaid ſhip, there was not time to procure his Majeſty's conſent to the execution before ſhe went to ſea.

I am, &c.

J. CORBETT.

Mr. ATKINS,
Portſmouth.

No. XXXVI. Caſe and Opinion relative to PETER FINLEY, late Boatſwain of the Ferret (who had been ordered to ſerve as a Seamen on board the Iphigenia), for ſtabbing Mr. Bruton, Maſter's Mate, of the Ferret Sloop.

CASE.

The following is a copy of the ſentence of a court martial held on board his Majeſty's ſhip Cumberland, in Homoaze, on the 23d of March 1791, viz. Section 1.

THE court, in purſuance of an order from the right honorable the lords commiſſioners of the admiralty, dated the 18th of March 1791, and directed to John Macbride, Eſq. captain of his Majeſty's ſhip Cumberland, ſecond officer in the command of his Majeſty's ſhips and veſſels at Plymouth, being duly ſworn, proceeded to try Peter Finley, on a charge exhibited againſt him by Captain Nowel, of his Majeſty's ſloop Ferret, repreſenting that Peter Finley, late boatſwain of the ſaid ſloop, who had been ordered to ſerve in his Majeſty's ſhip Iphigenia, came on board the ſloop on the 26th of February laſt for his cloaths, when Mr. Bruton, the maſter's mate, having made up to ſpeak to him, he the ſaid Finley, gave him a violent ſtab with a long knife or dirk, which he had concealed under his coat, as ſuppoſed, for that purpoſe.

The court having heard the evidence in ſupport of the charge, as well as what the priſoner had to offer in his defence, and maturely and deliberately conſidered

the ſame, is of opinion that the charge is fully proved againſt the ſaid Peter Finley.

And they do therefore adjudge the ſaid Peter Finley to ſuffer death, by being hanged by the neck until he is dead, on board his Majeſty's ſloop Ferret, in Homoaze, at ſuch time as the right honorable the lords commiſſioners of the admiralty ſhall direct; and he is hereby adjudged to ſuffer death accordingly.

Signed as uſual, by all the members compoſing the court, and alſo by the perſon who officiated as deputy judge advocate on the occaſion.

The act of the 22d of George the Second, chap. 33. *is contained the following* 22*d Article of War. viz.*

"IF any officer, mariner, ſoldier, or other perſon in "the fleet, *ſhall ſtrike any of his ſuperior officers*, or draw, "or offer to draw, or lift up any weapon againſt him, "*being in the execution of his office*, on any pretence what-"ſoever, every perſon ſo offending, being convicted of "any ſuch offence by the ſentence of a court martial, "ſhall ſuffer death; and if any officer, mariner, ſol-"dier, or other perſon in the fleet, ſhall preſume to "quarrel with any of *his* ſuperior officers, *being in the* "*execution of his office*, or ſhall diſobey any lawful com-"mand of any of *his* ſuperior officers, every ſuch "perſon, being convicted of any ſuch offence by the "ſentence of a court martial, ſhall ſuffer death, or ſuch "other puniſhment as ſhall, according to the nature "and degree of his offence, be inflicted upon him by "the ſentence of a court martial."

The lords commiſſioners of the admiralty, have been pleaſed

pleaſed to direct this caſe to be laid before their counſel for his opinion; whether Mr. Bruton, the perſon ſtabbed by the priſoner was *his* ſuperior officer, within the ſpirit, true intent, and meaning of the ſaid 22d article of war, notwithſtanding they belonged to different ſhips at the time the offence was committed?

And upon the whole, whether the ſaid ſentence, paſſed upon the priſoner, may with propriety be carried into execution?

Vide the 23d and 36th articles of war (contained in the ſame act of parliament), alſo the minutes of the ſaid court martial which are left herewith.

OPINION.

The rule of law, that penal ſtatutes are not to be extended by equity, is ſo general, and the caſes in which judges have ſcrupulouſly adhered to the ſtrict letter of ſuch ſtatutes in favor of life, are ſo numerous that from what appears in the title of the minutes, and the charge as ſtated in the ſentence of the court martial, I think that Mr. Bruton was not the priſoner's ſuperior officer in the execution of his office, according to the ſtrict letter of the 22d article of war, and that he would not be conſidered as coming within that deſcription in a court of law: but I do not conceive it poſſible to form any judgment on the latter part of this queſtion; as the ſentence of the court martial does not ſpecify on what articles of war the adjudication is founded. There is no article applicable to the preſent caſe, in which the puniſhment of death is expreſsly mentioned, but the 22d; and there are only two other articles which can by any conſtruction be applied to this caſe; the 23d article, if Section 2.

applicable to it, authorizes ſuch puniſhment as the offence ſhall deſerve, and the court martial might be well warranted in an opinion that the priſoner's offence deſerved the *ultimum ſupplicium*; but I know no inſtance, in which a diſcretionary power has been exerciſed to that extent, where the offence has not been capital by the common law, or made ſo by act of parliament. The priſoner's offence is certainly of ſuch a nature as to deſerve the ſevereſt puniſhment which is authorized by law: it is what the parliament have particularly taken notice of, and paſſed an act to prevent, by 1 James I. chap. 8. commonly known by the ſtatute of ſtabbing, but they did not make it capital unleſs the perſon ſtabbed ſhould die within ſix months. The 36th article of war comprehends generally all other offences not capital, and refers to the uſage at ſea; but no precedent is ſhewn, nor is it likely that there ſhould be any, that a capital puniſhment has been adjudged for an offence not capital. There are therefore two difficulties in this caſe, which appear to me of the greateſt importance.

FIRST. The legality of the ſentence which is worthy of the conſideration of the higheſt legal authority. And,

SECONDLY. The propriety of carrying the ſentence into execution, which, as the grounds of it are not diſcloſed, muſt be left to the judgment of thoſe miniſters who are properly obſerved by Mr. Juſtice Forſter to be appointed by the crown for the ends of public juſtice.

(Signed) F. C. CUST.

April 2, 1791.

No. XXXVII.

No. XXXVII. Admiralty Order of Reprieve and Pardon.

By the Commiſſioners for executing the office of Lord High Admiral of Great Britain and Ireland, &c. &c.

WHEREAS, by our warrant of yeſterday's date, you were directed to cauſe the ſentence of death paſſed by a court martial on Samuel Ball and Michael Swinney, belonging to his Majeſty's ſhip Rainbow, for deſertion, to be carried into execution on Thurſday the 21ſt of this month. And whereas the king hath been moſt graciouſly pleaſed to extend his royal mercy to the ſaid Samuel Ball and Michael Swinney, and to ſignify his pleaſure that they ſhould be pardoned; but that, in order to imprint on their minds a laſting remembrance of the crime, for which their lives have been ſo juſtly forfeited, the ſame ſhould not be made known to them until the day appointed for their execution; you are hereby required and directed to keep the whole of this order extremely ſecret, until the ſaid Samuel Ball and Michael Swinney ſhall, on that day, be brought upon deck, and every thing ſhall be prepared for their execution agreeable to the cuſtom of the navy, and then you are to make known to them his Majeſty's pleaſure above mentioned, and to releaſe them from their confinement; letting them know at the ſame time how unmerited and undeſerved on their parts this mark of the King's clemency and goodneſs is, and therefore how incumbent on them it will be to avoid, for the remainder of their lives, every offence that may again expoſe Secret. (L. S.)

expoſe them to ſo great and manifeſt a hazard as that which they have ſo providentially eſcaped, as the contrary will inevitably deprive them of every chance of forgiveneſs again. And having ſo done, you are to ſend them back to their duty on board the Rainbow, where they are to continue to ſerve as part of the complement till further order; for which this ſhall be your warrant. Given under our hands and the ſeal of the office of admiralty, this 15th of November 1771.

J. BULLER,
PALMERSTONE,
A. HENRY.

To THOMAS PYE, *Eſq. vice admiral of the Red, and commander in chief of his Majeſty's ſhips and veſſels at Portſmouth.*

By command of their lordſhips,
PHILIP STEPHENS.

No. XXXVIII. To remit Puniſhment.

SIR, *Admiralty-Office, May* 17, 1780.

I HAVE communicated to my lords commiſſioners of the admiralty your letter of yeſterday's date, informing them, that as the two ſeamen, named in the margin, had been ſentenced by a court martial to receive 500 laſhes for mutinous behaviour on board the Invincible, you had excuſed one half of the puniſhment to be inflicted upon them, and recommending them, for the reaſons therein mentioned, as objects deſerving their lordſhips' pardon; in return, I am commanded by their lordſhips to ſignify their direction to you to remit the remainder of their puniſhment.

PHILIP STEPHENS.

Admiral Sir THOMAS PYE.

No. XXXIX. Corporal Puniſhment.

Orders for carrying corporal puniſhment into execution.

To the Captain of the Flag Ship.

By, &c.

A COURT martial, held the — inſtant, having ſentenced —— to receive 300 laſhes on his bare back with a cat-of-nine-tails, alongſide of ſuch of his Majeſty's ſhips and veſſels at this port, at ſuch times and in ſuch proportions as ſhall be directed by the commanding officer of the ſaid ſhips and veſſels for the time being. Section 1.

You are hereby required and directed to hoiſt a yellow

yellow flag at the foretop-maſthead of his Majeſty's ſhip under your command, and fire a gun at nine o'clock to-morrow morning, as a ſignal for the boats of the fleet to aſſemble alongſide of his Majeſty's ſhip ——, to attend the ſaid puniſhment.

To the captains and commanders of the other ſhips and veſſels.

Mem.

Section 2. WHEN the ſignal for puniſhment is made to-morrow morning, you are to ſend a lieutenant with a boat manned and armed from the ſhip under your command to his Majeſty's ſhip ——, in order to attend the puniſhment of ——, purſuant to the ſentence of a court martial.

To the reſpective Captains, &c. Spithead.

No. XL. Corporal Puniſhment.

To the Commander of the Ship to which the Priſoner belongs.

By &c.

Section 1. A COURT martial, held the 12th inſtant, on board his Majeſty's ſhip A. for the trial of B. C. a ſeaman belonging to the ſhip you command, having ſentenced him to receive 300 laſhes on his bare back, with a cat-of-nine-tails, alongſide ſuch of his Majeſty's ſhips and veſſels at this port, at ſuch times and in ſuch proportions as ſhall be directed by the commanding officer of the ſaid ſhips and veſſels for the time being; you are hereby required and directed, when the ſignal is made for that purpoſe on board the A. to-morrow morning, or the firſt favourable day afterwards (Sundays excepted), to cauſe one of the lieutenants of the ſhip you command

mand to attend and ſee the ſaid ſentence put in execution, by the ſaid B. C. receiving twenty laſhes alongſide ſuch of his Majeſty's ſhips named in the margin. [The ſhips name to which the priſoner belongs, is always to be put in the margin, with the others; but in caſe the number ſhould not fall even, he is to receive the odd laſhes over on board his own ſhip, and the words in the order are as follow, "*And alongſide the ſhip you command,*" you are to cauſe him to receive "*twenty five, or more, or leſs, laſhes.*"] And you will receive herewith a copy of the ſentence, to be publicly read by the proveſt marſhal, alongſide each ſhip reſpectively*.

Given, &c.

R. SPRY.

Right Hon. Cap. BARRINGTON,
Albion.

By, &c.

Whereas I have by an order of this date, directed you to cauſe one of the lieutenants of his Majeſty's ſhip under your command, to ſee the ſentence of the court martial, on B. C. belonging to the ſame ſhip, put in execution*. But as I would not have more of the ſaid puniſhment inflicted upon him, at one time, than he is able to bear, and as the lieutenant may not be a proper judge of the priſoner's caſe, you are hereby required and directed to cauſe the ſurgeon of the ſaid ſhip to attend in the boat with the lieutenant for that purpoſe, Section 2.

* The purport of this order is frequently included at the end of the preceding, and which we deem a better form than making two ſeparate orders.

as well as one of his mates, in the long boat, with the priſoner, and you are to give the lieutenant directions to ſtop the puniſhment till further orders, when the ſurgeon ſhall give it as his opinion, that he cannot bear any more with ſafety, and return on board with the priſoner.

Given &c.

To the Right Honorable
Capt. BARRINGTON,
Albion.

No. XLI. Corporal Puniſhment.

Order to the Provoſt Marſhal.

By, &c.

Section 1. HAVING ordered the ſentence of the court martial on William Evans, the priſoner in your charge, to be put in execution next Thurſday morning, or the firſt favourable day afterwards (Sunday excepted),

You are hereby required and directed to attend with him on board his Majeſty's ſhip Albion, for that purpoſe, whenever the ſignal ſhall be made on board the Ocean; and when the ſaid priſoner ſhall have received the whole of the puniſhment adjudged him, you are to releaſe and deliver him to the commanding officer of the Albion.

Given, &c.
I. A.

To Mr. J. G.
Provoſt Marſhal.

By

Order to the Provoſt Marſhal to attend the execution of a ſentence of death.

By, &c.

THE king having been pleaſed to approve of the ſentence of death, paſſed by the court martial, on Walter Stanford, one of the priſoners in your charge, and the lords commiſſioners of the admiralty having ordered the ſame to be put in execution, Section 2.

You are hereby required and directed to attend with him, for that purpoſe, on board his Majeſty's ſhip the Albion, on Thurſday the 7th inſtant, at ten o'clock in the morning, and to follow ſuch orders as you ſhall receive from Lieutenant Hill, firſt lieutenant of the ſaid ſhip.

Given, &c.

Mr. J. G. J. A.
Provoſt Marſhal.

No. XLII. Orders for carrying the Sentences of Death into Execution.

To the commander of the ſhip to which the priſoner belongs.

By, &c.

(L. S.)

WHEREAS at a court martial, held on board his Majeſty's ſhip the Ocean, in Hamoaze, the 22d day of laſt month, Captain Edward Le Cras, commander of the ſaid ſhip, being preſident, a ſentence was paſſed to the effect following; viz. The court, in purſuance of an order from the right honorable the lords commiſſioners of the admiralty, dated the 8th of February, 1777, proceeded to try Walter Stanford, for having Section 1.

having a fourth time deſerted from his Majeſty's ſhip the Albion; and having heard the evidence, and what the priſoner had to offer in his defence, and very maturely conſidered the ſame, are of opinion, that the charge againſt him is fully proved. The court do therefore adjudge the ſaid Walter Stanford to be hanged by the neck until he is dead, at the yard arm of ſuch of his Majeſty's ſhips, and at ſuch time, as ſhall be directed by the lords commiſſioners of the admiralty; and the ſaid Walter Stanford is hereby ſentenced to be hanged by the neck until he is dead accordingly. And whereas the king has been pleaſed to approve of the ſentence of death, paſſed on the ſaid Walter Stanford, and the right honorable the lords commiſſioners of the admiralty have, in purſuance of his Majeſty's pleaſure, directed me by their warrant, bearing date the 29th of laſt month, to cauſe the ſaid ſentence to be put in execution, on Thurſday the 7th day of this month, on board the Albion at Plymouth,

You are therefore hereby required and directed to ſee the ſaid ſentence carried into execution accordingly, on Thurſday the 7th day of the month, at 11 o'clock in the forenoon, by cauſing the ſaid Walter Stanford to be hanged by the neck until he is dead, at the fore-yard-arm of his Majeſty's ſhip the Albion, for which this ſhall be your warrant.

Given, &c.

J. AMHERST.

To Lieutenant HILL,
Commanding Officer,
of His Majeſty's ſhip
the Albion.

By

Order to the Commanding Officer to make the ſignal.

By, &c.

YOU will herewith receive a warrant for carrying into execution the ſentence of death paſſed by a court martial on Walter Stanford, and having ordered a lieutenant with a boat manned and armed to be ſent from each of his Majeſty's ſhips here, to aſſiſt in carrying the ſame into execution, when the ſignal ſhall be made on board the Albion, by hoiſting a yellow flag at the fore-top-gallant maſt head, and firing a gun. Section 2.

You are hereby required and directed to make ſuch a ſignal, at ten o'clock next Thurſday morning, and to apply to the lieutenant commanding boats for ſome men out of each boat, to aſſiſt in the execution of the ſaid ſentence.

Given, &c.

Lieutenant HILL,
Albion.

Another form of order to the Commanding Officer of the ſhip to which the priſoner belongs.

By &c.

YOU will herewith receive a warrant for carrying into execution the ſentence of death paſſed by the court martial on John Webber, belonging to his Majeſty's fireſhip Blaſt, and having ordered a lieutenant with a boat manned and armed, to be ſent from each of his Majeſty's ſhips at this port, to aſſiſt in carrying the ſame into execution, on Tueſday next the 13th inſtant, preciſely at 10 o'clock, Section 3.

You are hereby required and directed to apply to the above mentioned lieutenants for as many men out of each boat, as you ſhall judge neceſſary to aſſiſt in hanging the ſaid John Webber accordingly.

The Heart of Oak armed ſhip, on board which my flag is flying, will hoiſt a yellow flag at her fore-top-maſt head, and fire a gun at the time ſpecified; you are to repeat the ſignal, and juſt before the priſoner is run up to the yard arm, you are to fire another gun, as a ſignal for the different ſhips to obſerve the execution.

Given, &c.

Captain PENNY,
Marlborough.

No. XLIII. Orders for carrying Sentence of Death into Execution, continued.

To the Captain of the flag ſhip, to make the ſignal for the boats of the fleet to rendezvous.

By, &c.

Section 1. THE king having been pleaſed to approve of the ſentence of death paſſed by the court martial on Henry Lee, belonging to his Majeſty's ſhip Romney, and the right honorable the lords commiſſioners of the admiralty having ordered the ſaid ſentence to be carried into execution, on Thurſday the 1ſt of March next,

You are hereby required and directed to hoiſt a yellow

yellow flag at the fore-top-maſt head of his Majeſty's ſhip under your command, and fire a gun at nine o'clock in the morning of the day above mentioned, as a ſignal for the boats of the fleet to rendezvous alongſide of his Majeſty's ſhip the Victory, where I have ordered the ſaid Henry Lee to be executed.

Given, &c.

To Captain HUNT,
Diligent.

To the reſpective Captains of the ſhips, to ſend boats manned and armed to attend.

Memorandum.

Having ordered the ſentence of death paſſed by a court martial on Henry Lee, belonging to his Majeſty's ſhip Romney, to be put in execution to-morrow morning at nine o'clock, Section 2.

You are to ſend a lieutenant with a boat manned and armed from the ſhip under your command to the Victory, to be there at the time above mentioned, in order to aſſiſt and attend the ſaid execution.

To the reſpective Captains, and Commanders of his Majeſty's ſhips and veſſels, Spithead.

No. XLIV.

Certificate by the President of a court martial to the officiating Judge Advocate, and which entitles him to eight shillings per day for the time employed *.

THESE are to certify, that Mr. J. M. officiated as judge advocate at a court martial, at which I presided, held on board his Majesty's ship ——— in the North River, New York, the 18th day of May, 1782, for the trial of H. W. belonging to his Majesty's ship ———, for mutiny and sedition, and that he was employed twelve days in making preparations for the trial, attending the court, and copying and transmitting the minutes of proceedings.

Given on board his Majesty's ship, &c.

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* It is usual at home to insert *ten days* in the certificate, and abroad *twelve days* for each trial.

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